

**MASTER AGREEMENT – WELL SERVICES AND
ASSOCIATED GOODS**

between

CONOCOPHILLIPS SKANDINAVIA AS

and

Supplier Name:Not Specified

Contract No. *T-2019.000065*

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Preamble

This agreement (Contract Number T-2019.000065) (**Agreement**) is entered into by and between, and is effective from the date of the last signature hereof (Effective “as of the date of last signature”) (**Effective Date**) by:

ConocoPhillips Skandinavia AS (Reg. No. 918 110 127), whose registered office is at Ekofiskvegen 35, N-4056 Tananger, Norway (**Company**); and

Supplier Name:Not Specified (Reg. No. [REDACTED]), whose registered office is at Supplier 1 Headquarter Address Line 1:Not Specified, Supplier 1 Headquarter Address Line 2:Not Specified, Supplier 1 Headquarter - Pin/Zip:Not Specified, Supplier 1 Headquarter - City:Not Specified, Supplier 1 Headquarter - Country:Not Specified (**Contractor**);

Company and Contractor being referred to herein individually as a **Party** and collectively as **Parties**.

Recitals

- A. Company or its Affiliates (as defined in Article 2.1) need to obtain from time to time services associated with the drilling of wells and performance of related operations for their oil and gas exploration and development programs (collectively ‘Work’, as defined in Article 2.1).
- B. Contractor and its Affiliates are engaged in the business of performing such well-related services, including the provision of the necessary equipment, materials, skilled personnel, and other resources, and are interested in performing Work for Company and Company’s Affiliates.
- C. Company and Contractor and their respective Affiliates are each committed to safety, the protection of the environment, and sustainable development in all aspects of performance and operations as core principles and philosophies.
- D. Company and Contractor wish to establish certain terms and conditions that can be incorporated into and apply to each Call-Off Order (as defined in Article 2.1) entered into between Company (or any of its Affiliates) and Contractor (or any of its Affiliates) for the performance of Work.

Company and Contractor therefore agree as follows:

1. AGREEMENT; TERM

- 1.1. This Agreement consists of this document (comprising the Preamble, the Recitals, and the Articles); and the following Exhibits attached hereto and made a part of this Agreement for all purposes (including any drawings, specifications, and documents referred to in such Exhibits, all of which by such reference are incorporated into and made part of this Agreement):

Exhibit A	Drug and Alcohol Policy
Exhibit B	Health, Safety, and Environmental (HSE) Requirements
Exhibit C	Offshore/ Onshore Requirements
Exhibit D	Additional Information System Access Requirements
Exhibit E	Example Call-Off Order
Exhibit F	Forms of Performance Securities

- 1.2. This Agreement will continue in full force and effect from the Effective Date until the last day of the month that is sixty (60) months after the Effective Date, both inclusive; subject to earlier termination by Company upon not less than thirty (30) days’ notice to Contractor. Notwithstanding expiration of the term or earlier termination of this Agreement:

- a. the relevant provisions of this Agreement will survive as provided in this document; and

- b. the provisions of this Agreement as incorporated by reference into any Call-Off Orders entered into during the aforementioned term of this Agreement will continue in full force and effect with respect to such Call-Off Orders until all obligations of the Parties under such Call-Off Orders have been duly fulfilled, including those with regard to early termination (if applicable).
- 1.3. Also, notwithstanding expiration of the term or earlier termination of a Call-Off Order in respect of which supplemental documents (such as those entitled 'Purchase Order', 'Release PO', or 'Service Order') are used as provided in Article 4.2, such supplemental documents will continue in full force and effect until all obligations of the Parties under such supplemental documents have been duly fulfilled.

2. DEFINITIONS; RULES OF INTERPRETATION

2.1. Definitions

When used in this Agreement or in any Call-Off Order in relation to it, the following capitalized terms have the meanings specified in this Article 2.1:

Affiliate means any entity, including any corporation, limited liability company, partnership, or joint venture, controlled by, under common control with, or controlling the entity in relation to which the term 'Affiliate' is used, with 'control' being defined as owning, directly or indirectly, fifty percent (50%) or more of the assets or the outstanding shares having voting rights, or otherwise having the right, either by contract or otherwise, to control the operation, management, or policy of an entity.

Agreement has the meaning provided in the Preamble, and it comprises the items set out in Article 1.1.

Applicable Laws means all laws and regulations (including requirements, decisions, and orders of, and permits and authorizations issued by, any Governmental Authority) that are applicable to the Work, locations where Work is performed, or the persons in relation to whom the term is used.

Call-Off Order means a specific contractual agreement established between Company or one of its Affiliates and Contractor or one of its Affiliates in accordance with the terms of Article 4 for the performance of particular Work by Contractor or its Affiliate, in the form set out in the Exhibit entitled 'Example Call-Off Order', as identified in Article 1.1, or in such other form as Company and Contractor may agree. The generic term 'Call-Off Order', as used herein, will include similar documents entitled 'Work Order', 'Scope of Work (SOW)', 'Purchase Order', 'Service Order', and the like that are also used by Company or its Affiliates for the above-described purpose. Provided always that a purchase order or other document used in accordance with Article 4.2 to address the performance of particular Work under a Call-Off Order forms part of that Call-Off Order and does not constitute a separate contractual agreement.

Change Order means a document so entitled that is issued by Company to Contractor after the execution of a Call-Off Order and that, when duly executed by the Parties, authorizes an addition to, deletion from, or other modification or adjustment to the subject matter of such Call-Off Order, as provided in Article 13.

Claims means any of the following, including any combination thereof: causes of action (*in rem* or *in personam*), claims, assertions, demands, allegations, proceedings, suits, losses, liabilities, fines, penalties, costs, damages, judgments, awards, and expenses, including court costs and attorneys' fees, and sums paid by way of settlement and compromise.

Company has the meaning provided in the Preamble when the term is used in relation to this Agreement. When used in relation to a particular Call-Off Order, both before and after its execution, the term 'Company' means the entity identified as Company in that Call-Off Order.

Company Group means, with regard to an individual Call-Off Order, any or all of: (i) Company and its Affiliates; (ii) Coventurers in relation to the Work and their Affiliates; (iii) Company's other contractors (other than members of Contractor Group) and their subcontractors of any tier who are engaged directly or indirectly by Company to perform work or services for the project to which the Work relates or are otherwise present during Contractor's performance of the Work, and their Affiliates; and (iv) the respective agents of any of the entities addressed in (i) through (iii) above; all the foregoing being 'members of Company Group'.

Company Representative means the individual appointed by Company in a Call-Off Order (or subsequently by Notice to Contractor) who has authority to deliver to and receive from Contractor Notices related to that Call-Off Order and who is Contractor's main point of contact for that Call-Off Order. The Company Representative does not have authority to modify the terms of this Agreement as incorporated by reference into any Call-Off Order.

Consequential Loss means any or all of the following, in each case arising out of or occurring in connection with any Call-Off Order, or performance of the Work under a Call-Off Order:

- a. loss or deferment of revenue or profit;
- b. loss of use, loss of production, or business interruption;
- c. loss of business opportunity or goodwill; and
- d. to the extent not included in the foregoing, any consequential or indirect losses;

whether or not any of the foregoing were (i) a natural result of the breach or matter giving rise to such loss or damages; or (ii) contemplated by the Parties at the time of execution of the applicable Call-Off Order as a probable result of such a breach or matter.

Consequential Loss does not include any of the following: (i) liquidated damages provided for in any Call-Off Order; (ii) a Party's obligation to provide its Indemnitees with a legal defence in connection with that Party's Indemnification obligations set out in this Agreement; (iii) a Party's obligation, pursuant to its Indemnification obligations set out in this Agreement, to pay or reimburse judgments or settlements to persons other than the other Party; and (iv) damages for breach of the obligations in Article 30.

Contractor has the meaning provided in the Preamble when the term is used in relation to this Agreement. When used in relation to a particular Call-Off Order, both before and after its execution, the term 'Contractor' means the entity identified as Contractor in that Call-Off Order.

Contractor Group means, with regard to an individual Call-Off Order, any or all of: (i) Contractor and its Affiliates; (ii) Subcontractors and their Affiliates; and (iii) the respective agents of any of the entities addressed in (i) and (ii) above; all the foregoing being 'members of Contractor Group'.

Contractor Representative means the individual appointed by Contractor in a Call-Off Order (or subsequently by Notice to Company) who has authority to deliver to and receive from Company Notices related to that Call-Off Order and who is Company's main point of contact for that Call-Off Order. The Contractor Representative does not have authority to modify the terms of this Agreement as incorporated by reference into any Call-Off Order.

Coventurer means any entity having an interest in a joint venture, consortium, or other joint association with Company (and being a party to the related joint operating agreement, unit operating agreement, joint venture agreement, production sharing agreement, or other agreement governing operations), on behalf of which the Work is being performed; and the successors and assigns of such entity.

Defect or Defective means any Work, including any part thereof, that fails to meet the requirements of the applicable Call-Off Order as regards Company's intended use of the Work and enjoyment

thereof, whether such intended use is expressly specified in or reasonably inferable from the Call-Off Order and including when such failure is due to errors, deficiencies, or discrepancies in design, materials, workmanship, or in other respects.

Effective Date has the meaning provided in the Preamble.

Force Majeure means an event or occurrence, or condition resulting therefrom, that: (i) delays or renders impossible the affected Party's performance of its obligations under a Call-Off Order; (ii) is beyond the reasonable control of the affected Party and not due to its Legal Fault; and (iii) was not reasonably foreseeable, or if foreseeable could not have been prevented or avoided by the affected Party through the exercise of due diligence. To the extent that (i) through (iii) above are satisfied, Force Majeure includes catastrophic storms or floods, tornadoes, hurricanes, typhoons, cyclones, tsunamis, earthquakes, and other acts of God; wars (declared or undeclared); civil disturbances; terrorist attacks; revolts; insurrections; sabotage; national or industry-wide strikes or lock-outs; commercial embargoes; epidemics; fires; explosions; and actions of a Governmental Authority that were not requested, promoted, caused by, or imposed as a result of actions or failures to act of, the affected Party.

Force Majeure does not include any of the following: (a) economic hardship; (b) changes in market conditions; (c) late delivery or failure of equipment provided by any of the members of Contractor Group for performance of the Work; (d) labour availability or strikes (except national or industry-wide strikes or lock-outs); (e) late delivery or shortage of materials, consumables, equipment, or utilities; (f) adverse climatic conditions (including rain, snow, wind, temperature, and other weather conditions), tides, and seasons, regardless of the magnitude, severity, duration, or frequency of such climatic conditions (other than catastrophic storms or floods, tornadoes, hurricanes, typhoons, cyclones, or tsunamis, as provided above); or (g) nonperformance or delay by any of the members of Contractor Group, unless such nonperformance or delay is caused by Force Majeure.

Goods means any materials or other goods to be provided by any of the members of Contractor Group in relation to Work and that will be subject to a transfer of title to Company, together, as applicable, with any associated items such as software, firmware, special tools or installation/removal aids, spare parts, and operating and maintenance manuals. Chemicals and other consumable substances that any member of Contractor Group will itself use in the performance of the Work and which will thereby be dissipated or spent are not considered as Goods.

Governmental Authority means the government of any country, province, region, state, or territory, or any political subdivision thereof, claiming, having, or exercising jurisdiction over Company, any of the members of Contractor Group, any Site, or the Work, including all agencies, instrumentalities, and political subdivisions of, and entities controlled or commissioned by, such government; any judicial, executive, legislative, administrative, police, military, or regulatory body of any government or political subdivision thereof; and any official of any of the foregoing.

Indemnify means defend, indemnify, release, and hold harmless; and cognate terms such as **Indemnified**, **Indemnifying**, **Indemnification**, **Indemnity**, **Indemnitor**, and **Indemnitee** are to be construed accordingly.

Invitee means (i) with regard to Company Group, any person whose presence at a Site is at the invitation of Company or another member of Company Group but who is not, directly or indirectly, under contract or subcontract with Company; and (ii) with regard to Contractor Group, any person whose presence at a Site is at the invitation of Contractor or another member of Contractor Group but who is not, directly or indirectly, under contract or subcontract with Contractor. Provided, however, that Governmental Authorities or other persons whom a Party is required by Applicable Laws to allow to enter upon a Site are not considered Invitees of either Party.

Legal Fault means negligence or other tort liability, breach of contract or warranty, strict liability, product liability, or any failure to act in accordance with legal or regulatory requirements.

Nonconformity or **Nonconforming** means any Work, including any part thereof, that is not performed in conformance with the requirements of the applicable Call-Off Order, including those of Applicable Laws.

Notice or **notice** means a formal written communication, delivered in accordance with Article 33 when between the Parties; and cognate terms such as **notify** and **notification** are to be construed accordingly.

Party and **Parties** have the meanings provided in the Preamble when these terms are used in relation to this Agreement. When used in relation to an individual Call-Off Order, both before and after its execution, the term 'Party' means an entity identified as 'Company' or 'Contractor' respectively in that Call-Off Order; and the term 'Parties' means both of them.

Personal Injury means any injury suffered by a natural person, including death, sickness, ill health, disease, mental anguish, and mental distress.

Personnel or **personnel** means, in relation to an entity, such entity's permanent, part-time, special, seconded, contract, or temporary staff, whether its employees or otherwise, as well as (i) employees of such entity's Affiliates who are providing services to such entity in relation to the Work; and (ii) individuals engaged to act for such entity in a consultancy or similar role and who work under its direct control.

Property means, in relation to any of the members of Company Group or Contractor Group respectively or any other person, property of whatsoever nature that is owned, hired, leased, rented, or howsoever otherwise obtained by such member or other person; provided that Goods are not included in the defined term 'Property' until delivery and acceptance of the Goods in accordance with the applicable Call-Off Order. For the avoidance of doubt, all items provided by members of Contractor Group in relation to or for performance of the Work that are not subject to a transfer of title to Company (including such items provided on the basis of hire, lease, or rental charges to Company) are exclusively the Property of the respective members of Contractor Group, and never the Property of any member of Company Group.

Site means any location owned, solely or jointly, or controlled by Company where any part of the Work is to be performed, including any wellsite location and any drilling rig, drilling vessel, or offshore platform from which drilling, workover, or other well-related operations are conducted.

Subcontractor means any company engaged by Contractor or another Subcontractor of any tier to perform any part of the Work, including providing (i) services; or (ii) materials, consumables, plant, equipment, and other items used in performance of the Work.

Taxes means all taxes and governmental and municipal levies of every kind, in any jurisdiction, to which the members of Contractor Group or any of their respective officers, directors, or Personnel are subject, including state profit share, royalty, corporate income tax, hydrocarbon tax, NOx duty, value added tax, property tax, import and excise duties, European Union charges, wage and personal income taxes, capital tax, customs duties, retributions, and social security premiums.

Work means all elements of the activities to be performed by or on behalf of Contractor under an individual Call-Off Order, whether or not specifically described therein, including everything that may be reasonably inferred from such Call-Off Order as needing to be done by or on behalf of Contractor in order for Contractor to fulfill all its duties, obligations, and responsibilities under such Call-Off Order. Particular Work includes the provision of equipment, materials, personnel, other resources, and Goods, as applicable, to perform technical and other services in relation to

exploration, development, production, and other drilling- or well-related operations of Company or Company's Affiliates.

2.2. Rules of Interpretation

2.2.1. The following rules of construction and interpretation apply to this Agreement and Call-Off Orders, unless the context requires otherwise:

- a. References to Preamble, Recitals, Articles, and Exhibits are to the preamble, recitals, and articles of this document, and to the Exhibits listed in Article 1.1.
- b. References to periods of time (such as 'day', 'week', 'month', and 'year') are to periods of time under the Gregorian calendar, such periods following one another consecutively when referred to in their unqualified plural form.
- c. Words used in their singular form include their plural form, and vice versa; and words indicating a particular gender include any gender.
- d. The terms 'including', 'include', 'such as', 'in particular', and the like are deemed to be completed by the expression 'but not limited to' and are to be construed without limitation.
- e. The term 'company' includes any incorporated limited liability company, joint stock company, firm, corporation, individual proprietorship, partnership, or other business concern.
- f. The term 'person' includes any natural or legal person, such as any individual, company, general or limited partnership, country or state, Governmental Authority, labour union, organization, estate, or trust; or a joint venture or association (whether or not having separate legal personality) of two or more of the foregoing, whether they are in the same category or in different categories.
- g. A reference to any particular Applicable Law is to be construed as (i) referring to it as amended and in force from time to time; and (ii) if applicable, including all Applicable Laws that re-enact, consolidate, or replace it (with or without modification).
- h. With regard to any matters referred to in this Agreement as being subject to or requiring approval, such approval must be obtained in writing (generally from the Company Representative for Company, and from the Contractor Representative for Contractor).
- i. References to 'writing' and 'written' include any means of creating or reproducing text in a tangible and legible form, including facsimiles but otherwise (except as expressly provided in Article 33) excluding items transmitted exclusively in an electronic form (such as 'emails'), even if the recipient may be able to convert such items to a tangible and legible form.
- j. References to a Call-Off Order are to all its relevant provisions, including those of this Agreement, which are included in each Call-Off Order by reference as provided in this Agreement.
- k. Norwegian rules of interpretation as developed in Norwegian case law apply to this Agreement and to Call-Off Orders.

and until each Party's duly authorized signatory has signed, physically or electronically as applicable, one counterpart of this Agreement.

- b. Call-Off Orders are to be similarly executed in duplicate originals, each signed physically or electronically as applicable by the duly authorized signatories of the respective Parties, unless produced in Company's enterprise resource planning (ERP) system.
 - c. As an interim measure prior to, but not superseding the need for, the signature of the originals of this Agreement or of a Call-Off Order pursuant to Article 3.1(a) or Article 3.1(b), the Parties may agree to deliver any signature by facsimile transmission or by email attachment. In such event, pending execution of the duplicate originals of this Agreement or the applicable Call-Off Order, each such signature will create a valid and binding obligation of the Party on behalf of which such signature is executed, with the same force and effect as if such facsimile or email attachment signature page were an original thereof.
- 3.2. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter. All other oral or written agreements, contracts, understandings, conditions, warranties, or representations with respect to the subject matter of this Agreement are superseded by this Agreement.
 - 3.3. Any terms or conditions contained in any of Contractor's purchase orders, price lists, invoices, tickets, or other documents presented to Company in relation to any Work performed under an individual Call-Off Order will be null and void, regardless of any individual whosoever signing such documents purportedly on behalf of Company.
 - 3.4. Each Party has had the opportunity to be represented by counsel in connection with the drafting and negotiation of this Agreement, and this Agreement and its terms are not to be construed more severely against one of the Parties than the other. Specifically, but not by way of limitation, no term of this Agreement is to be construed more severely against the Party deemed to be the drafter of such term than against the other Party.
 - 3.5. It is intended that if any provision of this Agreement or a Call-Off Order is determined to be unenforceable or void for any reason, such provision is to be modified, if possible, in order to achieve the intent of the Parties, failing which the unenforceable or void provision is to be deemed severed from this Agreement or the Call-Off Order. In any event, all other provisions of this Agreement and the Call-Off Order are to be deemed valid, binding, and enforceable.
 - 3.6. No waiver by either Party of a right under, or of a default by the other Party in the performance of, this Agreement or a Call-Off Order will be effective unless set out in writing and signed by a duly authorized representative of such Party. Any such waiver is not to operate or be construed as a future waiver of any right of a Party, or of any future default by the other Party, whether of a like or different character.
 - 3.7. This Agreement may be modified only in a written document (each an **Agreement Amendment**) that (a) specifically references this Agreement and the intention to modify this Agreement; (b) clearly sets out each modification; and (c) is executed by authorized representatives of each Party. Any purported modifications of this Agreement which do not comply with the terms of this Article 3.7 will be null and void and of no effect. An Agreement Amendment, unless it expressly stipulates otherwise, is to apply to all Call-Off Orders (i) entered into after its effective date; or (ii) that have not expired or been terminated at its effective date.
 - 3.8. Nothing in this Agreement is to be construed as a guarantee or representation to Contractor that Company or Company's Affiliates will order or obtain any minimum amount of Work.
 - 3.9. Contractor understands and agrees that Company and Company's Affiliates are not entering into an exclusive arrangement with Contractor and Contractor's Affiliates for the performance of work such as that addressed in this Agreement, and Company and Company's Affiliates may, at their

discretion, enter into agreements with other suppliers or contractors similar to this Agreement. Company understands and agrees that Contractor and Contractor's Affiliates are not entering into any exclusive arrangement with Company and Company's Affiliates for the performance of work such as that addressed in this Agreement, and Contractor and Contractor's Affiliates may, at their discretion but without prejudice to their obligation to perform fully under any Call-Off Orders, enter into agreements with other customers similar to this Agreement.

- 3.10. All documents and all communications in connection with this Agreement and any Call-Off Order are to be prepared and conducted in the English language.
- 3.11. Unless otherwise expressly set forth herein, all remedies available to either Party for breach of this Agreement or a Call-Off Order are cumulative and may be exercised concurrently or separately; and the exercise of any one remedy is not to be deemed an election of such remedy to the exclusion of other remedies.
- 3.12. Notwithstanding any provision of this Agreement to the contrary, the expiration or termination of this Agreement or any Call-Off Order will not relieve the Parties of any obligations that, by their nature, survive such expiration or termination, including any Claims arising out of the Work or the performance of the Work, warranties, Indemnities, insurance requirements, audit rights, governing law, and dispute resolution procedures; and obligations with regard to confidential information, Taxes, and intellectual property.
- 3.13. Any references to Incoterms® or any delivery terms or similar terms in this Agreement or any Call-Off Order are solely for the purpose of expressing the duties to be performed by each Party and are not intended, and are not to be used, to define or specify the point at which title (addressed in Article 17) or risk of damage or loss (addressed in Article 18) will transfer from one Party to the other.

4. CALL-OFF ORDERS

- 4.1. When Company wishes Contractor to perform Work, Company will either: (i) issue to Contractor an electronic Call-Off Order, generally generated from Company's contract management system (SMART); or (ii) prepare and deliver to Contractor a Call-Off Order in a written format.
 - 4.1.1. Each Call-Off Order will, at least: (i) identify Company and Contractor, who will be the sole signatories to and the sole responsible Parties under the Call-Off Order; (ii) specify that the Work is to be performed in accordance with and subject to the terms of this Agreement, as incorporated into the Call-Off Order, to the exclusion of all other terms and conditions not set out in this Agreement or in the Call-Off Order; (iii) detail the scope of the Work to be performed by Contractor under the Call-Off Order; (iv) detail the basis for payments to be made by Company for the performance of the Work, as provided in Article 14 (as well as any invoicing or payment provisions specific to such Call-Off Order); and (v) set out the time schedule for performance of the Work.
 - 4.1.2.
 - a. If Company utilizes a Call-Off Order in an electronic format, this will be provided to Contractor by computer-to-computer data interchange (electronic data interchange (EDI)) if possible, otherwise by electronic mail. Such Call-Off Order will constitute either, as applicable:
 - i. an offer on the part of Company, which Contractor may accept by commencing performance of the Work described in the Call-Off Order; or by signing the Call-Off Order electronically as provided in Article 3.1; or by printing, signing, and returning to Company a hard copy of the Call-Off Order; or
 - ii. a means for Company to formalize its acceptance of an offer made on the part of Contractor.

- b. If Company utilizes a Call-Off Order in a written format, Company will issue the Call-Off Order in two originals as either, as applicable:
 - i. an offer on the part of Company, which Contractor may accept by commencing performance of the Work described in the Call-Off Order or by signing and returning both originals of the Call-Off Order to Company; or
 - ii. a means for Company to formalize its acceptance of an offer made on the part of Contractor.
 - c. No terms or conditions in any such offer by Contractor that conflict with those of this Agreement are to be of any force and effect; and other terms or conditions in any such offer by Contractor are only to apply in respect of a Call-Off Order if expressly addressed in such Call-Off Order.
- 4.1.3. Upon:
 - a. Contractor commencing performance of the Work under the Call-Off Order at the time agreed with Company; or
 - b. both Parties signing, physically or electronically, counterparts of the Call-Off Order;
 such Call-Off Order will come into effect as the contract between them, and both Company and Contractor will thereupon be bound to the terms of such Call-Off Order.
- 4.1.4. If any of the terms of the Call-Off Order are unacceptable to Contractor, Contractor is not to commence performance of the Work under the Call-Off Order nor sign such Call-Off Order but shall promptly notify Company of Contractor's issues with the Call-Off Order. Provided, however, that Contractor is not entitled:
 - a. to reject a Call-Off Order that duly sets out the terms of an offer that Contractor has made to Company, and which Company is duly accepting as provided in Article 4.1.2(a)(ii) or Article 4.1.2(b)(ii); or
 - b. to make its acceptance of a Call-Off Order conditional upon incorporation therein of terms or conditions which are not consistent with those of this Agreement.
- 4.1.5. Under no circumstances is Contractor to make any modifications to the terms and conditions of the Call-Off Order or execute the Call-Off Order based, predicated, or conditional on: (i) terms to be negotiated; (ii) other sets of terms and conditions; or (iii) any modifications to the terms and conditions of the Call-Off Order. Any such modifications or predicated or conditional execution of the Call-Off Order will be null and void and deemed to be a rejection of the Call-Off Order. Contractor is not to commence any Work under such a rejected Call-Off Order.
- 4.1.6. After both Parties have executed a Call-Off Order, whether physically or electronically, Contractor shall commence performance of the Work under that Call-Off Order at the time agreed with Company.
- 4.2. A Call-Off Order may address the full details of a particular scope of Work to be performed by Contractor; or it may address a program of Work. In the latter case, the Call-Off Order will also set out details of the procedure that Company will use to request Contractor to perform particular Work within the overall Work program, identifying any particular supplemental documents (such as those entitled 'Purchase Order', 'Release PO', or 'Service Order', generated from Company's enterprise resource planning (ERP) system and each having a unique reference and referring to the applicable Call-Off Order) that Company will use for such requests.

4.3.

- a. Each duly executed Call-Off Order, together with any purchase orders or other supplemental documents used to address performance of particular Work thereunder as provided in Article 4.2, constitutes (i) a separate contract between Company and Contractor, as they are identified in the Call-Off Order; and (ii) the entire agreement between the Parties with regard to the subject matter thereof. Provided always that Company is entitled to rely on representations made by Contractor in its tender or proposal for the Work addressed in the Call-Off Order as to (A) Contractor's ability to perform the Work, including for the pricing thereof; and (B) the way in which Contractor will perform the Work. The terms and conditions applicable to the Work to be provided pursuant to the Call-Off Order are those set forth in this Agreement, as they may be supplemented by any additional terms and conditions contained in such Call-Off Order.
- b. Only Company and Contractor as designated in the Call-Off Order will have, upon execution thereof, any of the rights and obligations of Company and Contractor respectively relative to that particular Call-Off Order (whether such rights and obligations are expressed in this Agreement, in the Call-Off Order, by law or otherwise), and the rights and obligations under that particular Call-Off Order extend only to the Work addressed in that Call-Off Order.

4.4.

- a. Provisions of this Agreement are not to be modified in a Call-Off Order.
- b. No additional term which is intended to have or has the effect of modifying any term of this Agreement (including its Exhibits) as it applies to such Call-Off Order is to be incorporated into the Call-Off Order. Each Call-Off Order will specify that the Work is to be performed in accordance with and subject to the terms of this Agreement, to the exclusion of all other terms and conditions not set out in this Agreement.
- c. A Call-Off Order may contain provisions addressing such matters as: (i) delay liquidated damages payable to Company in the event of delay in performance and completion of the Work; and (ii) as addressed in Article 6.6, designation of certain personnel of members of Contractor Group as **Key Personnel**, with their removal from the Work without Company's approval constituting a material breach of contract or entitling Company to payment of liquidated damages by Contractor. Company will be entitled to payment of liquidated damages without having to prove or quantify loss or damage suffered as a result of Contractor's failure to meet the obligations to which such liquidated damages relate.

4.5. Company may enter into any Call-Off Order on its own behalf or on behalf of both itself and Coventurers, as applicable. Contractor is to look only to Company for the due performance of each Call-Off Order, and Company is entitled to enforce each Call-Off Order on behalf of itself and Coventurers. Contractor is not to communicate, directly or indirectly, with any Coventurer concerning any matters pertaining to this Agreement or any Call-Off Order.

4.6. The presence of the Company Representative or any other representatives of Company at any Site will not relieve Contractor from any obligations under a Call-Off Order.

5. PERFORMANCE OF WORK

5.1. General

- 5.1.1. Contractor shall diligently perform all Work to such high professional standards of skill, care, expertise, knowledge, and quality as pertain to first-class reputable contractors experienced in performing work that is similar in nature to the Work; and otherwise in conformance with all requirements of each Call-Off Order.
- 5.1.2. Contractor shall provide at its own expense all suitably qualified and skilled personnel, plant and equipment, materials, consumables, supplies, services, and all other things whatsoever whether of a permanent or temporary nature necessary for the complete and

satisfactory performance of the Work, unless specifically provided otherwise in the applicable Call-Off Order. Contractor shall maintain, at each Site to the extent practicable and otherwise readily available in the vicinity of each Site, adequate stocks of consumable items and spare parts to assure the efficient and continuous serviceability and operability of all equipment of members of Contractor Group that is used in performance of the Work.

5.1.3. Contractor is deemed to have satisfied itself, when entering into a Call-Off Order, with regard to (i) the extent and nature of the Work; general and local conditions (including ground, climatic, and weather conditions), and all other matters that could affect or influence the performance or progress of the Work; and (ii) the correctness and sufficiency of the rates, prices, and sums set out in the pricing provisions of such Call-Off Order. Any failure by Contractor to take account of matters that could affect the Work or the cost of or the time schedule for the performance of the Work, does not relieve Contractor from any of its obligations under the Call-Off Order, including those set out in this Agreement, nor entitle Contractor to any additional payments or any adjustment of the agreed time schedule for performance of the Work. Contractor shall keep itself informed regarding the conditions at each Site throughout the period of the Work.

5.1.4.

- a. Contractor shall read carefully all Company-provided drawings, plans, specifications, and other documents relating to each Call-Off Order and the performance of the Work under such Call-Off Order (collectively **Company Provided Information**) in order to determine all relevant details of the Work, including the materials, equipment, supplies, services, and other resources that will be required. Company gives the Company Provided Information to Contractor in good faith, but Company does not warrant that such Company Provided Information is necessarily accurate, up-to-date, exhaustive, or complete with regard to the subject matter thereof.
- b. Contractor shall notify Company without undue delay of any apparent errors, discrepancies, or inconsistencies discovered in Company Provided Information that might affect performance, cost, or timely completion of the Work.
- c. Company is responsible for errors, discrepancies, or inconsistencies in Company Provided Information that Contractor has duly notified to Company as provided in Article 5.1.4(b). Company will either have the necessary corrections made or instruct Contractor in writing how to proceed.
- d. Company is not liable for any costs or delays incurred by Contractor resulting from or arising out of failure by Contractor to notify Company in accordance with Article 5.1.4(b) of errors, discrepancies, or inconsistencies in Company Provided Information.
- e. Any part of the Work not expressly detailed in Company Provided Information furnished to Contractor, nor specified in Contractor's tender or proposal for the Work, but necessary for the proper performance, completion and administration of the Work in accordance with the applicable Call-Off Order and necessary to meet properly the requirements for which the Work is intended, is to be carried out by Contractor at Contractor's expense as if such part of the Work had been specifically mentioned or shown in Company Provided Information.

5.1.5.

- a. In connection with Contractor's performance under any Call-Off Order, Contractor is responsible, at its own expense, for obtaining and maintaining all permits, licences, certifications, and any other similar authorizations that are or may be required by any Governmental Authority, except when Applicable Laws or a Call-Off Order expressly obligate Company to obtain any of these. Contractor shall immediately

notify Company if Contractor becomes aware that Company should have any relevant permit, licence, or approval that has not been obtained. Contractor shall provide all assistance and cooperation in connection with the obtaining of any relevant permit, licence, or approval required in Company's name in relation to the Work.

- b. Contractor, at its own expense, is responsible for (i) obtaining any qualification or registration necessary for it to conduct business in the jurisdiction of each Site; and (ii) securing valid visas, work permits, and other permits necessary for officers, Personnel, equipment, and other Property of the members of Contractor Group to enter, and for Contractor to conduct Work in, such jurisdiction, to the extent these can be procured in the name of Contractor. If required, Company will assist Contractor in obtaining such permits. Contractor shall ensure compliance by all members of Contractor Group with the provisions of such permits.
- c. Unless Applicable Laws of the jurisdiction of a Site regarding importation and re-exportation require otherwise, Contractor is responsible, at its own expense, for arranging importation and exportation of all equipment and other Property of the members of Contractor Group and their respective officers and Personnel into and from such jurisdiction. Company will provide reasonable assistance to Contractor with such arrangements.

5.1.6. Contractor shall keep copies of all applicable drawings, plans, specifications, and other documents at all times in readily accessible files at locations where the Work is being performed. Prior to and as a condition of completion of the Work, Contractor shall provide Company with copies of all relevant documents, including drawings, plans, specifications, and copies of subcontracts and purchase orders for elements of the Work performed on a cost reimbursable basis.

5.1.7.

- a. Contractor shall supply information and documentation to Company in a complete and timely manner to keep Company apprised of progress and significant events occurring during the course of the Work, including events that may cause delays, Claims, injuries, environmental impacts, or changes in cost or time schedule.
- b. Contractor shall perform the Work in accordance with the time schedules, including any key dates, set out and to which it has committed itself in the applicable Call-Off Order. Contractor shall continuously monitor the progress of the Work and keep Company continually updated on the planned and actual progress. Contractor shall promptly provide such information as Company may require for monitoring and verifying the progress of the Work. Contractor shall not give priority to work for its other clients to the detriment of the Work, including in the event of Force Majeure.
- c. Should the Work fall behind the agreed time schedule, Contractor shall promptly provide a recovery plan to Company, setting out the measures that Contractor intends to take to bring the Work back on schedule. If Contractor cannot substantiate to Company's reasonable satisfaction that the measures proposed by Contractor will achieve the required schedule recovery, Company is entitled, without prejudice to any of its other rights, to require Contractor to take such further measures stipulated by Company to assure such schedule recovery, or to minimize delay. Contractor shall undertake all schedule recovery measures, whether proposed by Contractor or stipulated by Company, at its own expense. Company also has the right to expedite performance of the Work itself.
- d. When a Call-Off Order addresses Contractor's obligation to pay delay liquidated damages to Company in the event of Contractor's delay and failure to achieve at

the due time a schedule milestone, such delay liquidated damages (subject to Contractor's due payment thereof) are Company's only financial remedy for such failure, provided:

- i. Contractor has duly fulfilled its obligations under the foregoing provisions of this Article 5.1.7; and
- ii. the extent of the delay in achieving the milestone (whether reasonably anticipated or actual) does not exceed such period as would entitle Company to payment of the maximum amount of liquidated damages specified in the Call-Off Order. In the event of the delay exceeding the period corresponding to the maximum amount of liquidated damages specified in the Call-Off Order, Company is further entitled to terminate the Call-Off Order as provided in Article 32.1.1.

5.1.8. Use of roads at onshore Sites will be allowed to areas designated by Company for Contractor's use, for access and transportation of Personnel, materials, and equipment of members of Contractor Group. Pipe supports or other structures spanning roadways will not be removed or altered to accommodate dimensions of equipment or vehicles supplied by any of the members of Contractor Group, unless expressly agreed in writing by Company in the applicable Call-Off Order. Company will designate the entrance gates and permissible access routes for Personnel, materials, and equipment of the members of Contractor Group.

5.1.9. Contractor shall perform all Work with minimum interference with the operations of Company and others at any applicable Site. Contractor shall cooperate and coordinate with any other contractors performing work at the Site and with Company Personnel to ensure the safe, efficient, and timely completion of the Work and the work of such other contractors and Company Personnel.

5.1.10. Company may advise Contractor from time to time of Company's standard working hours that apply to a Site, which may be twenty-four (24) hours per day and seven (7) days per week. Except in the case of an emergency, Contractor shall not perform Work on the Site outside Company's standard working hours (when less than twenty-four (24) hours per day and seven (7) days per week) without Company's prior written consent.

5.1.11. a. Contractor is responsible for all material management activities required for the Work, including in respect of materials, supplies, and Company-supplied goods: receipt, warehousing, inventory management, logistics, preservation, storage, and handling of all such items for the Work as well as handling of surplus materials at the Site. Contractor shall conform to Company's own procedures with regard to the handling of Company-supplied goods.

b. Contractor shall perform and manage all required activities to ensure timely delivery of all materials and supplies in line with the time schedule for the Work.

5.1.12. Contractor shall remove from each Site and properly dispose of any debris, surplus and scrap materials, equipment, tools, or other items provided or generated by any of the members of Contractor Group and not owned by Company, all at its own cost.

5.2. Goods-Related Provisions

With regard to Call-Off Orders which include the supply of Goods in relation to the Work, the following additional provisions apply:

- 5.2.1. When the functionality of any Goods is reliant upon licensed software or firmware incorporated therein or associated therewith, Contractor shall ensure that Company is provided, together with the Goods, with irrevocable, royalty-free licenses for all such software and firmware, and that such licenses will entitle Company to receive at no extra charge the licensor's maintenance services in relation to the software or firmware for at least two (2) years.
- 5.2.2. No minimum order charges or charges for packing, cartage, insurance, or transportation by any mode are to be payable or paid by Company unless expressly so specified in the applicable Call-Off Order.
- 5.2.3. Contractor shall include the Call-Off Order number or other tracking number provided by Company and other specified numbers on the bill of lading and shall advise the carrier that such numbers must be shown on freight bills. Contractor freight charges for Company's account, if permitted under the applicable Call-Off Order, must be supported by a copy of the bill of lading and the carrier's freight bill.
- 5.2.4. Unless stipulated otherwise in the applicable Call-Off Order, Contractor shall furnish Goods to Company on a DDP (Named Place of Destination) basis, per Incoterms® 2010.
- 5.2.5.
- a. Upon Company's request, Contractor shall provide, free of charge, user manuals and training materials in respect of Goods. All such materials are to be available in electronic and print versions.
 - b. Contractor shall make available to Company all its and Subcontractors' service and maintenance guides for all Goods. All such materials are to be available in electronic and print versions.
 - c. Additionally, Contractor shall make available to Company newsletters, application notes, and technical bulletins pertaining to Goods that are posted on internet sites of members of Contractor Group.
- 5.2.6. Contractor shall make dimensional and scale drawings of and certificates for Goods available to Company and to any of Company's other contractors identified by Company as requiring the information.
- 5.2.7. Contractor shall provide Company with complete bills of material for all Goods furnished to Company. If required by Company, Contractor shall provide such bills of material in a form, and to the level of detail, consistent with Company's ERP system.
- 5.2.8. Contractor shall maintain complete maintenance and repair records for all Goods repaired or serviced in relation to the Work and will make all such records available to Company or its authorized representatives upon request.
- 5.3. Instructions by Company
- 5.3.1. Without prejudice to Article 9, Contractor shall comply with all instructions of Company that may be given from time to time and that are consistent with the provisions of this Agreement and the applicable Call-Off Order. Such instructions of Company will be confirmed in writing by Company as soon as practical and may include instructions as to Work methods or stoppage of Work in progress.
- 5.3.2. Notwithstanding Article 5.3.1, if Company gives instructions which would require equipment of any of the members of Contractor Group to be used in such a way that the design parameters of such equipment would be exceeded, Contractor shall immediately notify Company that such instructions constitute 'extraordinary operations', and

Contractor has the right not to perform such extraordinary operations. Should Company nonetheless need to proceed with extraordinary operations and notify Contractor accordingly, Contractor shall carry out such extraordinary operations, subject to its rights under Article 5.7; and, subject to Contractor having notified Company as provided above, in such circumstances Company will assume liability for resultant damage to such equipment that may occur, and the provisions of Article 18.7.1 are to apply, *mutatis mutandis*.

5.4. Company Well Program

5.4.1. For each well, Company will provide a 'well program' to Contractor, which will include information that Company deems relevant to the Work required of Contractor. Company may modify this program while Work is in progress.

5.5. Well Control Policy

5.5.1. Contractor shall exercise due diligence to maintain in sound condition at all times any well control equipment provided by any member of Contractor Group in relation to the Work. Contractor shall use all reasonable means to prevent and control fires and blowouts and to protect the well. Personnel of the members of Contractor Group are to participate in safety drills, including testing of blowout preventers, as Company may request. Contractor shall instruct all Personnel of the members of Contractor Group in the use of safety equipment and proper work procedures for the purpose of doing everything reasonably possible to protect against Personal Injury and damage to equipment and the well. Contractor shall ensure that Personnel of the members of Contractor Group are drilled in emergency procedures in case of fire, blowout, evacuation, and other hazardous events, and shall hold regular safety reviews.

5.5.2. Subject to the provisions of Article 18, Contractor shall exercise due care, take due precautions appropriate to the Work, and otherwise do everything reasonably possible to prevent blowouts, fires, and explosions, and to protect life and property.

5.6. Reports to be Furnished by Contractor

5.6.1. Contractor shall provide periodic reports in such form and at such frequency as set forth in the applicable Call-Off Order. Contractor shall permit Company to inspect, review, or take copies of all field records and reports relating to the Work that are kept by Contractor. Upon completion of the Work on a well and upon Company's specific written request, all data and copies thereof pertaining to such well that are in possession of the members of Contractor Group and their respective officers and Personnel are to be delivered to Company.

5.6.2. Contractor shall report to Company as soon as possible all accidents and occurrences, including spills, resulting in Personal Injury to officers or Personnel of the members of Contractor Group or other persons or damage to Property of the members of Contractor Group or to property of other persons or to the environment arising out of or resulting from performance of the Work. Contractor shall supply to Company all information required for the filing by Company or Contractor, as decided by Company, of any reports necessary to conform to Applicable Laws. Contractor shall also furnish Company with copies of any accident reports in relation to Personnel or Property of any of the members of Contractor Group and the Work, provided that Contractor is not required to waive or jeopardize any attorney-client or similar privilege.

5.6.3. Contractor shall maintain, and provide to Company, delivery tickets and other relevant records in respect of any materials or supplies provided by Contractor and other members of Contractor Group in respect of the Work. Contractor shall implement appropriate procedures and processes to assure the accuracy of such records.

5.7. Abnormal and Hazardous Conditions

If at any time Contractor believes that continuing the Work will result in abnormal or hazardous conditions, Contractor shall immediately notify Company and in the meantime exert every reasonable effort to overcome such conditions. In any such case Contractor is entitled to stop the Work under the safest possible conditions and shall consult with Company as soon as reasonably possible without increasing the hazards to people or property. Costs incurred by Contractor in acting reasonably to overcome such conditions, when such actions are outside of Contractor's responsibilities under a Call-Off Order, will be reimbursed by Company.

5.8. Additional Equipment

- 5.8.1. Should special tools, materials, apparatus, or services, other than those designated in the applicable Call-Off Order or required for the Work pursuant to normal prudent operations, be necessary for performance of the Work, the Parties will agree beforehand in writing upon the cost and the manner in which they are to be provided by Contractor.
- 5.8.2. If such items are supplied to Contractor by third parties, Contractor is to invoice Company for such items at Contractor's cost plus an agreed handling charge as specified in the applicable Call-Off Order.
- 5.8.3. All items that Contractor procures for Company pursuant to this Article 5.8 will be owned by Company, other than replacements for items owned by Contractor for which Company has reimbursed Contractor.
- 5.8.4. Notwithstanding the foregoing provisions of this Article 5.8, which apply only to specially purchased third party items, all other Contractor Claims for reimbursement arising from a Call-Off Order are to be on the basis of actual substantiated cost to Contractor without a handling charge, unless expressly specified otherwise in the applicable Call-Off Order.

5.9. Non-Productive Time and Company's Warranty Rights

- 5.9.1. Company is not liable to pay Contractor for non-productive time: when Work is unable to proceed for reasons within Contractor's responsibility under any Call-Off Order. Such reasons include (i) unavailability, breakdown, or repair or non-routine servicing of equipment of any of the members of Contractor Group; or (ii) shortage of Personnel of any of the members of Contractor Group; or (iii) concerns with regard to any unsafe act or failure or failure to act on the part of Personnel of any of the members of Contractor Group.
- 5.9.2. When Contractor is performing more than one service (e.g., directional drilling, drilling fluids, wireline logging, cementing, stimulation) for a well, all time-related service charges under all Call-Off Orders for the same well will cease to apply (i) for the period during which any of the foregoing events lasts; and (ii) during the time required to remedy the consequences of any such event, until Work resumes productively.
- 5.9.3. If Work is only able to proceed at reduced efficiency owing to such matters as (i) equipment of any of the members of Contractor Group not operating to its performance specification; or (ii) shortage of Personnel of any of the members of Contractor Group; then all service charges under all Call-Off Orders for the same well thereby affected will be subject to adjustment commensurate with the reduction in efficiency.
- 5.9.4. For the purposes of Company's warranty rights and Contractor's warranty obligations under Article 20, when Work performed under any Call-Off Order has to be re-performed, Contractor shall also re-perform the relevant other services for the same well. For example, when Contractor has to re-perform Work under a Call-Off Order for cementing services pursuant to Article 20.2 and has performed Work on the same well under Call-

Off Orders for drilling fluids and directional drilling services, Contractor's re-performance obligation will apply for all Work in respect of the cementing services, the drilling fluids, and the directional drilling services.

5.10. New Technology

- 5.10.1. The Parties anticipate that there will be continuous improvements in performance of Work on account of such matters as advances in technology and execution efficiencies. Contractor shall not seek price adjustments on account of such improvements to or upgrading of its services.
- 5.10.2. Should Contractor wish to make obsolete or stop providing a service (such as any tool, equipment, product, chemical, or process) under a Call-Off Order, and replace it with a new generation or different service, Contractor shall first obtain the Company Representative's written approval for such replacement, and the charges for the new service will be the same as those for the service it is replacing under the Call-Off Order. Contractor shall not make any service obsolete without written approval from the Company Representative for the relevant Call-Off Order.
- 5.10.3. Contractor shall promptly notify Company of new technology developed by or available to Contractor and relevant to any Call-Off Order, and shall offer to make such new technology available to Company (i) when such technology is made available by Contractor to any of its customers; or (ii) the Parties have entered into a collaboration agreement that addresses Company's use of the new technology on a collaborative trial basis.
- 5.10.4. If Contractor has developed or acquired a new technology service (such as any tool, equipment, product, chemical, or process) within the term of a Call-Off Order, and Contractor offers it to Company, Contractor shall provide specifications of such new technology service, and timing for its expected delivery. Contractor shall provide evidence of field tests, if they have been conducted, to demonstrate the new technology service's functionality and reliability. Having reviewed this documentation, the Company Representative and the Contractor Representative will meet to discuss and seek to agree on charges for the new technology service, on a case-by-case basis.
- 5.10.5. In the event such new technology that Contractor offers to Company is a new generation technology that Contractor assures Company will deliver incremental results and/ or performance, and the new generation technology fails to deliver such incremental results and/ or performance, then Company will continue to be charged for further use of the new generation technology at the pricing for the previous generation technology.

5.11. Offshore Work; Emergency Evacuation

- 5.11.1. When any Work under a Call-Off Order is to be performed at an offshore Site, Company will provide, unless otherwise specified in the applicable Call-Off Order, transportation at its expense for Personnel, materials, and equipment of the members of Contractor Group between Company's designated embarkation point or other place of delivery as specified in the Call-Off Order and the offshore Site and will furnish necessary accommodation and messing for Personnel of the members of Contractor Group at the offshore Site. Contractor shall comply, and cause Personnel of the members of Contractor Group to comply, with Company's rules regarding transportation, accommodation and messing.
- 5.11.2. Should Personnel or Invitees of any of the members of Contractor Group become incapacitated through injury or illness during attendance at any offshore Site in relation to the Work, Company will arrange, at its cost, for their transportation to shore, including transportation to and from the offshore Site of any medical personnel needed to accompany such incapacitated individuals. Contractor is responsible, at its own

expense, for arranging the attendance of such medical personnel. When such incapacitated individuals have been brought to shore, Contractor shall assume all further responsibility for them, including arranging and paying for (i) medical treatment and any required medical services; and (ii) if necessary, their transfer to destinations outside the country in which Company's offshore Site is located.

- 5.11.3. Should Contractor fail, refuse, or be unable to perform its obligations under Article 5.12.2, Company has the right but not the obligation to act on behalf of Contractor at Contractor's sole expense.
 - 5.11.4. **COMPANY ASSUMES NO RESPONSIBILITY OR LIABILITY FOR THE AVAILABILITY, TIMELINESS, QUALITY, OR EFFECTIVENESS OF ANY MEDICAL CARE TO PERSONNEL OR INVITEES OF MEMBERS OF CONTRACTOR GROUP OR FOR ANY INABILITY TO PROVIDE MEDICAL CARE OR TRANSPORTATION TO SHORE IN A TIMELY MANNER. CONTRACTOR SHALL INDEMNIFY COMPANY FROM AND AGAINST ANY CLAIMS RELATING TO OR RESULTING FROM MEDICAL CARE OR DELAY IN TRANSPORTATION TO SHORE PROVIDED TO, OR ANY FAILURE TO PROVIDE MEDICAL CARE OR TRANSPORTATION TO SHORE FOR, PERSONNEL OR INVITEES OF ANY OF THE MEMBERS OF CONTRACTOR GROUP.**
 - 5.11.5. Contractor is also responsible for arranging for and providing all necessary emergency evacuations of Personnel of any of the members of Contractor Group for security reasons from the country in which Company's offshore Site is located.
- 5.12. To the extent not already required pursuant to another provision of this Agreement, Contractor shall comply with the provisions of each of the Exhibits identified in Article 1.1.

6. CONTRACTOR GROUP PERSONNEL

- 6.1. Contractor shall provide, itself or through other members of Contractor Group, all required personnel in sufficient numbers to perform the Work safely and efficiently.
- 6.2. Contractor shall assign only such Personnel of members of Contractor Group to the Work who:
 - a. are fully competent, experienced, qualified, trained, have all necessary physical capacities to perform the Work, and are otherwise capable of properly performing the Work; and
 - b. fulfill all requirements of Applicable Laws and industry guidelines and norms (including having all required and current safety training and other certifications).
- 6.3. Company has the right, exercisable at any time, to approve any Personnel of members of Contractor Group proposed for assignment to the Work. Personnel of the members of Contractor Group in supervisory or managerial roles must be able to communicate with reasonable fluency in the English language, both spoken and written.
- 6.4. Before commencement of Work under a Call-Off Order, Contractor shall provide a list of the Personnel of the members of Contractor Group that it intends to assign to the Work and who are designated as Key Personnel in accordance with Article 6.6(a), with a concise summary of each individual's qualifications, work history, and training attendances, with dates and appropriate supporting documentation as applicable. Contractor shall give Company as much notice as possible of any changes to such list, providing the aforementioned summary for any additional or replacement Key Personnel it intends to assign to the Work.
- 6.5. Contractor is fully responsible for the following with regard to Personnel of members of Contractor Group participating in performance of Work:
 - a. ensuring the proper and timely payment of wages, salaries, and all other remuneration, and provision of all benefits, due to such persons, including any benefits required by Applicable

Laws of any country having jurisdiction over the Work, Sites, Contractor, or any other applicable member of Contractor Group;

- b. their supervision and daily direction and control;
- c. their actions in rendering performance under any Call-Off Order;
- d. ensuring their safety;
- e. filing of any and all returns or other forms with Governmental Authorities;
- f. providing for and scheduling any vacation and sick leave;
- g. payment of compensation due for Personal Injury;
- h. proper fulfillment of requirements of Governmental Authorities with regard to visas, work permits, and other formalities;
- i. payment of any and all Taxes and other amounts due to Governmental Authorities;
- j. payment of all sums payable, by operation of Applicable Laws or otherwise, as a result of termination or transfer of employment; and
- k. prompt replacement of any personnel removed from the Work, including at the direction of Company pursuant to Article 9.4, and all costs associated with such removal and replacement.

6.6.

- a. Company has the right to designate **Key Personnel** in any Call-Off Order, including the individuals that Contractor has represented to Company will be assigned to particular positions, and for specific time periods, in Contractor's organization for the Work. All proposed Key Personnel:
 - i. are subject to acceptance by Company, including interview in relation to such acceptance if required by Company;
 - ii. once accepted by Company, are not to be demobilized or reassigned from the Work without Company's written approval, except for reasons outside Contractor's control, such as their resignation from Contractor's employ, or prolonged illness. Company's approval will be contingent upon Contractor proposing a suitably qualified and experienced replacement acceptable to Company; and there being an appropriate handover period, for which there will be no extra cost to Company. Company reserves the right to require Contractor to pay Company such amounts as may be specified in individual Call-Off Orders should Contractor remove or reassign Key Personnel without Company's prior written approval. Each such amount is to be considered as the genuine pre-estimate agreed by the Parties with respect to the disruptive effect on the Work due to Contractor's unauthorized withdrawal of Key Personnel.
- b. Contractor shall use all reasonable endeavours to ensure that Personnel of members of Contractor Group assigned to the Work, other than Key Personnel, continue for the duration of the Work in the functions to which they were initially assigned.
- c. Throughout the period that Personnel of members of Contractor Group are assigned to the Work, Contractor shall not require them without Company's awareness and concurrence to perform work also for Contractor's other clients that might entail conflict with Contractor's

obligations under Article 30 with respect to Confidential Information, Knowhow, and Proprietary Information. Company's concurrence is not to be unreasonably withheld or delayed, conditional upon Contractor satisfying Company that Contractor shall take appropriate measures to ensure there will be no breach of such obligations.

- 6.7. Contractor shall not assign without Company's written consent any of the Personnel of members of Contractor Group who is removed from the Work at the direction of Company pursuant to Article 9.4 to any other sites or facilities owned or operated by Company or to any other projects or work for Company.
- 6.8. Contractor is responsible for ensuring that all Personnel of the members of Contractor Group who are performing Work and are physically present in Norway at any time can present their employment contract or evidence of the full name of their employing company upon request. All Personnel of the members of Contractor Group performing Work onshore must present their employment contract or evidence of the full legal name of their employing company prior to an ID card being issued.
- 6.9. **CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP AND THEIR RESPECTIVE BENEFIT PLANS AND FIDUCIARIES FROM AND AGAINST ANY AND ALL:**
 - a. **CLAIMS BY OR ON BEHALF OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR THEIR RESPECTIVE PERSONNEL REGARDING OR RELATING TO THE BENEFIT PLANS AND PROGRAMS OF COMPANY OR OTHER MEMBERS OF COMPANY GROUP, INCLUDING CLAIMS INVOLVING PENSION, SAVINGS, MEDICAL, AND UNEMPLOYMENT BENEFITS;**
 - b. **CONTRIBUTIONS, TAXES, AND PENALTIES FOR UNEMPLOYMENT INSURANCE OR COMPENSATION, PENSIONS, ANNUITIES, BENEFITS, OR OTHER AMOUNTS RELATED TO COMPENSATION OR MEDICAL BENEFITS OF THE RESPECTIVE PERSONNEL OF ANY OF THE MEMBERS OF CONTRACTOR GROUP, INCLUDING ANY AMOUNTS THAT COMPANY IS REQUIRED BY APPLICABLE LAWS TO DEDUCT FROM AMOUNTS PAYABLE TO CONTRACTOR OR OTHERWISE COLLECT FROM CONTRACTOR AND PAY TO APPLICABLE GOVERNMENTAL AUTHORITIES; AND**
 - c. **CLAIMS BY OR ON BEHALF OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR THEIR RESPECTIVE PERSONNEL REGARDING OR RELATING TO THE EMPLOYMENT OF SUCH PERSONNEL, INCLUDING ANY CLAIMS: (I) UNDER ANTI-DISCRIMINATION LAWS; (II) OF RETALIATION; (III) FOR BREACH OF OR INTERFERENCE WITH EXPRESS OR IMPLIED CONTRACTS FOR CONTINUED EMPLOYMENT; (IV) OF NEGLIGENT HIRING, SUPERVISION, OR RETENTION; (V) ARISING FROM MISCLASSIFICATION OF SUCH PERSONNEL OF ANY OF THE MEMBERS OF CONTRACTOR GROUP AS PERSONNEL OF ANY OF THE MEMBERS OF COMPANY GROUP; OR (VI) ALLEGING JOINT EMPLOYMENT BY ANY OF THE MEMBERS OF COMPANY GROUP.**

7. SUBCONTRACTS

7.1. General

- 7.1.1. As soon as practical after the effective date of a Call-Off Order, but in any event prior to commencement of performance of the Work, Contractor shall notify Company of all proposed subcontracting (except with regard to subcontracts for sourcing of personnel from staff leasing agencies, personnel services companies, and consultancies) and of those entities (including candidates on which it has not yet made a final decision) to which it proposes to subcontract performance of various parts of the Work (excluding such entities, if any, that were expressly approved by Company in the Call-Off Order). Company will review and approve or reject any such proposed subcontracting and entities, and Contractor shall not employ as Subcontractors any such entities that have not been approved by Company to perform applicable Work under the Call-Off Order. Company's approval or rejection of any proposed subcontracting or candidate for

subcontracting provides no basis for any Change Order or any Claim for additional remuneration or time schedule adjustment.

- 7.1.2. Contractor must obtain Company's prior written approval for any further subcontracting proposed by Contractor, and for any proposed changes to subcontracting arrangements already approved by Company pursuant to Article 7.1.1. Company will review and approve or reject any such proposed additional subcontracting and changes. Company's approval or rejection of any proposed subcontracting or changes to previously approved subcontracting arrangements provides no basis for any Change Order or any Claim for additional remuneration or time schedule adjustment.
- 7.1.3. Any subcontracting of parts of the Work by Contractor does not relieve Contractor of full responsibility for all of the Work, including the subcontracted portion. It is entirely Contractor's own responsibility to ensure that it has appropriate arrangements with all Subcontractors to ensure fulfillment of all the duties, responsibilities, and obligations under any Call-Off Order. Any failure of a Subcontractor to perform is to be considered for all purposes a failure of Contractor to perform, and Contractor shall remain fully liable for (i) any Defects or Nonconformities in Work performed by Subcontractors; (ii) any acts or omissions of Subcontractors; and (iii), subject to Article 18, any and all damages or injuries caused by Subcontractors or arising out of their performance in relation to a Call-Off Order.
- 7.1.4. Contractor shall ensure that subcontracts contain all relevant provisions, *mutatis mutandis*, of the applicable Call-Off Order, including those set out in this Agreement, and that Company's rights are not limited by any provision in, or omission of any relevant provision from, a subcontract. All subcontracts are to stipulate clearly that Contractor is acting for itself as principal and not in any way jointly with or as agent for Company. Except to the extent this Agreement expressly provides otherwise, a subcontract creates no contractual relationship between Company and the Subcontractor.
- 7.1.5. Contractor shall not include provisions in any subcontract or purchase order with any Subcontractor making payment of amounts due to the Subcontractor for Work performed conditional upon Contractor having first been paid by Company for such Work.
- 7.1.6. Contractor shall ensure that each subcontract and purchase order with any Subcontractor expressly provides for Company's unconditional right to require assignment thereof to Company, at Company's option, if Company terminates any applicable Call-Off Order or any relevant part thereof.

8. ASSIGNMENT; NOVATION

- 8.1. Contractor shall not assign, transfer, or novate this Agreement, in whole or in part, without the prior written consent of Company. Any such purported assignment, transfer, or novation without the prior written consent of Company will be void and of no force and effect.
- 8.2. Contractor requires the prior written consent of Company for any: (i) assignment, transfer, or novation of a Call-Off Order; and (ii) assignment of any amounts due or that will become due to it under any Call-Off Order. Any such purported assignment, transfer, or novation without the prior written consent of Company will be void and of no force and effect.
- 8.3. Company is entitled to assign or novate either or both of this Agreement and any Call-Off Order, in whole or in part and without requiring Contractor's consent, to (i) any of Company's Affiliates or Coventurers; or (ii) any successor of Company in Company's role as an operator, and which is assigned the rights, interests, and obligations of Company with regard to such operatorship. Contractor shall promptly execute any and all documents that Company presents to it to give effect to any such assignment or novation.

- 8.4. This Agreement and respective Call-Off Orders will inure to and be binding upon the respective successors and permitted assigns of the Parties.

9. INDEPENDENT CONTRACTOR

- 9.1. Contractor shall perform all Work as an independent contractor, but always in compliance with the applicable Call-Off Order. Contractor is fully responsible for and has exclusive direction and control of its Personnel and the other members of Contractor Group and their respective Personnel; and shall control the manner and method of carrying out the Work. Nothing in this Agreement or any Call-Off Order is to be construed to create (i) between Company and Contractor the relationship of partnership; joint venture; fiduciary and beneficiary; or principal and agent; or (ii) any relationship between Company and Personnel of any of the members of Contractor Group, including that of employer and employee, or principal and agent.
- 9.2. Contractor and the other members of Contractor Group and their respective officers, directors, and Personnel have no authority to incur any debt, liability, or obligation, or to make any commitments, on behalf of Company for any purpose; and none of them is to hold itself out as having such authority.
- 9.3. Any provision in any Call-Off Order or any document in relation thereto whereby Company or any of its officers, Personnel, or agents would appear to have the right to direct Contractor or other members of Contractor Group as to the manner of performing the Work is intended and is to be interpreted to mean that Contractor should follow the wishes of Company as regards the results to be achieved and not the specific ways in which the Work is to be accomplished.
- 9.4. Notwithstanding the foregoing, should Company request Contractor in writing to remove from the Work any other member of Contractor Group or any of the Personnel of members of Contractor Group, Contractor shall promptly cause such person to be replaced in performance of the Work at no cost to Company. Grounds for such requests may include conduct which is unsafe, inappropriate, or otherwise detrimental to Company's operations or to the safe, efficient, and proper performance of the Work, or lack of competence. The Parties acknowledge that Contractor and the other members of Contractor Group retain the sole right to select, hire, discharge, and retain their respective Personnel.

10. USE OF COMPANY ITEMS

- 10.1. Contractor shall provide everything required for the safe, efficient, timely, and proper performance of the Work, other than items expressly set out in any Call-Off Order that Company has agreed to provide.
- 10.2. Should Company provide any materials for Contractor's use in performance of the Work under a Call-Off Order, Contractor shall comply with any materials management procedures that Company provides to it in relation to such materials. Without prejudice to the foregoing, Contractor shall:
- a. inspect Company-provided materials upon delivery to confirm that they are undamaged and conform to the specification, quality, and quantity detailed in the delivery documents; and notify Company within twenty-four (24) hours of delivery of any damage, defects, or omissions with respect to Company-provided materials;
 - b. store Company-provided materials in a safe and secure manner;
 - c. track Company-provided materials at all times during the progress of the Work;
 - d. record and physically mark all Company-provided materials as the Property of Company, using Company's purchase order numbers and ERP system codes as provided by Company;
 - e. provide monthly reports of Company-provided materials held by Contractor; and

- f. assist Company in the performance of regular stock counts, and maintain records to which Company will have access.
- 10.3. Company is entitled to terminate each applicable Call-Off Order pursuant to Article 32.1.1 should Contractor fail to comply with Article 10.2.

11. HEALTH, SAFETY, AND ENVIRONMENT

- 11.1. Contractor is solely responsible for the work safety and industrial hygiene of the members of Contractor Group and their respective Personnel and Invitees in relation to the Work. Contractor shall conduct periodic audits to assure itself of satisfactory work safety and industrial hygiene, including at the request of Company, and shall provide Company with reports from such audits.
- 11.2. At all times in the performance of Work Contractor shall (and shall require that the other members of Contractor Group are to) (i) inform its and their respective Personnel and Invitees of Contractor's policies and procedures with respect to health, safety, and environmental (**HSE**) requirements, and of the hazards that might be encountered in the performance of the Work; (ii) take every appropriate precaution to actively guard against Personal Injury to persons and damage to property; and (iii) comply with Applicable Laws pertaining to work safety, industrial hygiene, and safeguarding of the environment. If such Applicable Laws do not adequately protect against hazards arising out of the particular Work, Contractor shall adopt appropriate additional practices.
- 11.3. Subject to Contractor's sole and exclusive right and duty to determine at all times whether the Work can be safely undertaken or continued, Contractor shall comply, and cause the other members of Contractor Group to comply, with Company's HSE requirements specific to each Site. Such requirements will include any mandatory wearing of appropriate personal protective equipment (e.g., hard hat, safety footwear, safety eyewear, hearing protection), all to be provided at Contractor's expense for Personnel of the members of Contractor Group.
- 11.4. Contractor is responsible for development and active implementation of an ongoing loss prevention and HSE program during the performance of the Work. Contractor shall indoctrinate all persons that will be involved in the Work in such program prior to commencement of performance of the Work. During the performance of the Work, Contractor shall:
 - a. ensure all Personnel of the members of Contractor Group have undergone appropriate HSE training before they undertake any activities at a Site;
 - b. ensure there is a stop work authority policy in place that is communicated to and made readily available to all Personnel of the members of Contractor Group, empowering them to intervene when unsafe acts, conditions or events are observed;
 - c. monitor the safety behaviours of Personnel of the members of Contractor Group;
 - d. conduct job safety analyses to evaluate and address hazards and their mitigation before any Work-related activity is undertaken, and frequent safety meetings;
 - e. perform HSE inspections of facilities and equipment before they are used in the performance of the Work, and systematically during such usage; and
 - f. ensure that equipment of the members of Contractor Group is capable of moving to all Sites contemplated under each Call-Off Order and of operating normally at such Sites. Contractor shall promptly notify Company should Contractor have sound reasons to believe that specific conditions at a Site do not permit safe operations.
- 11.5. Contractor shall comply (and shall cause its Personnel and the other members of Contractor Group and their respective Personnel to comply) with all other rules, regulations and requirements provided to Contractor by Company, including participation in safety meetings and drills as required

by Company, at any Site. As required by Company, Contractor will execute jointly with Company bridging documents that identify the respective policies and procedures of Company and Contractor to which the members of Contractor Group are to conform with regard to particular aspects of health and safety of people and safeguarding of the environment in performance of the Work.

- 11.6. If Company notifies Contractor of any noncompliance with this Article 11, Contractor shall promptly take appropriate corrective actions. If Contractor fails to do so, Company is entitled to stop any part of the Work affected by the noncompliance, as provided in Article 32.2. Such stoppage of Work provides no basis for any Claim by Contractor for extension of the time schedule for the Work or additional remuneration. Additionally, Company is entitled to terminate each applicable Call-Off Order pursuant to Article 32.1.1 if Contractor has not promptly corrected a noncompliance following Company's notification thereof.
- 11.7. Contractor shall promptly furnish Company with full reports, including all documents filed with or received from any Governmental Authority, of any environmental incidents, accidents, and near miss incidents involving any Personnel or Property of members of Contractor Group at any Site and shall cooperate with and assist Company in any investigation which Company may elect to undertake.
- 11.8. HSE Audits. Company may require Contractor to conduct self-audits and develop corrective action plans based on the findings from these. If so required, Contractor shall also provide to Company the results of such audits and progress reports on the corrective actions. Company may also conduct HSE audits on Contractor and other members of Contractor Group. Contractor shall cooperate, and ensure that other members of Contractor Group cooperate, with such audits and any resulting corrective action plans.
- 11.9. HSE Questionnaire. At Company's request Contractor shall complete and periodically update a standard Company-provided questionnaire that is to address certain health, safety, and environmental information. Information provided in such questionnaire will be evaluated by Company and Contractor, and Contractor shall address relevant findings from such evaluation in its HSE improvement plans.
- 11.10. With respect to performance of Work, Contractor shall abide by and consents to (and shall cause the other members of Contractor Group to agree to abide by and also to consent to) Company's conditions and procedures regarding alcohol, drugs, and other prohibited items, as stated in the Exhibit entitled 'Drug and Alcohol Policy' as identified in Article 1.1. **CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY CLAIMS THAT MAY ARISE OUT OF OR WITH REGARD TO THE STRICT ENFORCEMENT OF SUCH CONDITIONS, PROCEDURES, AND POLICY IN RELATION TO PERSONNEL OF ANY OF THE MEMBERS OF CONTRACTOR GROUP.**
- 11.11. Contractor shall ensure that all members of Contractor Group and their respective Personnel comply with the provisions of the Exhibits entitled 'Health, Safety, and Environment (HSE) Requirements' and 'Offshore Requirements', as identified in Article 1.1.
- 11.12. Company has established certain rules to be observed throughout its operations, and by all contractors performing work for Company and its Affiliates, with the objective of minimizing the potential for Personal Injury incidents. Contractor shall ensure that these rules, which are set out in the provision entitled 'Life Saving Rules' in the Exhibit entitled 'Health, Safety, and Environment (HSE) Requirements', as identified in Article 1.1, are communicated to and understood by all Personnel of the members of Contractor Group before they are assigned to the Work, with subsequent regular follow-up to reinforce compliance.

12. QUALITY MANAGEMENT; INSPECTIONS AND TESTS

- 12.1. Contractor shall have developed, documented, and implemented (and shall maintain) a workable and duly functioning quality management system conforming to the latest version of the ISO 9001 standard, the API Spec Q1 or Q2, or an equivalent standard which is accepted on an individual

basis by Company. Contractor shall ensure that all proposed Subcontractors have quality systems that are of similar standard.

- 12.2. For all Work, Contractor shall produce, document, maintain, and operate quality plans (ref. ISO 10005, or an equivalent standard acceptable to Company) based on the quality management system referred to in Article 12.1. Each quality plan is (i) to describe the particular Work and how it is to be performed; and (ii) to include or refer to all applicable policies, procedures, activities, qualifications, resources, and other matters relevant to the Work. Contractor shall submit the quality plan for each Call-Off Order to Company within thirty (30) days of award thereof. The procedures, as progressively issued and updated, are to address applicable Company specifications and requirements, including any specific to particular locations at which Work is to be performed.
- 12.3. Contractor's first invoice under any individual Call-Off Order does not become due and payable until Contractor has provided the quality plan for such Call-Off Order to Company. Contractor shall submit to Company controlled electronic versions of the quality manual, the quality plans, and the audit plans and keep these updated throughout the term of the Call-Off Order.
- 12.4. Contractor shall systematically (with regard to timing and scope) plan and perform audits of the quality management systems of Contractor and of other members of Contractor Group. Such audits are to be conducted according to the latest version of the ISO 19011 standard, or an equivalent standard acceptable to Company. Company has the right to participate in any such audits and to conduct its own audits of such quality management systems.
- 12.5. Contractor shall implement a management of change (MOC) system and promptly inform Company of changes in organizational structure, responsibilities, activities, resources, Subcontractors, and events that could have a material influence on Contractor's quality management system during the term of a Call-Off Order.
- 12.6.
 - a. Contractor shall carry out, as part of the Work, appropriate quality control, quality surveillance, and quality assurance activities to satisfy itself and Company that the Work conforms to all requirements of the applicable Call-Off Order. Company has the right to make its own inspections and tests to verify that all Work is being properly performed; and to reject and require rectification of any Work not conforming to the requirements of the applicable Call-Off Order. Such inspections and tests by Company may be conducted at any reasonable time at any mutually convenient place, including the premises of Contractor or any Subcontractors, and Contractor shall provide assistance requested by Company for the carrying out of such inspections and tests.
 - b. Contractor shall also supply: (i) an inspection and test plan appropriate for the scope of each Call-Off Order, setting out details of all planned inspections and tests, and (ii) copies of any licence, permit, bond, report, certificate, or other document maintained, compiled, or required by Governmental Authorities or the applicable Call-Off Order for the performance of the Work.
- 12.7. Any inspection or lack of inspection by Company does not in any manner relieve Contractor of any of its liabilities or obligations regarding the Work. Company is not liable to pay Contractor for Work found to be Defective or Nonconforming. Any payment already made by Company for Work subsequently found to be Defective or Nonconforming will not prejudice Company's right to reject such Work, have payment in respect thereof refunded, and require rectification thereof. Contractor may invoice or re-invoice Company when Defective or Nonconforming Work has been duly rectified.
- 12.8. In the event that Contractor or any Subcontractor makes the Work or any part thereof, or allows the Work or any part thereof to be made, inaccessible to Company before Company has had the

opportunity to carry out inspection or testing, Company is entitled to require Contractor to prove, at Contractor's expense, that the Work complies with the applicable Call-Off Order.

12.9. When equipment will be used in performance of Work:

- a. Contractor shall provide all equipment required for the satisfactory performance of the Work. Contractor shall maintain equipment at all times in a sound and safe operating condition with applicable and uninterrupted valid certification in accordance with Applicable Laws and the requirements of the particular Call-Off Order. Equipment is to conform to all applicable specifications.
- b. Before dispatching equipment to a Site, Contractor shall diligently inspect and test it for compliance with the applicable Call-Off Order. Contractor shall give Company at least seven (7) days' notice of when and where such tests will be performed, and Company representatives are entitled to witness such testing. No equipment is to be dispatched without such inspection or testing. Contractor shall supply Company with copies of Contractor's inspection and test certificates, certified by Contractor to be true copies. Unless otherwise specified in the applicable Call-Off Order, all inspections and testing will be at Contractor's sole cost and risk. Should the applicable Call-Off Order stipulate specific payments for particular inspections or tests, Contractor will not be paid for any such inspection or test where the equipment has failed to achieve or maintain the required standard.
- c. Contractor shall (i) take all reasonable measures to avoid equipment, during its use under the applicable Call-Off Order, requiring any repair, replacement, or overhaul; (ii) schedule any repair, replacement, or overhaul of equipment so as to avoid any negative impact on the Work; and (iii) immediately replace or repair any Defective equipment.
- d. At all times during the performance of Work, Contractor shall ensure that all certification for equipment subject to such certification to comply with Applicable Laws or the applicable Call-Off Order (such as cranes, lifting gear, and pressure vessels) is kept valid and issued less than one (1) year prior to the date of operation of such items. If Company so requests, Contractor shall provide all relevant documents and certifications as proof thereof.
- e. Company has the right to inspect equipment at any time and require replacement of any equipment found unsafe, inefficient, or Defective in any respect. Such right, whether or not Company exercises it, in no way relieves Contractor of its obligations under the applicable Call-Off Order.
- f. Contractor shall carry out testing at the applicable Site of all equipment prior to its use. Equipment intended to be utilized for the lifting of any item (including equipment, materials, or tools) is to be tested, in advance, to its maximum safe working load capacity.

13. CHANGES

- 13.1. None of the scope, pricing, or time schedule provisions of a Call-Off Order is to be modified otherwise than in accordance with the terms of this Article 13.
- 13.2. If Company wishes to add to, delete from, or otherwise modify the scope of Work as set out in a Call-Off Order, Company may present a request in writing to Contractor (each a **Change Request**), to be completed by Contractor with its assessment of the impact of the scope modification on the pricing and the time schedule for the performance of the Work. Contractor shall complete the Change Request at no extra charge to Company.
 - 13.2.1. Contractor shall provide the duly completed Change Request to Company as soon as reasonably practicable. Contractor shall promptly notify Company should Contractor be unable to provide all the requested information within five (5) business days, giving its

reasons and advising when the requested information will be provided. Contractor shall not unduly delay its presentation of the requested information to Company; and shall provide on an expedited basis any particular information that Company may reasonably require for its objective assessment of the likely impact of the subject matter of a Change Request that is under consideration.

- 13.2.2. Contractor's assessment of any impact of the proposed scope modification:
- i. on the Call-Off Order price is to be consistent with the general level of pricing of the Call-Off Order, using the same rates and prices set out in the Call-Off Order when available, otherwise rates and prices specific to the scope modification but which are demonstrably commensurate with those of the Call-Off Order; and
 - ii. on the time schedule for the performance of the Work is to be supported by proper critical path analysis.
- 13.2.3. When Company has received and assessed the completed Change Request from Contractor, Company may:
- i. decide not to proceed with the scope modification addressed in the Change Request; or
 - ii. issue to Contractor two (2) originals of a Change Order setting out the details of the desired modification to the scope of the Work, and of any impact it has on the Call-Off Order value and the time schedule for the performance of the Work.
- 13.2.4. If Contractor agrees with all the terms of the Change Order, Contractor shall sign and return the originals thereof to Company. Upon signature by Company, Company will return one (1) original to Contractor. Contractor shall promptly and diligently perform the modification to the Work in accordance with the terms of the Call-Off Order, as modified by the Change Order.
- 13.2.5. If Contractor disagrees with any of the terms of the Change Order, Contractor shall return both originals of the Change Order to Company unsigned along with a description and explanation of Contractor's objection. In no event is Contractor to modify the terms of a Change Order or sign a Change Order contingent upon any changes or other factors.
- 13.2.6. If Contractor rejects a Change Order, as provided in Article 13.2.5, Company may, at its sole discretion:
- i. decide not to proceed with the scope modification, and withdraw the Change Order; or
 - ii. modify the Change Order to address Contractor's objections (after prior discussions with Contractor, if deemed necessary, regarding such objections) and issue a revised Change Order to Contractor in accordance with Article 13.2.3(ii); or
 - iii. instruct Contractor to proceed immediately with performance of the scope modification addressed in the Change Order. Contractor shall promptly comply with such instruction, without prejudice to Contractor's rights pursuant to the dispute resolution provisions in Article 22.

13.3.

- a. Contractor may request a Change Order if Contractor in good faith believes that: (i) a direction or instruction received from Company constitutes or will require an addition to, deletion from, or other modification of the Work under the Call-Off Order; or (ii) a default by Company under the Call-Off Order has caused or will cause Contractor to perform additional work or has caused or will cause an increase in the cost or time of Contractor's performance;

or (iii) another circumstance has occurred that would entitle Contractor, as and to the extent expressly provided in this Agreement, to a Change Order. Company is entitled to reject any such request for which the basis is a direction or instruction received from Company addressing actions already required of Contractor, corrective or otherwise, under the terms of the Call-Off Order.

- b. Contractor shall issue its request for a Change Order as a Notice to Company as soon as practicable, but in any event within five (5) business days after the earlier of (i) the grounds for such request becoming known to Contractor; or (ii) the time that Contractor, exercising reasonable due diligence, should have known of the matters asserted as the basis for its request. Such Notice is to be accompanied by as much detail of the impact of such occurrence as is then available to Contractor, and Contractor shall promptly provide to Company all relevant information to substantiate Contractor's assessment, and allow Company to make its own objective assessment, of such impact as soon as reasonably practicable. If Contractor bases its request for a Change Order on a direction or instruction received from Company, Contractor shall nonetheless comply promptly with such direction or instruction.
 - c. If Company acknowledges that there are valid grounds for adjustment of any or all of the scope of Work, pricing, and time schedule set out in a Call-Off Order, these and other affected obligations of Contractor will be equitably adjusted as applicable. Such adjustments will be documented by the Parties in a Change Order pursuant to Article 13.2.
 - d. If Contractor fails to request a Change Order within five (5) business days as required by Article 13.3(b), Contractor will not be entitled to any adjustment in the pricing, time schedule for performance of the Work, or its other obligations under the applicable Call-Off Order.
- 13.4. Any Change Order will not vitiate or otherwise void the applicable Call-Off Order to any extent, and each Party hereby waives any claim or defence of substantial or cardinal change. The Change Order signed by both Parties will address the entire impact of the subject matter addressed therein, and each Party hereby waives any and all Claims for additional remuneration, time schedule adjustment, or other impact beyond that addressed in the Change Order. Specifically, but not by way of limitation, each Party hereby waives any cumulative impact Claims whatsoever.
- 13.5. Change Orders are only to be used to address (i) changes to the scope of Work and the associated pricing and time schedule provisions of a Call-Off Order; or (ii) other matters described in Article 13.3(a). Changes to a Call-Off Order may also be made by a written revision of or amendment to the Call-Off Order, each signed by the authorized signatories of both Company and Contractor.

14. PRICING, INVOICING, AND PAYMENT

- 14.1. Company will pay Contractor, in accordance with the applicable Call-Off Order, for Work properly performed. All rates and prices set out in a Call-Off Order (i) are fully inclusive and provide for Contractor's due fulfillment of all its obligations in respect of such Call-Off Order; and (ii) unless expressly provided otherwise, are to remain in effect and not be subject to change for the entire term of the Call-Off Order, and for possible limited extension of such term. Any item for which there is not a specific rate or price, or which is not otherwise expressly identified as being separately remunerable, in the applicable Call-Off Order is not chargeable to Company but deemed to have been provided for in the rates and prices set forth in the Call-Off Order.
- 14.2. Contractor shall provide its invoices, in the currency stipulated in each Call-Off Order:
- a. for Work performed on a lump sum or fixed price basis, in accordance with the timing and requirements provided in the applicable Call-Off Order; or
 - b. for Work performed on the basis of unit rates and prices, or reimbursement of substantiated actual costs, promptly after the end of each calendar month for amounts payable for Work

performed in that month, unless expressly provided otherwise in the applicable Call-Off Order.

14.3. Each invoice is to be submitted in such form, and accompanied by such supporting certification and documentation, as Company may require for verification that amounts invoiced are in conformance with the applicable Call-Off Order. Each invoice is to cite the number of this Agreement and of the applicable Call-Off Order as references, together with such other details as Company may require.

14.4.

- a. Unless otherwise provided in the applicable Call-Off Order, within thirty (30) days of Company's receipt at the delivery address designated in the Call-Off Order of each undisputed invoice that is properly presented, together with all required supporting documentation, Company will pay, or cause to be paid, the amount of the invoice. Provided, however, that when this would mean a payment falling due on a day when either Company's bank or Contractor's bank is not open, such payment will not be due until the next business day when both banks are open. Subject to the foregoing, the value date stipulated in Company's payment instruction to its bank will be construed as the actual date of payment.
- b. If Contractor provides an invoice more than ninety (90) days after the time of performance of the particular Work to which such invoice relates, Company is not liable, to the extent permitted by Applicable Laws, to pay Contractor or any other member of Contractor Group for the performance of the Work covered by such invoice. Contractor hereby fully releases and discharges Company from any liability related to such late-presented invoices. Provided, however, that this provision does not apply to invoices that Contractor presents after such 90-day period in regard to final settlement of disputes in relation to amounts originally invoiced before the end of such 90-day period.
- c. Company will inform Contractor promptly if Company disputes any invoice, in whole or in part. As required by Company, Contractor shall issue a new invoice for the undisputed portion or issue a credit note to allow for payment of the undisputed portion of the invoice while the dispute over the remaining part is resolved. Contractor's issuance of such new invoice or credit note is not to be construed as Contractor's admission that Company was necessarily correct in disputing the original invoice. The invoice payment period set out in Article 14.4(a) will be measured from Company's receipt of the new invoice or credit note. Company and Contractor will endeavour in good faith to resolve the dispute without undue delay. Notwithstanding the foregoing provisions of this Article 14.4, Contractor shall invoice and Company will pay any further amount due to Contractor pursuant to such resolution as soon as practicable.
- d. In the event that payment by Company of any Contractor invoice that is undisputed, and properly presented with all required supporting documentation as required by this Agreement, is delayed solely for reasons within Company's responsibility, Contractor may invoice Company for interest for the period of delay. In such event the annual interest rate that would apply to the delayed payment will not be greater than the Norges Bank 'styringsrente' plus two hundred basis points (two percentage points), and the applicable interest would be calculated as follows:

$$\text{Interest amount} = \text{Delayed payment amount} \times \frac{\text{Applicable annual interest rate} \times \text{Number of days by which payment was delayed}}{365}$$

14.5. Company has the right to deduct from or set off against sums due to Contractor any sums rightfully due and owing to Company from Contractor for any reason. Company will endeavour to advise Contractor of such deduction or set-off, providing its reasons for such action.

- 14.6. Any payments made by Company do not prevent Company from filing Claims or prejudice its right to recover the amount of any such Claims, however or whenever they may have arisen. Without limiting the type or nature of such Claims, Company may recover any sums paid to Contractor by mistake of law or fact. Payments are not to be construed as acceptance or evidence of approval of Work.
- 14.7.
- a. Company has implemented automated electronic requisition-to-pay (R2P) processes for the submission and payment of invoices. These processes require submission of invoices electronically through Company's designated eCommerce web portal or EDI/ XML direct connection. Several methods are permitted and technical specifications are available from Company upon request. Contractor shall make every reasonable endeavour to elect a permitted method of electronic invoice submission and submit all invoices accordingly.
 - b. To enable Company to set up complete and accurate pricing details for Call-Off Orders in Company's enterprise resource planning (ERP) system, Contractor shall share price and catalog files, either through a Company-formatted spreadsheet (ZPRICE). The file sharing would be for the purposes of (i) creating the initial Outline Agreement (OLA) pricing details in Company's ERP system; and (ii) subsequent updating. Contractor shall provide updated pricing information not less than two (2) weeks in advance of the intended effective date thereof. The file sharing is to include Contractor's service or material numbers to be used (i) by Contractor in invoicing and (ii) by Company to update its own internal price controls.
 - c. In accordance with its election pursuant to Article 14.7(a), Contractor shall prepare and submit detailed invoices electronically referencing the applicable ERP system purchasing document, service order numbers and ERP system service order lines, all as advised by Company. Supporting documentation (e.g., time sheets; third party invoices, etc.), as required by the Call-Off Order or reasonably requested by Company, is to be scanned and included with the electronically submitted invoice. Contractor shall submit invoices and associated scanned back-up and supporting documentation using the selected electronic invoice submission method. This scanned supporting documentation is to be provided in a mutually agreed upon format (e.g., PDF).
 - d. Company may request Contractor to supply detailed information for the complete range of materials, services, and other items that Contractor might provide to Company in relation to Call-Off Orders, including cross-referencing of Contractor's part/ service numbers to the corresponding Company material/ service master numbers, and other data fields (such as material specifications).
 - e. Contractor may check the status of invoices and payments on Company's Vendor Invoice Status (VIS) system.
- 14.8. In addition, Company may grant Contractor, in its sole discretion, direct electronic access to Company's ERP system. Such direct access, if granted, depends on Contractor meeting and continuing to meet all security requirements deemed appropriate by Company. Failure by Contractor to meet any such security requirements will result in Contractor being denied direct access to Company's ERP system.
- 14.9. Should Contractor procure any items at Company's request on a reimbursable basis, Company will reimburse Contractor for the actual cost of such items, less any cash, volume, or other discounts, rebates, and allowances to which Contractor may be entitled, plus such handling charge, if any, addressed in the pricing provisions of the applicable Call-Off Order. Contractor shall furnish Company with copies of the third-party invoices covering such items as well as an accounting of any discounts, rebates, and allowances related thereto.
- 14.10. Notwithstanding any separate pricing provisions for personnel and equipment that Contractor assigns for the performance of Work, if Work:

- a. is unable to proceed for reasons within Contractor's responsibility under any Call-Off Order, owing to unavailability, breakdown, or repair or non-routine servicing of equipment of any of the members of Contractor Group; or lack of personnel of any of the members of Contractor Group; or concerns with regard to any unsafe act or failure or failure to act on the part of personnel of any of the members of Contractor Group; no payment will be due from Company in respect of each Call-Off Order thereby affected and under which Work is unable to proceed; or
- b. is only able to proceed at reduced efficiency owing to such matters as equipment of any of the members of Contractor Group not operating to its performance specification; or shortage of personnel of any of the members of Contractor Group; payments otherwise due to Contractor under any each Call-Off Order thereby affected will be subject to adjustment commensurate with the reduction in efficiency.

15. TAXES

15.1.

- a. Contractor is responsible and liable for all proper and timely reporting, filing, and payments with regard to any and all Taxes. Contractor shall provide to Company, on request, substantiation certified by Contractor's external auditor that Contractor is fully up to date with its reporting, filing, and payments as aforementioned, and in good standing with applicable Governmental Authorities in such regard.
- b. **CONTRACTOR SHALL INDEMNIFY COMPANY AND COMPANY'S AFFILIATES AND COVENTURERS FROM AND AGAINST ANY AND ALL CLAIMS FOR PAYMENT OF TAXES MADE DIRECTLY OR INDIRECTLY AGAINST COMPANY OR COMPANY'S AFFILIATES OR COVENTURERS OR AGAINST ANY OF THE MEMBERS OF CONTRACTOR GROUP BY ANY TAXING GOVERNMENTAL AUTHORITIES CLAIMING JURISDICTION OVER (I) ANY OF THE MEMBERS OF CONTRACTOR GROUP OR ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, OR PERSONNEL; (II) THIS AGREEMENT; OR (III) ANY CALL-OFF ORDER.**
- c. Except for those Taxes addressed in Article 15.3, Contractor is deemed to have taken full account in the rates, prices, and mark-ups for each Call-Off Order of all applicable Taxes, including withholding Taxes, for which Contractor is liable under this Article 15.1 or Article 15.2. Company has no responsibility to remunerate Contractor separately for any such Taxes, nor for any subsequent changes to such Taxes.

15.2.

- a. Company has the right to withhold from sums otherwise due to Contractor any Taxes or other amounts required by Applicable Laws to be withheld, if it is directed by a Governmental Authority to do so, and Company will pay such Taxes or other amounts to the appropriate taxing Governmental Authorities when due. Company will use reasonable efforts to secure and provide Contractor with available Governmental Authority receipts evidencing payment of Taxes so withheld.
- b. When such reasonable efforts to secure Governmental Authority receipts are unsuccessful, Company will provide to Contractor the following: (i) a written statement indicating that no Governmental Authority receipt was available from the applicable taxing jurisdiction after reasonable efforts to secure same; and (ii) copies of such other available Company documentation supporting the payment of sums withheld, including: (A) the reference numbers for the relevant invoices involved; (B) the amount of Taxes withheld from each such invoice and remitted by Company on behalf of Contractor; (C) the date the applicable Taxes were remitted to the Governmental Authority; and, where available, (D) copies of instruments of withholding Tax remittance.
- c. Should Contractor claim exemption from such withholding, Contractor shall provide Company with all evidence from the applicable Governmental Authority as may be required by

Applicable Laws and Company to substantiate that Company is not required to withhold the applicable amounts from payments to Contractor. Contractor is solely liable for all Taxes or other amounts withheld pursuant to this Article 15.2, and Company has no obligation to reimburse Contractor for any such Taxes or other amounts withheld.

- 15.3. Subject to Article 15.4, invoiced amounts due by Company to Contractor under any Call-Off Order are subject to such value added, sales and use, goods and services, excise, and other similar Taxes that Contractor is obligated by Applicable Laws and duly authorized by applicable Governmental Authorities to charge. Contractor shall separately identify and clearly describe any such Taxes on its applicable invoices, and Company will pay such amounts to Contractor in addition to the remuneration set out in the applicable Call-Off Order. Contractor shall make all reasonable efforts to minimize its liability to pay and to recover from Company any value added or other aforementioned Taxes which may be assessed on payments under any Call-Off Order. Contractor shall cooperate fully with Company in any reasonable and lawful effort by Company to reduce or eliminate any such valued added or other aforementioned Taxes for which Company may be liable in relation to a Call-Off Order.
- 15.4. Contractor shall not charge to Company, nor seek reimbursement from Company of, any value added, sales and use, goods and services, or any similar Taxes charged directly or indirectly to Contractor by any Subcontractor, and no such Taxes are subject to remuneration by Company. Applicable Taxes with respect to all goods, services, and other items used by members of Contractor Group in, or incidental to, performance of the Work are to be (i) paid by Contractor either to the pertinent Subcontractors or directly to the appropriate taxing Governmental Authorities; and (ii) neither charged to nor subject to reimbursement by Company.
- 15.5. Contractor shall pay all Taxes applicable to the wages of its Personnel, and shall ensure that the other members of Contractor Group pay all Taxes applicable to the wages of their respective personnel.
- 15.6. Reporting of Tax Information

Contractor shall comply with the Norwegian Tax Assessment Act of May 27, 2016 ('Skatteforvaltningsloven') and appurtenant regulations passed by the Ministry of Finance with respect to the duty to report companies or self-employed persons resident abroad who are given assignments in Norway or on the Norwegian continental shelf (Regulation No.1360, 23 November 2016, as amended).

16. OWNERSHIP OF WORK PRODUCT AND DEVELOPMENTS

- 16.1. Notwithstanding Articles 16.3 and 16.4, Contractor (as between Company and Contractor) retains ownership of all proprietary intellectual property rights owned by Contractor and developed by it prior to the effective date of the Call-Off Order for which such intellectual property is employed and outside of the performance of any work for Company or Company's Affiliates. Nothing in this Article 16 is to result in a transfer of ownership of any such proprietary intellectual property rights.
- 16.2. As used herein, **Work Product** means all results of Work and any and all data, test results, documents, charts, reports, drawings, specifications, records, computer files, or other manifestations of efforts of any of the members of Contractor Group, regardless of their form, prepared or created pursuant to a Call-Off Order, including drafts. Work Product expressly includes all information in relation to wellbore, production, reservoir, geology, and formations encountered in the well.
- 16.3. Title to any Work Product vests exclusively in Company, and all copyright and other intellectual property rights in respect of any Work Product belong exclusively to Company as of the date of the creation of such Work Product. Contractor hereby assigns to Company as of the time of creation of the Work Product, without any requirement of further consideration, any right, title, or interest Contractor may have in such Work Product. Upon request of Company, Contractor shall take such

further actions, including execution and delivery of declarations, instruments of conveyance, and the like, for any applications or registrations for which Company may, at its expense, apply and as may be appropriate to give full and proper effect to any such assignments.

- 16.4. Any and all ideas, concepts, techniques, processes, improvements, and inventions, whether patentable or not, that are based upon Company proprietary information are solely and exclusively the property of Company. Contractor shall promptly provide to Company a full written disclosure of any such ideas, concepts, techniques, processes, improvements, and inventions. Both during the term of the applicable Call-Off Order and after its termination or expiration, Contractor shall execute all papers, including documents related to domestic and foreign patent applications and invention assignments, and otherwise assist Company as reasonably requested to perfect in Company the rights, title, and other interests in such ideas, concepts, techniques, processes, improvements, and inventions, as well as to obtain and enforce patents derived from such applications.
- 16.5. Contractor hereby grants to Company and Company's Affiliates an irrevocable, perpetual, and royalty-free license to use, disclose, modify, and copy Contractor proprietary intellectual property relating to the Work Product reasonably as necessary for training or for repairing, replacing, expanding, completing, or modifying any part of the Work Product in the ordinary conduct of business of Company or its Affiliates. Such license includes the right for Company (i) to assign its rights, without need for Contractor's consent, to any purchaser of an interest in all or part of any asset owned solely or jointly by Company related to the Work Product; and (ii) to sublicense to any of Company's Affiliates or Coventurers in relation to the Work Product.
- 16.6. All of Contractor's subcontracts are to contain, and Contractor shall require Subcontractors to ensure that their subcontracts contain, provisions consistent with this Article 16 so that Subcontractors have the same obligations to Company as does Contractor with regard to the subject matter of this Article 16.

17. TITLE

- 17.1. Contractor warrants and guarantees that legal title to and ownership of all constituents of the Work are free and clear of any and all liens, Claims, security interests, or other encumbrances when title to such items passes to Company.
- 17.2. Title to all or any portion of the Work (except as provided in Articles 16.3 and 17.3) passes to Company upon the earlier to occur of: (i) progressive performance of the Work; or (ii) any payment by or on behalf of Company for such performance.
- 17.3. Title to all or any portion of Goods passes to Company upon the earlier to occur of: (i) identification of Goods or any raw materials or components thereof to the relevant Call-Off Order; (ii) any payment by or on behalf of Company for such items; (iii) tender of Goods to the applicable transportation provider for delivery in accordance with the terms of the Call-Off Order; or (iv) incorporation of Goods into a Company facility. Transfer of title is without prejudice to Company's right to reject Defective or Nonconforming Goods or to any other right or obligation of either Party provided in the applicable Call-Off Order. Title to Goods rejected by Company reverts to Contractor.
- 17.4. Contractor shall clearly identify Goods or constituents thereof as the property of Company by visibly marking or tagging them in a manner reasonably acceptable to Company. Contractor shall segregate Goods and constituents thereof, to the extent possible, from materials, work, goods, and equipment owned by Contractor or by other persons. Company has the right to inspect and verify, at Company's option, that Goods and constituents thereof have been properly identified as Company's property and segregated as required by Company.
- 17.5. When a Call-Off Order provides for the sale by Contractor to Company of chemicals and other consumable substances that any member of Contractor Group will itself use in the performance of

the Work and which will thereby be dissipated or spent, the provisions of Articles 17.3 and 17.4 in respect of Goods apply similarly, *mutatis mutandis*, to such items. The Call-Off Order will address any applicable consignment, buy-back, and other agreed arrangements in respect of such items.

18. RISK STRUCTURE

18.1. Personnel

18.1.1. Personnel of Company Group

COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST ANY AND ALL CLAIMS ARISING OUT OF OR RELATED IN ANY WAY TO PERSONAL INJURY OF OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES OF ANY OF THE MEMBERS OF COMPANY GROUP OCCURRING IN CONNECTION WITH THIS AGREEMENT, ANY CALL-OFF ORDER, OR PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER, REGARDLESS OF THE TIMING OR NATURE OR STYLE OF SUCH CLAIMS AND REGARDLESS OF THE IDENTITY OF THE CLAIMANT, INCLUDING SUCH OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES THEMSELVES AND THEIR RESPECTIVE REPRESENTATIVES, AGENTS, HEIRS, BENEFICIARIES, ASSIGNS, AND FAMILY MEMBERS.

18.1.2. Personnel of Contractor Group

CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS ARISING OUT OF OR RELATED IN ANY WAY TO PERSONAL INJURY OF OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OCCURRING IN CONNECTION WITH THIS AGREEMENT, ANY CALL-OFF ORDER, OR PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER, REGARDLESS OF THE TIMING OR NATURE OR STYLE OF SUCH CLAIMS AND REGARDLESS OF THE IDENTITY OF THE CLAIMANT, INCLUDING SUCH OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES THEMSELVES AND THEIR RESPECTIVE REPRESENTATIVES, AGENTS, HEIRS, BENEFICIARIES, ASSIGNS, AND FAMILY MEMBERS.

18.2. Property

18.2.1. Property of Contractor Group

EXCEPT AS PROVIDED IN ARTICLE 18.7.1, CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS AND RIGHTS AGAINST ANY OF THE MEMBERS OF COMPANY GROUP ARISING OUT OF OR RELATED IN ANY WAY TO PHYSICAL DAMAGE TO OR LOSS OF PROPERTY OF CONTRACTOR AND OF THE OTHER MEMBERS OF CONTRACTOR GROUP AND OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, AND INVITEES, INCLUDING ENVIRONMENTAL CONTAMINATION OF SUCH PROPERTY, OCCURRING IN CONNECTION WITH THIS AGREEMENT, ANY CALL-OFF ORDER, OR PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER.

18.2.2. Property of Company Group

- a. EXCEPT AS PROVIDED IN ARTICLES 18.2.2(b) AND 18.2.3 AND WITHOUT PREJUDICE TO CONTRACTOR'S WARRANTY-RELATED OBLIGATIONS UNDER ARTICLE 20, COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST ANY AND ALL CLAIMS AND RIGHTS AGAINST ANY OF THE MEMBERS OF CONTRACTOR GROUP ARISING OUT OF OR RELATED IN ANY WAY TO PHYSICAL DAMAGE TO OR LOSS OF PROPERTY OF COMPANY AND OF THE OTHER MEMBERS OF COMPANY GROUP AND OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, AND INVITEES, INCLUDING ENVIRONMENTAL CONTAMINATION OF SUCH PROPERTY, OCCURRING IN CONNECTION WITH THIS AGREEMENT, ANY CALL-OFF ORDER, OR PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER.**

- b. **SUBJECT TO ARTICLES 18.7.2 AND 18.7.4, CONTRACTOR IS LIABLE FOR AND SHALL INDEMNIFY COMPANY AND COMPANY'S AFFILIATES AND COVENTURERS FROM AND AGAINST ANY AND ALL CLAIMS ARISING OUT OF OR RELATED IN ANY WAY TO PHYSICAL DAMAGE TO OR LOSS OF PROPERTY OF COMPANY OR OF COMPANY'S AFFILIATES OR OF COVENTURERS, INCLUDING ENVIRONMENTAL CONTAMINATION OF ANY SUCH PROPERTY, OCCURRING IN CONNECTION WITH PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER TO THE EXTENT THAT SUCH DAMAGE OR LOSS RESULTS FROM OR ARISES OUT OF THE LEGAL FAULT OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR OF ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES. PROVIDED, HOWEVER, THAT:**
 - i. **CONTRACTOR'S MAXIMUM LIABILITY FOR SUCH DAMAGE OR LOSS IS NOT TO EXCEED ONE MILLION UNITED STATES DOLLARS (US\$1,000,000) PER OCCURRENCE; AND, SUBJECT TO CONTRACTOR FULFILLING SUCH INDEMNIFICATION OBLIGATION, COMPANY SHALL INDEMNIFY THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST CLAIMS IN RESPECT OF SUCH DAMAGE OR LOSS TO THE EXTENT THEY EXCEED ONE MILLION UNITED STATES DOLLARS (US\$1,000,000) PER OCCURRENCE; AND, NOTWITHSTANDING THE FOREGOING,**
 - ii. **THIS ARTICLE 18.2.2(b) DOES NOT LIMIT ANY LIABILITY OF CONTRACTOR PURSUANT TO ITS WARRANTY-RELATED OBLIGATIONS SET OUT IN ARTICLE 20.**

18.2.3. Goods and Consumable Commodities

NOTWITHSTANDING THE PASSAGE OF TITLE TO COMPANY AS PROVIDED IN ARTICLES 17.3 AND 17.5, RISK OF LOSS OF OR DAMAGE TO:

- a. **GOODS REMAINS WITH CONTRACTOR UNTIL DELIVERY AND ACCEPTANCE OF THE GOODS IN ACCORDANCE WITH THE TERMS OF THE APPLICABLE CALL-OFF ORDER. UPON SUCH DELIVERY AND ACCEPTANCE, COMPANY WILL ASSUME RISK IN THE GOODS; SUBJECT, HOWEVER, TO THE RISK ALLOCATIONS IN ARTICLE 18.2.2, INCLUDING WITH RESPECT TO CONTRACTOR'S WARRANTY-RELATED OBLIGATIONS UNDER ARTICLE 20; AND**
- b. **CONTRACTOR-PROVIDED CHEMICALS AND OTHER COMMODITIES THAT WILL BE CONSUMED, DISSIPATED, OR SPENT IN THE PERFORMANCE OF WORK REMAINS WITH CONTRACTOR UNTIL SUCH COMMODITIES HAVE BEEN (I) DELIVERED INTO THE CUSTODY AND CONTROL OF COMPANY OR OF ANY OTHER MEMBER OF COMPANY GROUP; OR (II) USED FOR THEIR INTENDED PURPOSE IN THE PERFORMANCE OF THE WORK; WHICHEVER FIRST OCCURS.**

18.3. Pollution

- 18.3.1. **EXCEPT AS PROVIDED IN ARTICLES 18.1 AND 18.2 AND SUBJECT TO ARTICLE 18.5.9, CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS ARISING OUT OF OR ATTRIBUTABLE TO POLLUTION OR CONTAMINATION (INCLUDING CONTROL, CONTAINMENT, CLEAN-UP, AND REMOVAL THEREOF) TO THE EXTENT THAT (I) THE POLLUTING OR CONTAMINATING MATERIAL IS DISCHARGED, ESCAPES, OR EMANATES FROM ANY PROPERTY OF COMPANY OR OF COMPANY'S AFFILIATES OR OF COVENTURERS (INCLUDING FROM THE WELL AND ANY GEOLOGICAL FORMATION OR STRATUM, OR OIL OR GAS RESERVOIR, WHICH IS THE SUBJECT OF THE WORK OR TO WHICH THE WORK RELATES); AND (II) SUCH DISCHARGE, ESCAPE, OR EMANATION ARISES OUT OF OR RESULTS FROM THE LEGAL FAULT OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR OF ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES. PROVIDED, HOWEVER, THAT CONTRACTOR'S MAXIMUM LIABILITY FOR SUCH CLAIMS IS NOT TO EXCEED FIVE MILLION UNITED STATES DOLLARS (US\$5,000,000) PER OCCURRENCE; AND, SUBJECT TO CONTRACTOR FULFILLING SUCH INDEMNIFICATION OBLIGATION, COMPANY SHALL INDEMNIFY THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST SUCH CLAIMS TO THE**

EXTENT THEY EXCEED FIVE MILLION UNITED STATES DOLLARS (US\$5,000,000) PER OCCURRENCE.

18.3.2. **IN ADDITION TO THE OBLIGATIONS UNDER ARTICLE 18.3.1, EXCEPT AS PROVIDED IN ARTICLES 18.1 AND 18.2 CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS ARISING OUT OF OR ATTRIBUTABLE TO POLLUTION OR CONTAMINATION (INCLUDING CONTROL, CONTAINMENT, CLEAN-UP, AND REMOVAL THEREOF) OCCURRING IN CONNECTION WITH PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER TO THE EXTENT THAT THE POLLUTING OR CONTAMINATING MATERIAL IS DISCHARGED, ESCAPES, OR EMANATES FROM PROPERTY OF ANY OF THE MEMBERS OF CONTRACTOR GROUP.**

18.3.3. Initiation of clean-up operations by either Party is not to be construed as an admission or assumption of liability by such Party.

18.3.4. It is the express intent of the Parties that in the event the application of Articles 18.3.1 and 18.3.2 to prosecutions, fines, penalties, or other actions maintained or imposed by any Governmental Authority is determined to be void or unenforceable, such provisions and the obligations therein nevertheless apply to all other Claims.

18.4. Consequential Loss

18.4.1. **THE MEMBERS OF CONTRACTOR GROUP ARE NOT LIABLE TO ANY OF THE MEMBERS OF COMPANY GROUP FOR, AND COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST, ANY CONSEQUENTIAL LOSS SUFFERED BY ANY OF THE MEMBERS OF COMPANY GROUP RESULTING FROM OR ARISING OUT OF OR OCCURRING IN CONNECTION WITH THIS AGREEMENT, ANY CALL-OFF ORDER, OR PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER.**

18.4.2. **THE MEMBERS OF COMPANY GROUP ARE NOT LIABLE TO ANY OF THE MEMBERS OF CONTRACTOR GROUP FOR, AND CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST, ANY CONSEQUENTIAL LOSS SUFFERED BY ANY OF THE MEMBERS OF CONTRACTOR GROUP RESULTING FROM OR ARISING OUT OF OR OCCURRING IN CONNECTION WITH THIS AGREEMENT, ANY CALL-OFF ORDER, OR PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER.**

18.5. General

18.5.1. Applicability

EXCEPT TO THE EXTENT EXPRESSLY PROVIDED OTHERWISE IN THIS ARTICLE 18 OR ARTICLE 20, ANY INDEMNIFICATION GRANTED IN THIS ARTICLE 18 IS TO APPLY AND BE ENFORCEABLE:

- a. **WITH RESPECT TO ANY LOSS, DAMAGE, PERSONAL INJURY, POLLUTION, OR CONSEQUENTIAL LOSS WHICH ACTUALLY OR ALLEGEDLY OCCURS OR IS CAUSED DURING OR RESULTS FROM OR ARISES OUT OF THE PERFORMANCE OF THE WORK UNDER ANY CALL-OFF ORDER (WHETHER DIRECTLY OR INDIRECTLY IN RELATION THERETO), OR WHICH OCCURS AT ANY PLACE RELATED TO THE WORK WHERE OFFICERS, DIRECTORS, PERSONNEL, OR PROPERTY OF ANY OF THE MEMBERS OF COMPANY GROUP OR OF ANY OF THE MEMBERS OF CONTRACTOR GROUP ARE LOCATED BY REASON OF THE PERFORMANCE OF ANY CALL-OFF ORDER, INCLUDING GOING TO OR FROM ANY SITE;**
- b. **EVEN IF THE LOSS, DAMAGE, PERSONAL INJURY, POLLUTION, OR CONSEQUENTIAL LOSS THAT IS THE SUBJECT OF SUCH INDEMNIFICATION ACTUALLY OR ALLEGEDLY IS CAUSED BY OR RESULTS FROM NEGLIGENCE, BREACH OF CONTRACT OR WARRANTY, OR STRICT LIABILITY OF THE INDEMNITEE; AND**

- c. REGARDLESS OF WHETHER A CLAIM IS BASED UPON (i) COMMON LAW, CIVIL LAW, MARITIME LAW, OR STATUTE; (ii) CONTRACTUAL OBLIGATIONS BETWEEN THE INDEMNITEE AND ANOTHER PERSON; (iii) OPERATION OF APPLICABLE LAWS REQUIRING THE INDEMNITEE TO MAKE A CONTRIBUTION IN RESPECT OF A CLAIM BY ANOTHER PERSON; OR (iv) ANY OTHER THEORY OF LEGAL LIABILITY.

- 18.5.2. Company Group and Contractor Group. THE INDEMNIFICATIONS BY COMPANY IN FAVOUR OF THE MEMBERS OF CONTRACTOR GROUP IN THIS AGREEMENT INCLUDE INDEMNIFICATION AGAINST CLAIMS MADE AGAINST ANY OF THE OFFICERS, DIRECTORS, OR PERSONNEL OF THE MEMBERS OF CONTRACTOR GROUP WHEN SUCH PERSONS ARE ACTING WITHIN THE COURSE AND SCOPE OF THEIR EMPLOYMENT OR ENGAGEMENT WITH AND ON BEHALF OF THE RESPECTIVE MEMBERS OF CONTRACTOR GROUP. THE INDEMNIFICATIONS BY CONTRACTOR IN FAVOUR OF THE MEMBERS OF COMPANY GROUP IN THIS AGREEMENT INCLUDE INDEMNIFICATION AGAINST CLAIMS MADE AGAINST ANY OF THE OFFICERS, DIRECTORS, OR PERSONNEL OF THE MEMBERS OF COMPANY GROUP WHEN SUCH PERSONS ARE ACTING WITHIN THE COURSE AND SCOPE OF THEIR EMPLOYMENT OR ENGAGEMENT WITH AND ON BEHALF OF THE RESPECTIVE MEMBERS OF COMPANY GROUP.
- 18.5.3. Subcontracting. In the event Contractor subcontracts any of the Work under any Call-Off Order, such subcontracts are to contain Indemnification and Consequential Loss and waiver of subrogation provisions equivalent to those set forth in this Article 18, elsewhere in this Agreement, and in Article 19, whereby the Subcontractors undertake the same obligations and duties for the benefit of the members of Company Group as does Contractor. With regard to any subcontract not containing such equivalent provisions, the officers, directors, Personnel, Invitees, and Property of the Subcontractor are deemed, for purposes of this Article 18 and Article 19, to be officers, directors, Personnel, Invitees, and Property of Contractor. Additionally, in the event subcontracts contain Indemnification and waiver of subrogation provisions in favour of or for the benefit of the members of Company Group, Contractor shall take such steps as may be requested by Company to enforce such provisions on behalf of the members of Company Group.
- 18.5.4. Enforceability of Provisions. If any provision contained in this Article 18 in favour of Company or any of the other members of Company Group is determined by a court or other authority of competent jurisdiction to be void or unenforceable, in whole or in part, or is adjusted in accordance with other provisions of this Agreement or by actions of a court or other authority of competent jurisdiction, the similar provision in favour of Contractor or any of the other members of Contractor Group is to be rendered void or unenforceable or to be adjusted to the same degree. If any provision contained in this Article 18 in favour of Contractor or any of the other members of Contractor Group is determined by a court or other authority of competent jurisdiction to be void or unenforceable, in whole or in part, or is adjusted in accordance with other provisions of this Agreement or by actions of a court or other authority of competent jurisdiction, the similar provision in favour of Company or any of the other members of Company Group is to be rendered void or unenforceable or to be adjusted to the same degree.
- 18.5.5. Not Affect Other Obligations. Contractor's obligations under, and Indemnities in favour of Contractor in, this Article 18 are not intended to and do not reduce, terminate, supersede, or otherwise affect (nor be construed as inconsistent with) Contractor's responsibilities, duties, and obligations pursuant to other provisions of this Agreement, expressly including Contractor's warranty-related obligations set out in Article 20.
- 18.5.6. No Limitation. The obligations under this Article 18 (i) are independent of and in addition to any other provisions of this Agreement, including the requirements of Article 19; and (ii) are not to be prejudiced, reduced, or limited by any insurance coverage that Contractor is required to maintain pursuant to Article 19, by operation of law or otherwise, or by any insurance that Contractor actually maintains. Additionally, any enforcement or

failure to enforce any of the obligations related to insurance does not prejudice, reduce, or limit the obligations contained in this Article 18.

18.5.7. Defence

- a. In the event of any Claim against any of the members of Company Group or their respective officers, directors, or Personnel, or against any of the members of Contractor Group or their respective officers, directors, or Personnel, for which Indemnification may be claimed from Contractor or Company respectively, the Indemnifying Party is to be informed promptly thereof by the other Party. No such Claim is to be settled without the approval of the Indemnifying Party. After it has been notified of any such Claim, the Indemnifying Party will assume the defence thereof, at its sole expense.
- b. Contractor shall defend any litigation or administrative or adversarial proceeding against any of the members of Company Group or their respective officers, directors, or Personnel relating to any Claim from and against which Contractor has agreed to Indemnify the members of Company Group and their respective officers, directors, and Personnel. Each applicable member of Company Group has the right, at its discretion, to select or approve the counsel to be engaged by Contractor to defend such member.
- c. Company shall defend any litigation or administrative or adversarial proceeding against any of the members of Contractor Group or their respective officers, directors, or Personnel relating to any Claim from and against which Company has agreed to Indemnify the members of Contractor Group and their respective officers, directors, and Personnel. Each applicable member of Contractor Group has the right, at its discretion, to select or approve the counsel to be engaged by Company to defend such member.
- d. Without prejudicing its right to the defence obligations set out in Article 18.5.7(b) or Article 18.5.7(c), an Indemnitee may participate, at its own expense, in its defence conducted by its Indemnitor.

18.5.8. Maritime Act. Notwithstanding any lower limits that might be applied under the Norwegian Maritime Act of 24 June 1994 No. 39 ('Lov om sjøfarten') or any similar legislation that might affect the Indemnities granted by Contractor to the members of Company Group in this Agreement, Contractor expressly waives any and all right it may have to rely on any such lower limits of liability under the Maritime Act and any similar legislation that could affect such Indemnities. Contractor is entitled to rely on the Maritime Act or any similar legislation in respect of any Claim against Contractor from any Third Party (as defined in Article 18.8.1).

18.5.9. Pollution Liability under Mandatory Norwegian Law. The liabilities and Indemnities relating to pollution in this Agreement are applicable to the extent permitted under mandatory Norwegian law, including the Norwegian Petroleum Act of 29 November 1996 No. 72 ('Lov om petroleumsvirksomhet') Chapter 7.

18.6. Debris Removal

- 18.6.1. If any equipment, material, or other Property of any of the members of Contractor Group becomes an actual, constructive, compromised, or arranged total loss which causes an obstruction to operations of any of the members of Company Group; or if any of the members of Company Group or of Contractor Group is or are required by Applicable Laws or any Governmental Authority to remove such equipment, material, or other property; Contractor shall diligently, without delay and at its cost, remove such equipment, material, or other property, or have it removed, so that there is (i) no such

obstruction and (ii) due compliance with the requirements of Applicable Laws and any applicable Governmental Authority.

- 18.6.2. Contractor is (i) responsible for the removal and disposition, as required by Company, of any debris associated with property damage for which Contractor is liable under Article 18.2.2; and (ii) liable, subject to Article 18.2.2(d), for the costs of such removal and disposition.
- 18.6.3. If Contractor delays in removing, or having removed, (i) such equipment, material, or other property addressed in Article 18.6.1 or (ii) such debris addressed in Article 18.6.2, Company may remove it, or have it removed; and Contractor shall Indemnify and reimburse Company for all costs, expenses, and liability related thereto, subject to Article 18.2.2(d) with respect to debris addressed in Article 18.6.2.

18.7. Well-Related Work

18.7.1. Contractor Group's Downhole Equipment.

- a. If physical loss or damage (including to the extent that repair is impractical or uneconomic) occurs to equipment of any of the members of Contractor Group while such equipment is inside the wellbore or in the drill string below the rotary table and to the extent such loss or damage is not caused by or the result, directly or indirectly, of a Defect or Nonconformity in such equipment, normal wear and tear, or Legal Fault of any of the members of Contractor Group or of their respective officers, directors, Personnel, or Invitees, Company will reimburse Contractor for such lost or damaged equipment at the applicable proportion of the lesser of: (i) the cost of repair of the equipment; or (ii) the original cost of such equipment reduced by the percentage of such cost set forth in the following adjustment table; and in either case further reduced by any proceeds, from insurance or otherwise, to which any of the members of Contractor Group is entitled or which it otherwise receives with respect to such lost or damaged equipment:

ADJUSTMENT TABLE

Age of Equipment at Date of Loss/ Period since last full Refurbishment to 'as new' Condition	Reduction Percentage
Up to 1 Year	10%
More than 1 and up to 2 Years	20%
More than 2 and up to 3 Years	30%
More than 3 and up to 4 Years	40%
More than 4 Years	50%

- b. Any Claim by Contractor to Company pursuant to this Article 18.7.1 is to be supported by documentary evidence of purchase price and first usage of the lost or damaged equipment. If the age of such lost or damaged equipment cannot be adequately documented by Contractor, it will be presumed to be more than four (4) years old.
- c. Company retains the right to replace the lost or damaged equipment with 'like' equipment rather than paying Contractor the adjusted cost as set out in this Article 18.7.1. 'Like' equipment is defined as equipment similar in quality and appearance to lost or damaged equipment of any of the members of Contractor Group and that meets API specifications.
- d. When equipment is declared abandoned or damaged beyond repair or to the extent that repair is impractical or uneconomic, any rental charges for such

equipment are to cease immediately. No rental charges are to apply while damaged items are being evaluated and repaired. In the event such evaluation concludes that the equipment is damaged beyond repair, or that repair is not economically viable, no rental charges are to apply from the time the damage occurred.

- e. At all times Company has the sole right to decide whether and for how long fishing operations are to be conducted for any equipment of any of the members of Contractor Group lost or lodged in a well. Should Company decide to conduct such fishing operations, Company will control and be liable for the cost of operations attempting to fish such lost or lodged equipment. Provided, however, to the extent that the loss or lodging was due to the Legal Fault of any of the members of Contractor Group or of their respective, officers, directors, Personnel, or Invitees, there are to be no rental charges for the lost or lodged equipment from the time of loss or lodging thereof, and Contractor shall be liable for the rental cost of applicable fishing tools, including any charges for loss or damage of such tools. Contractor shall render assistance for the recovery of such equipment, if requested by Company, the provision of such assistance not modifying Company's control of the fishing operations or the aforementioned allocation of liability for the cost thereof.
- f. The provisions of this Article 18.7.1 do not apply when vibration or time limits or other nominal operating envelope or performance specification criteria are exceeded while downhole equipment is under the control of members of Contractor Group.
- g. With respect to directional drilling and MWD/ LWD equipment only, Contractor shall monitor downhole operating conditions (service parameters may include shock, vibration, load, torque, annular pressure, and temperature) for its downhole equipment using available drilling dynamics sensors. Contractor shall proactively implement measures to mitigate damage to such equipment due to harsh in-hole operating conditions encountered, subsequent to these being observed or otherwise becoming known to Contractor. (In this context 'harsh' means outside the specified limits of service parameters for such equipment in Contractor's operating procedures.) Contractor shall provide a detailed analysis and recommend proactive mitigation measures to be taken with regard to subsequent well operations. Company has no liability for damage to downhole equipment of members of Contractor Group where (i) there is no evidence of timely proactive measures being identified and pursued; and (ii) such damage could reasonably be expected to have been avoided or mitigated by such measures.

18.7.2. **Loss of or Damage to Well.** COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST CLAIMS FOR LOSS OF OR DAMAGE TO A COMPANY WELL ON WHICH MEMBERS OF CONTRACTOR GROUP ARE PERFORMING WORK; PROVIDED, HOWEVER, NOTWITHSTANDING THE PROVISIONS OF ARTICLE 18.2.2, THAT IF SUCH LOSS OR DAMAGE IS CAUSED BY OR RESULTS FROM LEGAL FAULT OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES, CONTRACTOR SHALL RE-PERFORM THE WORK (OR THE RELEVANT PROPORTION THEREOF) AT CONTRACTOR'S SOLE COST TO THE MEASURED DEPTH AT WHICH THE LOSS OR DAMAGE OCCURRED.

18.7.3. **Blow-Out, Crater, Loss of Control.** If a well on which Work is being performed should blow out or crater, or should control thereof be lost, Company will remunerate Contractor in accordance with the applicable Call-Off Order for Contractor's participation in killing the well or otherwise bringing the well under control.

- 18.7.4. Reservoir Damage. **COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST ANY AND ALL CLAIMS FOR DAMAGE TO ANY GEOLOGICAL FORMATION OR STRATUM, OR RESERVOIR (OF OIL, GAS, WATER, OR OTHER SUBSTANCE), WHICH IS THE SUBJECT OF THE WORK OR TO WHICH THE WORK RELATES; AND FOR LOSS OF PRODUCTION THEREFROM.**

18.8. Third Parties

- 18.8.1. For purposes of this Article 18, in relation to the performance of the Work under any Call-Off Order **Third Party** means any person who is not (i) a member of Company Group or Contractor Group; or (ii) an officer, director, Personnel, or Invitee of the respective members of Company Group or Contractor Group.
- 18.8.2. **EXCEPT AS OTHERWISE SPECIFICALLY SET FORTH IN THIS ARTICLE 18, CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY CLAIMS ARISING OUT OF OR RELATED IN ANY WAY TO PERSONAL INJURY TO ANY THIRD PARTY OR ANY LOSS OF OR DAMAGE TO OR ENVIRONMENTAL CONTAMINATION OF ANY PROPERTY OF ANY THIRD PARTY TO THE EXTENT THAT SUCH PERSONAL INJURY, LOSS, DAMAGE, OR ENVIRONMENTAL CONTAMINATION IS CAUSED BY OR CONTRIBUTED TO BY THE LEGAL FAULT OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES.**
- 18.8.3. **EXCEPT AS OTHERWISE SPECIFICALLY SET FORTH IN THIS ARTICLE 18, COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST ANY CLAIMS ARISING OUT OF OR RELATED IN ANY WAY TO PERSONAL INJURY TO ANY THIRD PARTY OR ANY LOSS OF OR DAMAGE TO OR ENVIRONMENTAL CONTAMINATION OF ANY PROPERTY OF ANY THIRD PARTY TO THE EXTENT THAT SUCH PERSONAL INJURY, LOSS, DAMAGE, OR ENVIRONMENTAL CONTAMINATION IS CAUSED BY OR CONTRIBUTED TO BY THE LEGAL FAULT OF ANY OF THE MEMBERS OF COMPANY GROUP OR OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES.**
- 18.8.4. Notwithstanding the provisions of Article 18.8.3, Contractor shall Indemnify each member of Company Group from and against any Claims in respect of Third Parties to the extent such Claims are imposed on Company Group under Section 10-9 of the Norwegian Petroleum Act of 29 November 1996 No.72 ('Lov om petroleumsvirksomhet') or any comparable Applicable Law when any of (i) the members of Contractor Group or (ii) their respective officers, directors, Personnel, or Invitees is the tortfeasor (or to the extent any of the foregoing is a tortfeasor).

19. INSURANCE

19.1. Insurance Requirements

Contractor shall maintain at its expense insurance of the types and with limits of liability not less than those set forth below from sound and reputable insurers (those with an A.M. Best rating of A- or better or the equivalent from another internationally recognized agency) to which Company has not expressed a reasonable objection, covering items, risks, and operations in connection with the performance of any Call-Off Orders.

- 19.1.1. Insurance that Contractor is obliged by Applicable Laws to carry that covers all of Contractor's personnel performing Work under any Call-Off Order, including coverage under applicable maritime law. Contractor shall also carry and maintain additional accident insurance on Contractor's personnel to cover Contractor's legal and contractual liabilities, including liabilities assumed under this Agreement for Personal Injury in an amount of not less than 40 G per person per incident where G is the basic pension in Norwegian Social Security ('Grunnbeløpet i Norsk Folketrygd') at any particular time.

- 19.1.2. Employers' Liability insurance, including coverage for marine operations (if applicable), with a limit not less than One Million United States Dollars (US\$1,000,000) any one occurrence or the statutory requirement, whichever amount is greater.
- 19.1.3. Commercial General Liability insurance, including contractual liability coverage, with a limit not less than Five Million United States Dollars (US\$5,000,000) any one occurrence. Such insurance is to include sudden and accidental pollution liability coverage.
- 19.1.4. Automobile Liability insurance with a combined bodily injury and property damage limit not less than One Million United States Dollars (US\$1,000,000) any one occurrence or the statutory requirement, whichever amount is greater, for all vehicles (whether owned, leased, or howsoever otherwise obtained) used in performance of Work.
- 19.1.5. Such other insurance in the types and amounts required by Applicable Laws.
- 19.2. Not Used
- 19.3. Primary Insurance

All insurance coverage required by Article 19.1 or maintained in respect of Property of members of Contractor Group is to be primary to any insurance coverage available to any of the members of Company Group with regard to the risks, liabilities, Indemnification obligations, and warranty-related obligations assumed by Contractor under any Call-Off Order. The minimum requirements stated in Article 19.1 are not intended to indicate the amounts and types of insurance that Contractor needs or may ultimately need. Contractor is liable for all deductibles in relation to such insurance coverage.
- 19.4. Additional Insured; Waiver of Subrogation
 - 19.4.1. The policies under Articles 19.1.3 through 19.1.5 and those in respect of Contractor's equipment are to show Company Group as additional insureds (coverage inclusive of defence costs) to the extent of the risks, liabilities, Indemnification obligations, and warranty obligations assumed by Contractor (including those with regard to other members of Contractor Group) under any Call-Off Order, irrespective of minimum limits and amounts stated for insurance required by Articles 19.1.3 through 19.1.5. Such policies are to contain a provision that any breach by Contractor or any of the other members of Contractor Group of any warranty, covenant, or representation in any of the policies is not to prejudice any claim by the additional insureds.
 - 19.4.2. Further, all insurance policies of Contractor Group pertaining to the Work (including those described in Article 19.1 and those in relation to Property of members of Contractor Group) are to contain a waiver of subrogation, when legally permitted, in favour of Company and of the other members of Company Group and of Company's and such other members' respective officers, directors, and personnel to the extent of the risks, liabilities, Indemnification obligations, and warranty obligations assumed by Contractor under any Call-Off Order.
 - 19.4.3. Likewise, any insurance policies procured by Company that are relevant to a Call-Off Order will contain a waiver of subrogation, when legally permitted, in favour of the members of Contractor Group and such members' respective officers, directors, and personnel to the extent of the liabilities and Indemnification obligations assumed by Company under the applicable Call-Off Order.
- 19.5. Certificates of Insurance and Policies

- 19.5.1. None of the insurance required by this Article 19 is to be materially changed or cancelled without Notice thereof to Company at least thirty (30) days in advance. All coverages must be set out in appropriate policy documents that conform to the requirements of the applicable Call-Off Order, including those of this Agreement.
- 19.5.2. Upon request of Company, Contractor shall furnish to Company certificates of insurance demonstrating that the insurance coverages set out in Article 19.1 have been obtained and that the requirements of Article 19.4 have been fulfilled. Each certificate is to expressly contain a statement that any notice of material change or cancellation is to be provided to Contractor in good time so as to enable Contractor to fulfil its Notice obligation under Article 19.5.1; and Contractor shall immediately give such Notice. Neither Company's review nor its failure to review such certificates constitutes approval thereof or is to be deemed to waive or diminish Contractor's obligations or Company's rights under any Call-Off Order.
- 19.5.3. In the event of an accident or loss having the potential to result in a claim under any of the insurance policies that are required by Article 19.4.1 to show Company Group as additional insureds, Contractor shall make available, at Company's request, sufficient policy information as reasonably required by Company to enable applicable members of Company Group to file a claim against the applicable policies. This obligation will survive the termination of this Agreement or any Call-Off Order.

19.6. Failure to Comply

Neither failure to comply nor full compliance with the insurance provisions set out in this Agreement limits or relieves Contractor from Contractor's liability and Indemnity obligations under any Call-Off Order. If Contractor fails or refuses to comply with the obligations prescribed in this Article 19, then without prejudice to any other rights or remedies available to Company under any Call-Off Order or at law: (i) Contractor shall be liable for and shall Indemnify Company from and against any Claim for which Contractor has assumed liability under this Agreement and that would have been covered by the insurance required by Article 19.1 and from costs incurred by Company in enforcing such Indemnity; and (ii) Company will be entitled to terminate any Call-Off Orders and this Agreement pursuant to Article 32.1.1 upon Notice to Contractor.

19.7. Subcontracting

Contractor shall ensure that each member of Contractor Group performing Work maintains all insurance required under Applicable Laws, together with other insurance of types and amounts that Contractor may deem necessary. With regard to reimbursable subcontracts, Contractor shall arrange for the benefit of its own insurances to be extended to applicable Subcontractors whenever practicable and more cost-effective than requiring such Subcontractors to make their own more expensive insurance arrangements.

20. WARRANTY

20.1. Contractor warrants that:

- a. all Work will be diligently performed with competent and skilled personnel and suitable equipment and other resources in a professional and workmanlike manner consistent with the standards mentioned in Article 5.1;
- b. all Work will be free of Defects and Nonconformities in design, materials, workmanship, or other respects;
- c. performance of all Work and constituents thereof will be in full compliance with all Applicable Laws;

- d. all Goods and materials provided for the Work will be new (unless otherwise specifically agreed between Company and Contractor in the applicable Call-Off Order) and duly fulfill all requirements set out in the applicable Call-Off Order; and
- e. all Work is to be performed in conformance with any particular requirements stipulated in individual Call-Off Orders.

20.2.

- 20.2.1. Contractor will be in breach of warranty if any Defect or Nonconformity in the performance of services that are part of the Work or other nonconformance thereof with the warranties set out in Article 20.1 is discovered:
 - a. after commencement of Work under the applicable Call-Off Order (or under an individual document supplemental thereto as provided in Article 4.2) and before completion of the Work and Company's acceptance thereof; or
 - b. within the period commencing upon completion and Company's acceptance of all of the Work under the applicable Call-Off Order (or under an individual document supplemental thereto as provided in Article 4.2) and ending twenty-four (24) months thereafter (the **Services Warranty Period** in each case).
- 20.2.2. In order to cure such breach of warranty, subject to Company's rights under Article 20.4, Contractor shall diligently, on an expedited basis and at its own cost, remedy any such Defective or Nonconforming services. Such remediation and Company's acceptance thereof are conditions precedent for commencement of the Warranty Period when Defective or Nonconforming services are found prior to completion and Company's acceptance of the Work. Company is not liable to pay Contractor for Defective or Nonconforming services until the Defect or Nonconformity has been remedied.
- 20.2.3. When a supplemental document (such as those entitled 'Purchase Order', 'Release PO', or 'Service Order') is used to address particular Work under a Call-Off Order, as provided in Article 4.2, such particular Work has its own Services Warranty Period in accordance with Article 20.2.1(b).
- 20.2.4. In each instance of Contractor so remedying any Defective or Nonconforming services that are part of the Work and found during the applicable Services Warranty Period, the portion of the Work so remedied has a new Services Warranty Period commencing upon completion and Company's acceptance of the remedied services.
- 20.2.5. Contractor will be in breach of warranty if any Defect or Nonconformity, whether patent or latent, in Goods purchased by Company under a Call-Off Order or otherwise incorporated by Contractor into the Work, or other nonconformance of Goods with the warranties set out in Article 20.1, is discovered:
 - a. after commencement of Work under the applicable Call-Off Order (or under an individual document supplemental thereto as provided in Article 4.2) and before completion of the Work and Company's acceptance thereof; or
 - b. within the period commencing upon completion and Company's acceptance of all of the Work under the applicable Call-Off Order (or under an individual document supplemental thereto as provided in Article 4.2) and ending 24 (twenty-four) months thereafter (the **Goods Warranty Period**; or sixty (60) months thereafter with respect to any Major Nonconformity, as defined in Article 20.2.8) (the **Extended Goods Warranty Period**).
- 20.2.6. In order to cure such breach of warranty, subject to Company's rights under Article 20.4, Contractor shall diligently, on an expedited basis and at its own cost, remedy the Defect

or Nonconformity by the rectification, repair, or replacement of the Defective or Nonconforming Goods or any such part thereof as requires rectification, repair, or replacement, including any Goods suffering physical damage or loss due to patent or latent Defect or Nonconformity therein. Company is not liable to pay Contractor for Defective or Nonconforming Goods until the Defect or Nonconformity has been remedied.

20.2.7. When a supplemental document (such as those entitled 'Purchase Order', 'Release PO', or 'Service Order') is used to address the provision of particular Goods under a Call-Off Order, as provided in Article 4.2, such particular Goods have their own Goods Warranty Period or Extended Goods Warranty Period in accordance with Article 20.2.5.

20.2.8. Nonconformance of the Goods with any particular requirements stipulated in the applicable Call-Off Order may be categorized as a Minor Nonconformity or a Major Nonconformity, as defined below.

- a. A **Minor Nonconformity** is a non-fulfilment of the requirements of the Call-Off Order that does not, and is not likely to, materially impair (i) the fitness of the Goods for their intended purpose; or (ii) the utility or effective use or operation of the Goods or any related facilities.
- b. A **Major Nonconformity** is a non-fulfilment of the requirements of the Call-Off Order that does or is likely to (i) result in failure; or (ii) reduce materially the fitness of the Goods for their intended purpose; or (iii) result in hazardous or unsafe conditions for the Goods or any related facilities or any persons.

Company will determine, acting reasonably and taking account of any representations by Contractor, whether a Nonconformity is a Minor Nonconformity or a Major Nonconformity.

20.2.9.

- a. In each instance of Contractor remedying any Defect or Minor Nonconformity in Goods found during the Goods Warranty Period, the Goods so rectified, repaired, or replaced have a new Goods Warranty Period of twenty-four (24) months commencing upon the completion and Company's acceptance of the rectified, repaired, or replaced Goods.
- b. In each instance of Contractor remedying any Major Nonconformity in Goods found during the Extended Goods Warranty Period, the Goods so rectified, repaired, or replaced have a new Goods Warranty Period commencing upon the completion and Company's acceptance of the rectified, repaired, or replaced Goods and expiring twenty-four (24) months thereafter or at the end of the Extended Goods Warranty Period, whichever last occurs.

20.2.10. Such re-performance of services or rectification, repair, or replacement of Defective or Nonconforming Goods required by this Article 20.2 (i) is to be carried out, together with such tests as Company may reasonably require Contractor to perform to verify that the Defect or Nonconformity has been duly remedied, at a time and within a period notified by Company to Contractor; or in the absence of such a notification, at a reasonable time and within a reasonable period; and (ii) is further subject to the warranties provided in Article 20.1 and, as applicable, the remedies set forth in this Article 20.2 and Article 20.4.

20.2.11. Contractor shall bear for its own account, without limitation, all extra costs arising in connection with any re-performance, rectification, repair, or replacement required by this Article 20.2, and the performance of such tests required to verify that the Defect or Nonconformity has been duly remedied so as to comply with the requirements of the applicable Call-Off Order.

- 20.2.12. Notwithstanding the foregoing provisions of this Article 20.2, Contractor is not liable for the costs of routine maintenance of Goods following purchase by Company or installation by Contractor, unless provided otherwise in the applicable Call-Off Order.
- 20.2.13. Any Defective or Nonconforming Goods for which Contractor provides replacements under this Article 20.2 revert to being the property of Contractor.
- 20.3. Company will notify Contractor without undue delay after Company has discovered a Defect or Nonconformity addressed in Article 20.2, indicating in such notification whether Company requires Contractor to remedy the Defect or Nonconformity, or whether Company intends to exercise its right under Article 20.4.1 to perform or have a third party perform the remedy.
- 20.4.
- 20.4.1. If Contractor is unable or refuses to undertake re-performance of the Work to cure a breach of warranty as required by Article 20.2, or if re-performance of the Work by Contractor may in Company's reasonable judgment be impractical or prejudicial to Company's interests, then Company will be entitled, without prejudice to any other rights or remedies it may have under an applicable Call-Off Order:
- a. to carry itself or have others carry out such re-performance of the Work; and
 - b. to recover from Contractor all reasonable costs and expenses incurred in so doing, including any costs and expenses over and above the costs of re-performance of the Work arising out of or associated with the replacement, modification, or rectification of any materials, equipment, or other property attributable to Defective or Nonconforming performance of the Work, including supply of Defective or Nonconforming Goods.
- 20.4.2. Should it not be possible or practical for Contractor to remedy the failure in performance, the Call-Off Order price is to be reduced by amounts corresponding to the parts of the Call-Off Order price that relate to the unremedied Defective or Nonconforming Work. Contractor shall immediately reimburse to Company any overpayment relative to such reduced Call-Off Order price.
- 20.5. **THE WARRANTIES SET OUT IN THIS ARTICLE 20 ARE NOT INTENDED AS A LIMITATION BUT ARE SUPPLEMENTAL TO ALL OTHER EXPRESS CONDITIONS, WARRANTIES, AND GUARANTEES SET FORTH IN EACH CALL-OFF ORDER, INCLUDING THOSE OF THIS AGREEMENT. ALL OTHER CONDITIONS AND WARRANTIES, WHETHER EXPRESS OR IMPLIED BY LAW OR CUSTOM OR USAGE OF TRADE, INCLUDING WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, ARE SPECIFICALLY EXCLUDED. THE REMEDIES AVAILABLE TO COMPANY UNDER THIS ARTICLE 20 ARE COMPANY'S SOLE REMEDIES TO CORRECT, OR TO COMPENSATE COMPANY FOR, DEFECTS OR NONCONFORMITIES IN THE WORK, BUT DO NOT PREJUDICE COMPANY'S OTHER RIGHTS UNDER THIS AGREEMENT.**
- 20.6. Contractor shall obtain warranties from Subcontractors that meet or exceed the requirements of this Article 20, and failure to do so does not relieve Contractor of any of its obligations under this Article 20. Such Subcontractor warranties are to be: (i) for the express benefit of Company and Contractor, without duplication; (ii) fully assignable to Company and are to be assigned, if not expired, to Company upon expiration of the applicable Services Warranty Period or Goods Warranty Period; and (iii) in addition to (and not in limitation of) the warranties of Contractor described in this Article 20.
- 20.7. The Indemnity provisions of Article 18 are not to be construed as relieving Contractor to any extent of its warranty and re-performance obligations set out in this Article 20.

21. GOVERNING LAW

- 21.1. The interpretation and performance of this Agreement and each Call-Off Order and any dispute or Claim arising out of or in connection with them or their subject matter or formation (including non-contractual disputes or Claims) are governed by and to be construed in accordance with the laws of the Kingdom of Norway.
- 21.2. Specifically, if any provision of this Agreement or a Call-Off Order is determined to be unenforceable or in contravention of any Applicable Laws, such provision is to be deemed modified to the minimum extent required to bring such provision into compliance with Applicable Laws. **NOTHING CONTAINED HEREIN IS TO BE CONSTRUED AS CONTRAVENING THE EXPRESS INTENTION OF THE PARTIES THAT THE LAWS OF THE KINGDOM OF NORWAY ARE TO APPLY IN ALL RESPECTS.**

22. DISPUTE RESOLUTION

- 22.1. Any Claim or dispute arising out of or relating to this Agreement or any Call-Off Order is subject to confidentiality and is to be referred to arbitration in Stavanger, Norway, and otherwise in accordance with the Norwegian Arbitration Act of 14 May 2004 No. 25 as amended ('Lov om voldgift'). The time limit to appoint arbitrators is thirty (30) days after receiving written notice of the arbitration. The arbitrators may not grant in the arbitral award any relief that could not be granted by a court of law in the Kingdom of Norway. The arbitral award will be in writing and will be final and binding on the Parties, and judgment with respect thereto may be entered in any court having jurisdiction over either or both judicial acceptance and an order of enforcement, as the case may be. Documents and statements in Norwegian and English are allowed in any arbitration procedure. Translation thereof will be at the expense of the Party requiring such translation.
- 22.2. During the pendency of any dispute between the Parties and throughout the period of, and until ultimate determination of, any arbitration pursuant to this Article 22, the Parties are to continue, except in the event of a valid termination, to perform all their obligations under each Call-Off Order, without prejudice to possible final adjustment in accordance with such ultimate determination.

23. COMPLIANCE WITH APPLICABLE LAWS

- 23.1. Contractor shall (a) comply fully with all Applicable Laws, including obligations regarding preservation or non-spoliation of relevant evidence (whether under common law or statutory law); and (b) do nothing that would cause Company to be in breach of Applicable Laws; and shall ensure that its officers, directors, Personnel, and Invitees and the other members of Contractor Group and their respective officers, directors, Personnel, and Invitees do likewise. **SUBJECT TO ARTICLE 18, CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS ARISING OUT OF ACTUAL OR ALLEGED FAILURE BY ANY OF THE MEMBERS OF CONTRACTOR GROUP OR BY ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, PERSONNEL, OR INVITEES TO COMPLY WITH ANY APPLICABLE LAWS.**
- 23.2. If Contractor has entered into an NOROG (Norwegian Oil and Gas Association) Security agreement with another party, in accordance with NOROG's Guideline 091 for securing oil industry supplies and equipment, Contractor shall notify Company in writing and shall comply and ensure that the other members of Contractor Group comply with the NOROG Security agreement also when performing the Work for Company. If such a NOROG Security agreement entered into with another party is terminated, Contractor shall inform Company without undue delay. Contractor shall enter into a NOROG Security agreement with Company at Company's request.
- 23.3. Contractor is responsible for fulfilling, at its expense, all requirements of Applicable Laws and Governmental Authorities with regard to (i) importation for the Work of any Property of members of Contractor Group; and (ii) entry of officers, directors, and Personnel of the members of Contractor Group, into any country; and (iii) exportation of such Property and other items, and departure of such persons, from any country; including payment of all applicable customs duties, fees, and other

applicable charges (including the cost of temporary import bonds, stamp duty, and statistical tax). Company will assist Contractor with importation for the Work and exportation of Property of members of Contractor Group, if such importation or exportation is or both are required by Applicable Laws to be in the name of Company, including seeking to obtain any lawful exemption from customs duties.

24. EXPORT CONTROL COMPLIANCE

- 24.1. Contractor shall comply (and shall ensure that its officers, directors, and personnel and the other members of Contractor Group and their respective officers, directors, and personnel comply) with all Applicable Laws relating to control of exports and re-exports, and to sanctions, including those of Norway and the United States. Notwithstanding anything to the contrary in this Article 24, neither Company nor Contractor is required to meet its obligations under this Agreement or a Call-Off Order in a way that violates Applicable Laws.
- 24.2. Contractor is responsible for obtaining any authorizations or licences required under applicable export control regimes in connection with performance of Work, including licences required for (i) the export of equipment, materials or supplies until their intended final destination at a Site; or (ii) the transfer of any regulated technology to nationals of certain countries. Contractor shall, always in good time: (a) identify in writing to Company any technology, software, services, or other items forming part of the Work for which an export authorization is required; and (b) provide in writing to Company export control classification and licensing information necessary for any export documents that may be required of Company under any applicable export control regimes (e.g., Export Control Classification Numbers (ECCNs)). Contractor shall keep records of its export and re-export related activities for a minimum of five (5) years or such period required by Applicable Laws, whichever is greater, and shall make those records available to Company upon request.
- 24.3.
- a. In connection with the Work to be performed under individual Call-Off Orders, Contractor shall not (and shall require that the other members of Contractor Group do not):
 - i. hire, charter, or contract or subcontract with, any person that is listed on any Norway or United States or other applicable government list of prohibited or denied parties or organized under the laws of, operating under the flag of, performing services in, or resident in, any country against which Norway or the United States or other applicable government has imposed comprehensive economic sanctions; or
 - ii. obtain any items, technology, software, or services originating from any country against which Norway or the United States or other applicable government has imposed comprehensive export-related sanctions or restrictions.
 - b. If Contractor carries out in relation to the Work under individual Call-Off Orders any procurement of equipment, materials, supplies, services, or technology, Contractor shall verify and ensure that the persons from whom such procurement is made do not perform any act prohibited by Articles 24.3(a)(i) and (ii) in connection with such Work.
- 24.4. **CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS THAT MAY ARISE AS A RESULT OF ANY ACTUAL OR ALLEGED ACTS OR OMISSIONS OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR OF ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, OR PERSONNEL NOT CONFORMING TO THE REQUIREMENTS OF THIS ARTICLE 24.**
- 24.5. Company confirms that no materials, supplies, technology, software, or other items received from Contractor are intended to be shipped, either directly or indirectly, to any country or person, or for any end-use, that is prohibited under Applicable Laws pertaining to export control. **COMPANY SHALL INDEMNIFY EACH OF THE MEMBERS OF CONTRACTOR GROUP FROM AND AGAINST ANY AND ALL CLAIMS THAT MAY ARISE AS A RESULT OF ANY ACTUAL OR ALLEGED BREACH BY COMPANY OR BY ANY OF**

COMPANY'S OFFICERS, DIRECTORS, EMPLOYEES, OR AGENTS OF APPLICABLE LAWS PERTAINING TO EXPORT CONTROL.

25. ETHICS AND CONFLICTS OF INTEREST

25.1.

- a. Contractor shall not (and shall ensure that its officers, directors, and Personnel and the other members of Contractor Group and their respective officers, directors, and Personnel do not) directly or indirectly:
 - i. pay salaries, commissions, or fees, or make payments or rebates, to officers, directors, or Personnel of members of Company Group; nor
 - ii. favour officers, directors, or Personnel of members of Company Group, or designees of such officers, directors, or Personnel, with gifts or entertainment of significant cost or value, or with services or goods sold at less than full market value; nor
 - iii. enter into business arrangements with officers, directors, or Personnel of members of Company Group, except to the extent such officers, directors, or Personnel are properly and duly acting in their capacity as representatives of members of Company Group with regard to such arrangements in respect of this Agreement or any Call-Off Order.
- b. Contractor shall not engage and shall require other members of Contractor Group not to engage in any behaviour or encourage action by any officers, directors, or Personnel of members of Company Group that is contrary to: (i) Company's policies regarding conflicts of interest; or (ii) public policy; or (iii) Norwegian Act relating to enterprises' transparency and work on fundamental human rights and decent working conditions ([Transparency Act](#)); or (iv) any Applicable Laws. Contractor shall promptly give Notice to Company if any of the members of Contractor Group or any of their respective officers, directors, or Personnel takes, in relation to this Agreement or any Call-Off Order, any action contrary to Company's interests, or in furtherance of any prohibited behaviour by officers, directors, or Personnel of members of Company Group (including the examples in Article 25.1(a)). In such event, whether or not notified by Contractor, at its option Company may instruct Contractor to implement without undue delay any mitigating measures or terminate immediately for cause any or all of this Agreement and any current Call-Off Orders by Notice to Contractor.

- 25.2. In relation to this Agreement and any Call-Off Order, Contractor is to be guided and shall ensure that its officers, directors, and Personnel, and the other members of Contractor Group and their respective officers, directors, and Personnel are guided by the principles and standards set forth in the *ConocoPhillips Code of Business Ethics and Conduct*, as it may be amended and updated from time to time (the **Code**). The Code is available from Company upon request or from Company's internet website at:

<http://static.conocophillips.com/files/resources/codeofethics.htm#1>.

Contractor represents that it has familiarized itself and shall remain familiar with the Code; and shall immediately report to Company any known or suspected actions in relation to this Agreement or any Call-Off Order that are inconsistent with the principles and standards set forth in the Code. In relation to this Agreement or any Call-Off Order, any lack of compliance with or violation of the principles and standards of the Code, or a violation of any such member's own code of conduct, by any of the members of Contractor Group or their respective officers, directors, or Personnel constitutes a significant breach by Contractor and grounds for termination for cause under Article 32.1.

26. ANTI-BRIBERY; FOREIGN CORRUPT PRACTICES ACT

26.1.

- a. In relation to this Agreement and any Call-Off Order, Contractor shall not (and shall ensure that its officers, directors, and Personnel and the other members of Contractor Group and their respective officers, directors, and Personnel do not) offer, pay, arrange for another person to pay, or agree to pay any payment, gift, or other thing of value of any nature to:
 - i. any officials, employees, or agents of any Governmental Authority or government instrumentality; or
 - ii. any political party; or
 - iii. any candidate for political office; or
 - iv. any other person, including a legislative, administrative, or judicial office (including any person exercising a public function for a public agency, a public enterprise, or a public international organization);

when such payment, gift, or other consideration would violate Applicable Laws or the principles set forth in the *Convention for Combating Bribery of Foreign Public Officials in International Business Transactions*, signed in Paris on December 17, 1997 (and without limitation shall not perform any act which would constitute 'bribery of a foreign official' as defined in Article 1(3) of such Convention), the United States *Foreign Corrupt Practices Act (FCPA)*, the United Kingdom *Bribery Act*, or other anti-bribery or anti-corruption legislation applicable to either Company or Contractor.

- b. Notwithstanding that the FCPA and certain other applicable anti-bribery or anti-corruption legislation may permit, in limited circumstances, payments called 'facilitating payments' (i.e., small payments made in order to expedite or secure the performance by a Governmental Authority of routine actions of a non-discretionary nature, which a person is otherwise entitled by law to receive), Contractor shall not make (and shall ensure that its officers, directors, and Personnel and the other members of Contractor Group and their respective officers, directors, and Personnel do not make) any 'facilitating payments' in connection with the Work under any Call-Off Order.
- 26.2. If Company reasonably believes that Contractor or any other member of Contractor Group, or any of their respective officers, directors, or Personnel, has engaged or will engage in improper conduct in breach of this Article 26, Company may, at its sole discretion, suspend any further performance by Contractor in accordance with the terms in Article 32.2, withhold further payment to Contractor, and terminate this Agreement and any Call-Off Orders for cause with immediate effect in accordance with the terms in Article 32.1.1.
- 26.3. **CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM ANY CLAIMS ARISING OUT OF OR RESULTING FROM ANY ACTUAL OR ALLEGED ACTS OR OMISSIONS OF ANY OF THE MEMBERS OF CONTRACTOR GROUP OR OF ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, OR PERSONNEL NOT CONFORMING TO THE REQUIREMENTS OF THIS ARTICLE 26; AND SHALL IMMEDIATELY REIMBURSE COMPANY FOR ANY AMOUNTS THAT COMPANY ASSERTS WERE PAID BY COMPANY AS A RESULT OF SUCH ACTS OR OMISSIONS.**

27. INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS

- 27.1.
- a. Contractor shall not violate or infringe the intellectual property rights of any other person in performance of the Work and shall ensure that other members of Contractor Group do not do so.
 - b. **CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY AND ALL CLAIMS ASSERTED BY OR ARISING IN FAVOUR OF ANY PERSON FOR OR AS A RESULT OF VIOLATION OR INFRINGEMENT OF ANY PATENT, COPYRIGHT, OR OTHER INTELLECTUAL PROPERTY**

RIGHTS, OR MISAPPROPRIATION OR MISUSE OF ANY TRADE SECRET OR OTHER CONFIDENTIAL INFORMATION, BASED ON OR RELATED TO USE OR APPLICATION:

- i. **BY ANY OF THE MEMBERS OF CONTRACTOR GROUP OF ANY GOODS, EQUIPMENT, ARTICLE OF MANUFACTURE, MACHINE, COMPUTER SOFTWARE, COMPOSITION OF MATTER, OR PROCESS (EXCEPT WHERE SUCH VIOLATION, INFRINGEMENT MISAPPROPRIATION OR MISUSE RESULTS FROM (A) THE USE, IN ACCORDANCE AND FULL COMPLIANCE WITH COMPANY INSTRUCTIONS AND THE TERMS AND CONDITIONS OF THIS AGREEMENT, OF INFORMATION OR DATA OR EQUIPMENT PROVIDED BY COMPANY; OR (B) COMPANY'S SPECIFIC WRITTEN INSTRUCTIONS WITH REGARD TO CONTRACTOR'S METHOD OF PERFORMANCE, BUT ONLY IF SUCH INSTRUCTIONS ARE INCONSISTENT WITH SERVICES CONTRACTOR TYPICALLY OFFERS TO ITS OTHER CUSTOMERS); OR**
- ii. **BY ANY OF THE MEMBERS OF COMPANY GROUP OF ANY OF THE FOLLOWING FOR ITS INTENDED PURPOSE OR IN RELIANCE ON ADVICE OR INSTRUCTION FROM ANY OF THE MEMBERS OF CONTRACTOR GROUP: ANY GOODS, EQUIPMENT, ARTICLE OF MANUFACTURE, MACHINE, COMPUTER SOFTWARE, COMPOSITION OF MATTER, OR PROCESS WHICH UNDER ANY CALL-OFF ORDER IS SUPPLIED, DESIGNED, OR PROVIDED TO COMPANY.**

27.2. Should Contractor be prevented from performing any portion of the Work under a Call-Off Order or should Company be prevented or estopped from use or application of any goods, equipment, article of manufacture, machine, computer software, composition of matter, or process supplied, designed, or provided by any of the members of Contractor Group under a Call-Off Order by reason of legal proceedings based upon Claims described in Article 27.1, Company will be relieved of any obligation to make payment for Work not performed as a result thereof. Furthermore, at Company's option and at Contractor's own cost, Contractor shall either:

- a. obtain the necessary license to allow Contractor and Company to use such third-party intellectual property to the extent necessary to allow performance of the Work in complete compliance with the Call-Off Order and to allow Company to utilize the results of such Work in the manner contemplated by the Call-Off Order; or
- b. re-design and re-perform the Work to enable complete performance of the Work in accordance with the Call-Off Order without infringing any such third-party rights and without decreasing, limiting, or otherwise affecting the utility and functionality of the results of such Work.

28. LIENS AND CLAIMS

28.1. General

28.1.1.

- a. All payments to Contractor under any Call-Off Order are first to be used by Contractor to satisfy amounts directly related to performance of the Work that are due to persons participating in such performance. Contractor shall keep the Work, the Site, and other Property of the members of Company Group free of all liens or other encumbrances in favour of any of the members of Contractor Group or any other person acting through, under, or on behalf of any such member. If such a lien or encumbrance is filed on all or any portion of the Work, the Site, or other Property of any of the members of Company Group, Contractor shall remove and discharge, by payment, bond, or otherwise, such lien or encumbrance within seven (7) days of the filing of such lien or encumbrance.
- b. Nothing contained in this Article 28 prevents Contractor from filing any lien to which it is lawfully entitled as a result of Company's failure to pay undisputed portions of Contractor's invoices; provided that Contractor (i) shall give Company not less than fifteen (15) business days' notice of Contractor's intention to file any such lien; and

(ii) shall not file such lien if payment is received from Company within such fifteen (15) business day period.

28.1.2. If Contractor fails to remove and discharge any such lien or encumbrance within such seven (7) day period, then Company in its sole discretion may remove and discharge such lien or encumbrance on behalf of itself or any other affected member of Company Group. Company's right to do so is in addition to any other rights that it has under the applicable Call-Off Order or at law or in equity. In doing so Company may use whatever means it, in its sole discretion, deems appropriate, including the payment of settlement amounts that it determines as being necessary to discharge such lien or encumbrance. In such circumstance, Contractor shall be liable for all costs incurred by Company or any affected member of Company Group with respect to such removal and discharge.

28.1.3. Contractor shall settle all Claims by Company or any affected member of Company Group for such costs no later than thirty (30) days after receipt of an invoice in respect thereof from Company or the affected member of Company Group. Alternatively, Company may deduct the amount of such Claims from any performance security provided by Contractor or from any amounts otherwise due from Company to Contractor. **CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY SUCH LIENS OR ENCUMBRANCES ARISING OUT OF OR RESULTING FROM OR RELATED TO THE PERFORMANCE OF THE WORK, AND ALL CLAIMS IN RESPECT THEREOF.**

28.1.4.

- a. Contractor warrants and guarantees that the members of Contractor Group will regularly and punctually pay: (i) the wages of and any other remuneration due to their personnel engaged in performing the Work; and (ii) amounts due to their respective Subcontractors.
- b. Should Company receive credible information that any member of Contractor Group has failed to punctually make such payments, Company is entitled to require Contractor to undertake an immediate investigation. Unless Contractor is able to demonstrate to Company's reasonable satisfaction that the information was erroneous, Contractor shall promptly take appropriate corrective action, including paying, or requiring payment of, such wages/ remuneration and amounts owed to Subcontractors.
- c. If any member of Contractor Group unduly delays payment of such wages/ remuneration or amounts owed to Subcontractors, Company may elect to deduct from any amount due to Contractor such wages/ remuneration or amounts due to Subcontractors and pay the same to such member's unpaid personnel or Subcontractors on behalf of such member, and Contractor hereby irrevocably authorizes Company to take such action.

28.2. Lien Waivers

28.2.1. Company reserves the right to require Contractor to provide lien waivers as a condition precedent to payment of invoices and to obtain and deliver to Company lien waivers from Subcontractors. If Company requires lien waivers with respect to an interim invoice, each such lien waiver is to waive any and all liens and encumbrances against the Work, the Site, and other Property of any of the members of Company Group to the extent of the current invoice and all prior invoices. Further, Company will only require such lien waivers from Subcontractors who have performed any of the Work to which the relevant interim invoice relates, but each such lien waiver is to waive any and all liens and encumbrances in regard to all Work performed by the Subcontractor to date.

28.2.2. If Company requires lien waivers with respect to Contractor's final invoice in respect of a Call-Off Order, such lien waiver is to waive any and all liens and encumbrances

whatsoever against the Work, the Site, and other Property of any of the members of Company Group. Such lien waivers are to be provided in forms conforming to Applicable Laws as regards their validity and enforceability, and as required by Company in such respect.

28.3. Claim Waivers

Company reserves the right to require Contractor to provide Claim waivers as a condition precedent to payment of invoices. If so required by Company, Contractor shall include with each applicable invoice a Claim waiver that specifically describes any and all Claims for extra work, delays, and similar issues affecting payment or Contractor's cost and time of performance that Contractor has against Company arising out of the Call-Off Order as of the date of such invoice. Contractor hereby irrevocably waives any and all such Claims that are not described in reasonable detail in the Claim waiver document. Such Claim waivers are to be provided in forms conforming to Applicable Laws with regard to their validity and enforceability, and as required by Company in such respect.

29. FORCE MAJEURE

- 29.1. Should either Party to a Call-Off Order be prevented from performing its obligations thereunder by reason of Force Majeure, that Party's obligations are to be suspended to the extent they are prevented or impacted by Force Majeure during the continuation thereof and during such time after cessation thereof as is necessary for such Party, using all reasonable endeavours, to recommence performance of the prevented or impacted obligations. Provided that under no circumstances does Force Majeure excuse a Party from failure to honour its Indemnification obligations under a Call-Off Order.
- 29.2. A Party intending to seek relief under this Article 29 shall advise the other Party immediately (and shall follow with a Notice as soon as possible and no later than within three (3) days) of the nature and extent of the circumstances giving rise to its Claim that an event or condition constitutes Force Majeure, and of the extent to which it anticipates being unable to meet its obligations under the Call-Off Order. A Party is not entitled to claim Force Majeure as a defence under the applicable Call-Off Order if it fails to give such notification within three (3) days of the occurrence of the event or condition.
- 29.3. The Party claiming a Force Majeure condition shall act diligently to remove or remedy such condition and to mitigate the effects and impact thereof. It shall promptly notify the other Party when such condition and the effects and impact thereof cease.
- 29.4. If a Call-Off Order provides for any guaranteed completion dates for the Work, the time schedule for performance and completion of the Work may be extended only to the extent that: (i) Force Majeure impacts the critical path for the Work; and (ii) the duration of the Force Majeure exceeds float (if any) in the time schedule (but in any event for no longer than the actual period of Force Majeure). Any such extension is to be addressed in an appropriate Change Order pursuant to Article 13.
- 29.5. Each Party is to bear its own costs and expenses incurred in connection with Force Majeure (including for any efforts to mitigate the effect or impact of the Force Majeure), and neither is to seek recovery of such costs or expenses from the other Party. No remuneration is due to Contractor for any period when Work is unable to proceed owing to Force Majeure.
- 29.6. Should Force Majeure cause, or reasonably be expected to cause, a prolonged delay in performance of the Work, Company is entitled to terminate each affected Call-Off Order, or any part thereof, pursuant to Article 32.1.2. Company is entitled to determine, acting reasonably, whether a delay is 'prolonged' in the context of the project or other of its activities to which the Work relates, but any delay of thirty (30) days (consecutive or otherwise) or more may be considered prolonged.

- 29.7. Throughout any period of Force Majeure, the Party affected shall provide the other Party with regular status updates, including reasonable and non-binding predictions as to when the Force Majeure condition is likely to cease.

30. CONFIDENTIALITY

- 30.1. For purposes of this Article 30:

Confidential Information means any business or technical information of Company or of any of the other members of Company Group, including business plans; forecasts; contracting procedures; maintenance records; procedures, methods, and technical information related to proprietary processes or products; cost information; marketing or business-related information; asset details; and strategic plans; disclosed to or discovered by Contractor in connection with this Agreement, any Call-Off Order, or performance of the Work under any Call-Off Order.

Contractor Data means data gathered by Contractor in performance of Work that it is not required to provide to Company as deliverables from the Work, including equipment performance measurements, raw sensor measurements, and the like but excluding any Proprietary Data.

Knowhow means all patentable inventions, discoveries, designs, improvements, processes, industrial information and techniques (including drawings, formulae, test reports, operating and testing procedures, instruction manuals, tables of operating conditions, administration procedures, marketing methods and procedures, and computer programs).

Proprietary Information means information (including all oral and visual information, all information recorded in writing or electronically, or in any other medium or by any other method (i) relating to Company's operations, facilities, processes, plans, intentions, product information, Knowhow, designs, trade secrets, software, market opportunities or business affairs relating to the Work; (ii) ascertainable by the inspection or analysis of Company's samples; or (iii) relating to wells or reservoirs (including geological data, geophysical data, petrophysics data, logging data, depth, formation penetration, coring, testing and survey results); which is disclosed by Company to Contractor or obtained by Contractor in relation to Work, from Company or a third party or otherwise. 'Proprietary Information' includes information generated or obtained by Contractor in respect of Company's wells, reservoirs, facilities, or operations (including geological data, geophysical data, petrophysics data, logging data, depth, formation penetration, coring, testing and survey results and information on wellbore, production, reservoir, geology, and formations encountered in a well).

- 30.2. From the Effective Date and at all times thereafter, Contractor shall treat as confidential and shall not, without Company's prior written consent, divulge to any third party, or, except to the extent necessary for performance under any Call-Off Order, make any use of any (i) Confidential Information; (ii) Proprietary Information; or (iii) Contractor Data that could be re-interpreted to develop Proprietary Information.
- 30.3. Contractor may only disclose Confidential Information or Proprietary Information to (i) its officers, directors, and personnel who need such information for performance of the Work under a Call-Off Order and who are subject to confidentiality obligations that cover such information; and (ii) other members of Contractor Group who need the Confidential Information or Proprietary Information for performance of the Work under a Call-Off Order and who, with respect to such information, are bound by confidentiality and limited use obligations no less stringent than those of this Article 30. Contractor is responsible for ensuring compliance with this Article 30 by its officers, directors, personnel, and Invitees, and the other members of Contractor Group and their respective officers, directors, personnel, and Invitees, who will receive, or who might in performance of Work discover or be exposed to, any of the information addressed in Article 30.2. All documents or electronic files containing Confidential Information or Proprietary Information provided to, directly or indirectly, or prepared by, any of the members of Contractor Group are to be turned over to Company upon request, and in any event upon completion of the Work. Contractor shall also provide to Company,

upon request and at no additional charge, copies of Contractor Data that might be useful for Company in development or analysis of Proprietary Data.

- 30.4. Any information which was lawfully in Contractor's possession without restriction on use or disclosure prior to disclosure thereof by or on behalf of Company to Contractor, or which is or becomes part of the public knowledge or literature from a source other than Contractor, either directly or indirectly, is not subject to the provisions of this Article 30. Information which becomes lawfully available to Contractor from a source other than Company is released from the provisions of this Article 30 to the extent necessary to permit such use and disclosures as are authorized by such source.
- 30.5. If Contractor is required by Applicable Laws or by the rules of a recognized stock exchange on which Contractor is listed to disclose any of the Confidential Information or Proprietary Information, Contractor shall immediately give Company Notice of such obligation and shall cooperate with Company in any effort (i) to obtain protective orders; (ii) to obtain rulings to eliminate the obligation to make the disclosure; and (iii) otherwise to protect Company's rights in the Confidential Information and Proprietary Information. If the efforts to eliminate the obligation to make the disclosure of Confidential Information or Proprietary Information are unsuccessful, Contractor shall consult with Company to determine the minimum extent to which disclosure is necessary to comply with the legal obligation. Contractor may make the disclosure in accordance with such mutually agreed determination, always limited to the minimum amount of information necessary to comply with the legal obligation.
- 30.6. Contractor shall not take advantage (and shall require its officers, directors, personnel, and Invitees, and each of the other members of Contractor Group and their respective officers, directors, personnel, and Invitees not to take advantage) of any information which it is obliged to treat as confidential hereunder for the purpose of buying, selling, or otherwise dealing with shares or securities of Company, of Company's Affiliates, of Coventurers, or of Coventurers' Affiliates or for purposes of securing financial gain otherwise than by means of the remuneration set out in the applicable Call-Off Order.
- 30.7. If Contractor has entered or enters into a separate confidentiality agreement with Company which conflicts with the terms of this Article 30 as regards particular Confidential Information or Proprietary Information, then the terms of such separate confidentiality agreement take precedence over the terms of this Article 30 with respect to the particular information disclosed under such separate confidentiality agreement.
- 30.8. Contractor must obtain (and shall require each of the other members of Contractor Group to obtain) the prior written approval of Company to the text of any information or publicity in connection with this Agreement or any Call-Off Order that Contractor or any other member of Contractor Group proposes to release or issue to the press, any news disseminating agency, or communications media, or to publish in any medium (including in-house newsletters in paper or electronic form). None of the members of Contractor Group has the right to issue any such information or publicity without Company's prior written approval. Company has an unrestricted right to require changes to the proposed text of any such information or publicity, or to forbid the issuance thereof at all.
- 30.9.
- a. If Contractor provides any confidential or proprietary information or data to Company which Contractor legitimately identifies to Company as requiring confidential handling, Company is to keep such information and data confidential and is not to divulge them to any third party, except that Company may divulge such information and data to other members of Company Group who have a need to know for purposes of the exploration and production ventures in respect of which the applicable Work is performed and who have agreed to keep such information and data confidential to the same extent as required of Company by this Article 30.9. Company's obligations under this Article 30.9 will expire upon the fifteenth (15th) anniversary of the date of termination or expiration of this Agreement; provided that Company will not be liable for disclosures of such confidential or proprietary information or data of

Contractor that are not made knowingly and intentionally after the tenth (10th) anniversary of the date of termination or expiration of the Call-Off Order to which the disclosure of such confidential or proprietary information or data relates.

- b. Any information which is or becomes part of the public knowledge or literature from a source other than Company, either directly or indirectly, is not subject to the provisions of this Article 30.9. Information which legitimately (i) was in Company's possession from another source prior to receipt from Contractor; or (ii) becomes available to Company from a source other than Contractor; is released from the provisions of this Article 30.9 to the extent necessary to permit such use and disclosures as are authorized by such source.

30.10. The obligations under Articles 30.2, 30.6, 30.8, and 30.9 are to survive expiration or termination of this Agreement or any Call-Off Order and to remain effective and binding on the Parties.

31. AUDIT

31.1. Contractor shall (and shall require that the other members of Contractor Group are to):

- a. maintain, in accordance with generally accepted accounting principles and practices, a true and correct set of records pertaining to all activities in regard to this Agreement and each Call-Off Order and all transactions related thereto;
- b. retain all such records for (i) the applicable period for retention of records related to export and re-export activities in accordance with Article 24.2; and (ii) otherwise a period of not less than four (4) years after completion and acceptance of or final payment for the Work, whichever occurs later (provided, however, that there will be no obligation to continue to maintain such other records that have been audited by Company and determined to be fully accurate);
- c. permit any representatives authorized by Company to audit any and all such records (excluding those pertaining to the composition of agreed rates, sums, prices, and mark-up percentages) at any reasonable time or times and with reasonable notice during (i) the term of the applicable Call-Off Order; (ii) the four (4) year period referred to in Article 31.1(b); and (iii) the applicable period for retention of records related to export and re-export activities in accordance with Article 24.2;
- d. afford Company and Company's representatives access during such audits to all records, books, correspondence, instructions, drawings, receipts, vouchers, memoranda, and similar data pertaining to such Call-Off Order and to any other data deemed necessary, in the sole opinion of Company, to verify compliance by the members of Contractor Group with this Agreement and Call-Off Orders; and
- e. cooperate fully with Company and Company's representatives during the audits performed hereunder, including furnishing copies of all requested documents. Additionally, Company's representatives have the right to obtain statements from officers, directors, and Personnel of Contractor and of the other members of Contractor Group in the course of such audits.

32. TERMINATION; SUSPENSION

32.1. Termination

32.1.1.

- a. Company may terminate any Call-Off Order or any part thereof for cause by Notice to Contractor if (A) Contractor fails to make payments to Subcontractors for Work under that Call-Off Order when due; or fails to perform the Work under that Call-Off Order in a safe, diligent, and timely manner; or otherwise fails to perform or fulfill any material obligation under the Call-Off Order; and (B) Contractor fails to

correct any such failure promptly, and in any event within ten (10) days of Notice from Company. Notwithstanding the foregoing, Company is entitled to terminate a Call-Off Order or any part thereof immediately for cause by Notice to Contractor if Contractor: (i) commits any in the performance of the Work any safety violation that is not inconsequential; or (ii) violates any of the obligations contained in Articles 25 and 26; or (iii) commits any other serious breach of the Call-Off Order that cannot be remedied within ten (10) days; or (iv) becomes insolvent, has a receiver appointed, makes a general assignment or filing for the benefit of creditors, or files for bankruptcy protection.

- b. In the event of a termination under this Article 32.1.1, Company will have no obligation to make further payments until the Work is completed by Company or by another contractor on behalf of Company. Once the Work is completed, Company will determine any remaining amount due to Contractor for Work satisfactorily completed prior to the effective date of termination, which amount will then be set off against:
 - i. any costs of achieving completed performance of the Work in excess of the amount that would have been paid to Contractor for completed performance thereof had termination not occurred;
 - ii. any administrative, legal, and other expenses incurred by Company in connection with Company's termination of the Call-Off Order;
 - iii. any applicable delay liquidated damages, determined by reference to the actual date of completion of the Work following termination, but excluding any periods of reasonably avoidable delay in achieving such completion that are not attributable to Contractor; and
 - iv. any other amounts due from Contractor to Company in accordance with the applicable Call-Off Order, including refund of any monies already paid by Company to Contractor for Work included in the terminated part of the Call-Off Order.

Company (to the extent any remaining amount due to Contractor exceeds the total amounts in respect of (i) through (iv) above) or Contractor (to the extent the total amounts in respect of (i) through (iv) above exceed any remaining amount due to Contractor) is to promptly pay the amount due to the other Party pursuant to the foregoing. The termination and deduction of costs and expenses are to be without prejudice to any other legal or equitable remedies available to Company.

- 32.1.2. In addition to the foregoing, Company may terminate a Call-Off Order or any part thereof at any time for its convenience, or pursuant to Article 29.6 owing to a prolonged delay due to Force Majeure, by providing Notice of such termination to Contractor. Company will pay Contractor for all Work satisfactorily performed up to the effective date of such termination. In the case of termination for convenience, but not for termination pursuant to Article 29.6, Company will also reimburse Contractor for substantiated: (i) necessary costs to terminate subcontracts and purchase orders as directed by Company (if Company has not exercised its option pursuant to Article 7.1.6 to require assignment thereof to Company, and provided that the cost of such termination is approved in advance by Company); (ii) reasonable costs of protecting and securing the Work and components thereof as provided in Article 32.1.3; and (iii) reasonable demobilization costs actually incurred by Contractor as a direct result of such termination.
- 32.1.3. In the event of termination of a Call-Off Order or any part thereof pursuant to Article 32.1.1 or Article 32.1.2, Contractor shall cease performance of the Work to the extent directed by Company and shall cooperate with Company (i) to assign to Company

subcontracts and purchase orders required by Company; (ii) to terminate, on terms favourable to Company, subcontracts and purchase orders not assigned to Company; and (iii) to transfer the Work and any components thereof as directed by Company. Additionally, Contractor shall take reasonable steps to secure and protect the Work and any components thereof until Company or its designee has taken possession.

- 32.1.4. In no event is Company liable for, nor is Contractor entitled to make, any Claim for lost or anticipated profits, unearned bonuses, or any similar damages for Work terminated or otherwise not performed by any of the members of Contractor Group.
- 32.1.5. In the event Company terminates the Work or any part thereof under a Call-Off Order pursuant to Article 32.1.1 or Article 32.1.2, Company will have the unrestricted right to contract with any person for the performance and completion of such Work. Company will have no liability whatsoever to Contractor arising out of such contracting, and Contractor will have no payment entitlement arising out of Company's decision to contract for performance of such Work with another person.
- 32.1.6. If any termination by Company for cause is found not to be in accordance with the provisions of this Agreement or is otherwise deemed to be unenforceable, then such termination will be deemed a termination pursuant to Article 32.1.2.

32.2. Suspension

- 32.2.1. Company is entitled, for any reason and at any time and from time to time, to suspend by Notice the performance of the Work or any part thereof under a Call-Off Order. Upon receipt of such Notice of suspension from Company, Contractor shall suspend the performance of the Work, or the applicable part thereof, for such time or times and in such manner as set forth in such Notice and shall take reasonable steps to minimize any costs associated with such suspension.
- 32.2.2. Except when such suspension ordered by Company is the result of or due to Legal Fault of any of the members of Contractor Group or of any of their respective officers, directors, personnel, or Invitees, or due to Force Majeure, Company will reimburse Contractor for the reasonable costs caused solely by such suspension. Such costs may include demobilization and remobilization costs, if applicable, provided Contractor supplies Company with appropriate supporting documentation to evidence such costs. Contractor will also be entitled to an appropriate time extension to any guaranteed completion dates to the extent of proven impact of such suspension (including when due to Force Majeure) on the critical path for the Work.
- 32.2.3. If suspension ordered by Company is the result of or due to Legal Fault of any of the members of Contractor Group or of any of their respective officers, directors, personnel, or Invitees:
 - a. no payments will be due from Company to Contractor for the Work so suspended or in respect of any Claims incurred by Contractor as a result of the suspension;
 - b. there will be no adjustment of the time schedule for performance of the Work; and
 - c. Contractor shall reimburse all direct and reasonable documented costs incurred by Company as a result of the suspension.
- 32.2.4. Upon receipt of Company's Notice to resume suspended Work, Contractor shall resume performance of the Work to the extent required, and in accordance with the time schedule for such resumption set out, in the Notice. In no event will Contractor be entitled to any additional profits or damages as a result of such suspension.

33. NOTICES

33.1.

- a. All Notices and other written communications authorized or required between the Parties by any of the provisions of this Agreement or any Call-Off Order are to be set out in subject-specific form in English, and will be effective upon receipt when given as follows:
 - i. by hand delivery to an authorized representative of the Party to whom directed; or
 - ii. by registered or certified mail, return receipt requested, postage prepaid; or
 - iii. by recognized courier service guaranteeing delivery within two (2) days, charges prepaid and with delivery recorded; or
 - iv. by facsimile, provided that the sender is able to provide evidence of successful and complete transmission; or
 - v. in the form of a duly signed document scanned and transmitted as an attachment to an email, provided that the recipient transmits a written acknowledgement of successful receipt, which the recipient has an affirmative duty to furnish promptly after successful receipt, with the original thereof to be delivered promptly in accordance with any of (i) through (iii) above;

in all cases to the address of the Party as set out in Article 33.3 or as stated in the applicable Call-Off Order.

- b. Any Notice or other written communication delivered outside the normal business hours of the recipient, other than a Force Majeure Notice pursuant to Article 29, will be deemed to have been received as of the start of the next following business day of the recipient.

33.2. For routine day-to-day communications only (for example to confirm verbal instructions, consents, or approvals regarding conduct of the Work, or for routine exchange of information), emails may also be used (sent by the Company Representative or the Contractor Representative, or their duly authorized delegates). Such emails should always request and receive an email acknowledgement of receipt (sent by the Contractor Representative or the Company Representative, or their authorized delegate) to be considered as valid instructions or approvals. Automated delivery receipts issued without direct human intervention, including 'out of office' responses, do not constitute evidence of receipt.

33.3. The addresses of the Parties with regard to this Agreement are as follows:

Company:

ConocoPhillips Skandinavia AS
Ekofiskvegen 35
N-4056 Tananger
Norway

ConocoPhillips Skandinavia AS
Postboks 3
N-4068 Stavanger
Norway

Attn: [REDACTED]

Email: [REDACTED]

Contractor:

Supplier Name:Not Specified

Supplier 1 Headquarter Address Line 1:Not Specified

Supplier 1 Headquarter Address Line 2:Not Specified

Supplier 1 Headquarter - Pin/Zip:Not Specified

Supplier 1 Headquarter - City:Not Specified

Supplier 1 Headquarter - Country:Not Specified

Attn: [REDACTED]

Email: [REDACTED]

- 33.4. Each Call-Off Order is to set out the notice address and other details of the Parties to such Call-Off Order.
- 33.5. Either Party to this Agreement or a Call-Off Order may, at any time, change its notice address and other details by Notice to the other Party in accordance with this Article 33.

34. INFORMATION SYSTEMS ACCESS

- 34.1. For purposes of this Article 34:

Network means facilities and services that allow the transmission of data and information, including vendor-approved circuits, microwave and radio systems, satellite facilities, local area networks, wide area networks, servers, and fiber optic systems; and

System means a collection of electro-mechanical devices that work together to store, retrieve, and manipulate data and information under control of a program. The term includes computers known as mainframe computers, host computers, control systems, mini-computers, distributed computer environments, personal computers, workstations, personal data assistants, and other similar devices (including smartphones and tablets).

- 34.2. In the event that Company and Contractor determine that members of Contractor Group need access to Company's Systems and Networks for or in connection with the performance of the Work under a Call-Off Order, the provisions of this Article 34 apply.
- 34.3. Company will determine the portions of Company's Networks and Systems to which the respective members of Contractor Group (each an **Accessing Party**) will have access and will designate such portions of the Networks and Systems in writing. Contractor is responsible for preventing access to non-designated portions of such Systems or Networks, including third-party portions of such Systems, as well as preventing improper access to or use of the Systems or Networks. No Accessing Party is to: (i) access or attempt to access any portion of Company's Networks or Systems except as expressly permitted hereunder; or (ii) introduce harmful code or data to the Systems.
- 34.4. Contractor shall maintain a current list of individuals accessing Company's Systems or Networks and shall provide the list to Company upon request. Company reserves the right to deny any individual access to Company's Systems or Networks at any time.
- 34.5.
- a. Contractor shall ensure compliance by all Accessing Parties with Company's policies, standards, and procedures for accessing and using Company's Systems and Networks, including Company's standards for use of anti-virus programs. Company reserves the right to change its policies and procedures for accessing its Systems and Networks at any time.
 - b. If necessary, Company will provide passwords or other means necessary to permit access to its Systems or Networks. At Company's request, each Accessing Party will be required to

return any devices provided by Company that permit access to Company's Systems or Networks and will provide a written certification that all passwords or other directions for accessing such Systems and Networks have been deleted or destroyed.

- c. Contractor expressly permits (and shall cause each Accessing Party to expressly permit) Company to monitor and record use of Company's Systems and Networks. Contractor shall ensure that each Accessing Party expressly acknowledges no expectation of privacy while accessing Company's Systems and Networks.
- 34.6. Prior to granting access to its Systems or Networks, Company may require Contractor and each Accessing Party to implement security control procedures. Company has the right to audit each Accessing Party to ensure compliance with the designated procedures. However, compliance with prescribed procedures and any audit or failure to audit such compliance does not relieve Contractor and the Accessing Party from any liability or obligation arising under any Call-Off Order. If an Accessing Party has computer hardware, including personal computers or data storage devices, at a Site, Company may access such hardware at any time to audit compliance with this Article 34.
- 34.7. Any information or data relating to Company's Networks or Systems to which the Accessing Party may have access, including third-party software, information, and data licensed to Company and Company proprietary software, is proprietary and confidential to Company and will be subject to all the requirements and restrictions contained in Article 30. All information an Accessing Party obtains from or creates during the course of the use of Company's Systems and Networks will be and will remain the Property of Company. No Accessing Party will copy any such information except as may be necessary to carry out the purpose for which access to Company's Networks and Systems has been granted. Each Accessing Party will return any such copies to Company upon completion of the Work.
- 34.8. No rights, ownership, or licenses to any Company copyrights, patents, trade secrets, or other intellectual property are granted hereunder. In no event will an Accessing Party copy, download, modify, reverse engineer, decompile, disassemble, or create derivative works of any data or software programs contained in Company's Systems or Networks without the prior written consent of Company. Each Accessing Party is to comply fully with all on-line confidentiality restrictions that are posted in connection with usage of Company's Systems and Networks.
- 34.9. Contractor is liable for any damage resulting from the introduction of malicious code by any Accessing Party onto Company's Systems or Networks. Malicious code includes any undocumented or hidden functionality or performance capability contained within electronic files or software. **TO THE EXTENT PERMITTED BY APPLICABLE LAWS, CONTRACTOR SHALL INDEMNIFY EACH OF THE MEMBERS OF COMPANY GROUP FROM AND AGAINST ANY CLAIMS ACTUALLY OR ALLEGEDLY CAUSED BY OR ARISING OUT OF ANY LEGAL FAULT, VIOLATIONS OF APPLICABLE LAWS, OR INFRINGEMENT OF INTELLECTUAL OR PROPRIETARY RIGHTS BY ANY ACCESSING PARTY IN THE USE OF COMPANY'S SYSTEMS OR NETWORKS.** Upon request, Contractor must provide proof of a valid license for all software used on or in connection with Company's Systems and Networks by or on behalf of any Accessing Party.
- 34.10. **COMPANY MAKES NO WARRANTIES, EXPRESS OR IMPLIED, AND EXPRESSLY DISCLAIMS THE WARRANTIES OF FITNESS FOR A PARTICULAR PURPOSE AND MERCHANTABILITY WITH RESPECT TO COMPANY'S SYSTEMS AND NETWORKS OR THE EQUIPMENT REFERRED TO IN ARTICLE 34.11.** Any loss or damage occurring to an Accessing Party arising from use of Company's Systems or Networks will solely be the responsibility of Contractor. Further, Company will not be liable to Contractor or any Accessing Party for any loss or corruption of Accessing Party data stored in or transmitted through Company's Systems; for any incorrect results obtained by using such Systems; for any interruption of access or use of such Systems for whatever reason; for access to any Accessing Party data by third parties; or for toll fraud in accessing, using, or egressing such Systems.
- 34.11. Company has the right to enter into Contractor's or any Accessing Party's locations to install, operate, inspect, or remove any equipment that may be necessary to effect the purpose of the

access to Company's Systems or Networks. Such equipment remains the Property of Company and is to be immediately returned to Company upon termination of the access or written request from Company.

- 34.12. Contractor shall comply (and shall ensure that its personnel and the other members of Contractor Group and their respective personnel comply) with the provisions provided in the Exhibit entitled 'Additional Information System Access Requirements', as identified in Article 1.1.

35. PERFORMANCE SECURITIES

35.1. Parent Company/ Performance Guarantee

- 35.1.1. Company may stipulate in any Call-Off Order that Contractor shall provide Company, without charge, with a performance guarantee in the format set out in the Exhibit entitled 'Forms of Performance Securities', as identified in Article 1.1, duly executed by Contractor's ultimate parent company or such other parent company of Contractor as Company deems acceptable, in Company's sole discretion (**Guarantor**).
- 35.1.2. At Company's written request, Contractor shall provide together with the performance guarantee a legal opinion on the enforceability of the guarantee based on verification by in-house or outside counsel of the relevant corporate documents of Guarantor to confirm: (i) the authority of the individuals signing the guarantee to bind Guarantor at the date of signature; and (ii) due compliance with any formalities required by such corporate documents or Applicable Laws to make the guarantee a legally binding and enforceable obligation of Guarantor.
- 35.1.3. When such a performance guarantee is required, Company has no obligation to make any payment to Contractor under the Call-Off Order until Company has received a performance guarantee that meets all the requirements of this Article 35.1. Should Contractor fail to provide such a performance guarantee within thirty (30) days from the effective date of the Call-Off Order, Company has the right at any time, without prior notification and without any liability whatsoever, to suspend or terminate the Call-Off Order upon Notice to Contractor. Should such performance guarantee prove not to be enforceable at any time for any reason, Company is entitled to suspend any and all payments to Contractor until Contractor has furnished to Company a new and satisfactory performance guarantee.
- 35.1.4. If the financial position of Guarantor changes materially, in the reasonable opinion of Company, during the validity period of such performance guarantee, Contractor shall provide Company with an alternative performance guarantee, if requested in writing by Company, from a provider and in a format, acceptable to Company. Such alternative performance guarantee applies in respect of all obligations assumed by Contractor under the applicable Call-Off Order.

35.2. Bank Guarantee/ Letter of Credit

- 35.2.1. Company may stipulate in a Call-Off Order that Contractor shall provide Company with a bank guarantee, from a financial institution acceptable to Company and in the format provided in the Exhibit entitled 'Forms of Performance Securities', as identified in Article 1.1, as security for the performance by Contractor of its obligations under the Call-Off Order. Company may accept a letter of credit in an appropriate form instead of a bank guarantee, in which case references in this Article 35.2 to a 'bank guarantee' apply also to such letter of credit. Each bank guarantee is to remain valid in its full amount, equal to ten percent (10%) of the value of the applicable Call-Off Order unless Company stipulates a lesser requirement, through completion and acceptance of the Work under the applicable Call-Off Order; and for fifty percent (50%) of such amount, equal to five percent (5%) of the value of the Call-Off Order, through expiration of the Warranty Period.

35.2.2. When such a bank guarantee is required, Company has no obligation to make any payment to Contractor under the Call-Off Order until Company has received a bank guarantee that meets all the requirements of this Article 35.2. Should Contractor fail to provide such a bank guarantee within thirty (30) days from the effective date of the Call-Off Order, Company has the right at any time, without prior notification and without any liability whatsoever, to suspend or terminate the Call-Off Order upon Notice to Contractor. Should such bank guarantee prove not to be enforceable at any time for any reason, Company is entitled to suspend any and all payments to Contractor until Contractor has furnished to Company a new and satisfactory bank guarantee.

35.2.3. Company is entitled to demand payment under the bank guarantee at any time should Contractor fail to perform its obligations under the Call-Off Order. Following any such failure and before demanding payment under the bank guarantee, Company will: (i) notify Contractor without undue delay of Company's intention to demand payment under the bank guarantee in respect of such failure; and (ii) reasonably take into consideration the nature of the breach, appropriate notice, and a reasonable opportunity for Contractor to remedy the breach.

35.3. Contractor shall bear all costs for obtaining and maintaining any performance guarantees and bank guarantees or letters of credit to be provided by Contractor pursuant to this Article 35.

The Parties have caused this Agreement to be executed on their behalf by their respective duly authorized representatives:

Signed for and on behalf of Company:
ConocoPhillips Skandinavia AS

Signature:

Name (print):

Position (print):

Date:

Signed for and on behalf of Contractor:
Supplier Name:Not Specified

Signature:

Name (print):

Position (print):

Date:

Electronic Signature Authorization. If this Agreement is signed electronically, the Parties expressly agree that (A) the electronic signature of this Agreement by a Party is valid as an original signature of such Party and is effective to bind such Party to this Agreement; and (B) this Agreement, when signed electronically or manually, is to be deemed (i) to be 'written' or 'in writing'; (ii) to have been signed; and (iii) to constitute a record established and maintained in the ordinary course of business and an original written record when printed from electronic files. To

the extent authorized or permitted by Applicable Laws, such paper copies or 'printouts', if introduced as evidence in any judicial, arbitral, mediation, or administrative proceeding, will be admissible as between the Parties to the same extent and under the same conditions as other original business records created and maintained in documentary form. Neither Party shall contest the admissibility of true and accurate copies of this electronically signed document on the basis of the best evidence rule; or of it not satisfying the business records exception to hearsay rules; or of any other legal theory. Each Party further warrants that the representative who executes this Agreement on its behalf by electronic signature has the authority to do so.

EXHIBIT A – DRUG AND ALCOHOL POLICY

Contractor shall have a policy with respect to drug and alcohol abuse, similar to Company's own 'Drug and Alcohol Policy' available at Company's web page:

<http://static.conocophillips.com/files/resources/drug-alcohol-policy-rev-27-october-2015-english.pdf>

Contractor shall ensure that all the members of Contractor Group and their respective personnel comply with Contractor's drug and alcohol policy, with each member of Contractor Group bearing for its own account (or Contractor bearing for its own account) all associated costs.

EXHIBIT B – HEALTH, SAFETY, AND ENVIRONMENTAL (HSE) REQUIREMENTS

Contractor shall comply (and shall ensure that its personnel and the other members of Contractor Group and their respective personnel comply) with the requirements in the latest published versions of ISO 14001 and 45001 and the requirements stated below.

1 LEADERSHIP AND COMMITMENT

1.1 Commitment to HSE through leadership

Responsibility for HSE lies with Contractor's line management and its top executives shall be personally involved in HSE management. Contractor's commitment to HSE is to be evident and auditable at all levels within its organization.

2 POLICY AND STRATEGIC OBJECTIVES

2.1 HSE policy, access and responsibility

Contractor shall have a documented HSE policy, developed with active employee participation and implemented throughout the organization. Company HSE Policy requirements are to be adapted and incorporated as required.

2.2 Contractor's policy on accidents and losses

Contractor's HSE policy is to reflect the accident-free (zero) mindset as a long-term target.

3 ORGANIZATION, RESOURCES, AND DOCUMENTATION

3.1 Employee contribution

Contractor shall ensure that its personnel are working in compliance with contractually agreed working practices and have actual influence on their working situation in matters concerning health, safety, and environment.

3.2 Organization and communication

Contractor's organization shall facilitate effective HSE management and communication, with emphasis on HSE as an integrated element in planning and implementing operations.

3.3 Mapping of working environment, information, and training

Contractor shall ensure that:

- The working environment and any follow-up measures are appropriately mapped. Based on the results from the working environment mappings, a plan for follow-up and improvement of the working environment is to be established. All actions are to have a timeline and a responsible person.
- Prudent routines are in place to regulate coordination between different employers.
- The safety and health services have the necessary information about the working environment.
- Personnel receive necessary information and training in order to avoid and prevent work-related diseases.
- Personnel receive necessary information about the risk and health exposure relating to the working environment.

3.4 HSE training of managers and supervisors

Contractor's managers and supervisors who will be involved in planning, monitoring, checking, or carrying out the Work are to have undergone formal HSE training, regardless of their level in the organization. Contractor shall define HSE training norms and training programmes for managers at all levels.

3.5 Personnel HSE induction programme

Contractor shall establish special arrangements for training new personnel in relevant local procedures and in any specific hazards inherent in the activity.

3.6 Training programme

Contractor shall have documented systems in place for selecting and training personnel to ensure that the Work is executed by qualified individuals with adequate skills. Contractor shall establish arrangements which ensure that Contractor's and Subcontractors' personnel are familiar with and trained in the risks relevant for the scope of the Work, such as:

- Basic industrial HSE
- Contractor's HSE policy and management system
- Company's HSE policy (attached hereto)
- Company's Life Saving Rules (see Section 5.3 below and Attachment 1 hereto)
- Company's defined safety-critical procedures (see the website referred to below)
- Company's Personal Safety Involvement (PSI) program (see the website referred to below)
- Any specific hazards inherent in the activities
- Correct use of hand tools and rotating equipment
- Correct use of personal protective equipment
- Emergency response

Contractor shall put arrangements in place to ensure that the HSE knowledge and training of personnel are continuously documented and updated.

Reference is made to Company public web page, vendor relations: <http://www.docstream.no/copno/lsr-en.html>

3.7 Assessing the suitability of Subcontractors

Contractor shall assess the HSE expertise and record of Subcontractors. Contractor shall document its methods for identifying the standards and requirements to be met by Subcontractors, and for ensuring that these standards and requirements are understood and observed.

3.8 Principal Enterprise

Where Contractor is the principal enterprise according to Section 33 of the Framework HSE Regulation (Royal Decree of 12 February 2010 ("Rammeforskriften")) and Section 2-2(2) of the Working Environment Act of 17 June 2005 ("Arbeidsmiljøloven"), Contractor shall accordingly inform Company about any circumstances that significantly impact or may impact the working environment. Similarly, Contractor shall inform Company to the extent such information is mandatory pursuant to Company's obligations to conduct internal control in accordance with the Working Environment Act.

Contractor shall also coordinate the contact and communication with the Petroleum Safety Authority for all circumstances pertaining to the responsibilities of a principal enterprise, and keep Company duly informed in writing about such contact and communication.

Contractor shall coordinate the safety and environmental activities of the Work and facilitate accordingly the establishment of a joint working environment committee ("felles stedlig arbeidsmiljøutvalg"). When requested, this committee shall submit its activity plan and annual reports to the Petroleum Safety Authority, with a copy to Company.

Contractor shall ensure that all Contractor Group personnel comply with applicable work time conditions. Contractor shall ensure that each employer providing personnel to the Work shall submit an overview to Contractor and Company detailing the actual working hours and time off for all personnel.

Upon request, Contractor shall submit to the Petroleum Safety Authority plans for work time and shift plans, with a copy to Company.

4 EVALUATION AND RISK MANAGEMENT

4.1 Risk Assessment

Contractor shall utilize suitable and generally recognised methods for identifying and assessing HSE hazards and their consequences; and document these methods.

4.2 Security Management

Contractor must always:

- Have implemented security measures which protect Company against relevant threats related to the Work. The level of security is to be flexible and adapted to the relationship between the threat and activities ongoing at any given time.
- Have a system in place for handling and securing of classified documents and electronic data.
- Be able to verify the identity of personnel who are to perform Work for Company.

4.3 Work-related injury and illness

Contractor shall systematically follow up incidents of Work-related injury and illness. Personnel are to be encouraged to propose countermeasures, and to prevent new incidents from occurring.

4.4 Working environment

Contractor shall have a system that ensures and documents the identification and following up of all physical, chemical, ergonomic, and psychosocial/ organizational factors which could be potentially detrimental to health and performance. This system is to be linked to continuous systematic monitoring of the exposure of personnel to these factors, and to a programme for reducing exposure that could be harmful to health. Contractor shall establish a yearly follow-up plan that describes the main activities for controlling and improving the working environment.

4.5 Work time, shift plans, and use of overtime

Upon request, Contractor shall submit to the Petroleum Safety Authority plans for work time and shift plans, with a copy to Company. Contractor shall ensure that working hours, overtime, and restitution time are systematically monitored; and that the use of overtime does not represent a risk to human health or safety or to the environment.

4.6 Chemicals

Contractor shall have a system which ensures and documents that all chemicals due to be used in the Work are evaluated for their health risk during transport, use, and disposal; and that chemicals with the smallest health risk are given preference whenever this is technically and operationally feasible. The system must also ensure that chemicals due to be used in the Work are approved by Company.

4.7 HSE data sheets

Contractor shall have a system in place that ensures that correct information is available on the health risk and the fire, explosion, and environmental hazards posed by chemical products used in the Work. The Safety Data Sheets (SDSs) are to be made available (and kept updated) in Norwegian and languages that are understood by the personnel who will perform the Work.

4.8 Personal protective equipment

Contractor shall be able to demonstrate that the personal protective equipment (PPE) used in performance of the Work provides satisfactory protection in the relevant tasks. The standard of PPE must conform or be equivalent to a recognized international standard. Documented arrangements are to be in place for provision and maintenance of PPE, both standard issue and items required for special operations.

4.9 Use of hand tools

Hand tools are to be managed according to Company procedure. A knife must not be used unless identified as the most suitable tool for the task. Use of a knife requires approval by the responsible manager, and such use is to be limited to defined tasks and managed through the work permit system. Cut-resistant gloves must be worn when using a knife.

4.10 Environmental management system

Contractor shall have an environmental management system conforming to or developed to a level comparable to a recognised international standard, e.g., latest revision of ISO 14001 or equivalent standard, and the national NORSOK S-003 standard. Contractor shall ensure that the system is well known by Contractor's personnel, and actively adhered to.

4.11 Environmental impact assessment and monitoring

Contractor shall have a system in place which ensures and documents the evaluation and follow-up of the Work's environmental impact. The follow-up is to include environmental monitoring where required. Evaluation and monitoring results are to be used systematically to minimise the environmental impact.

4.12 Selection of environmentally optimal solutions

Contractor shall have a system in place that ensures and documents the selection of environmentally optimal solutions. The environmental aspect is to be included in all technical evaluations which involve discharges. The results of these evaluations are to be documented in an environmental accounting system and will serve as an evaluation criterion when selecting solutions based on cost/ benefit analyses.

4.13 Waste management

Contractor shall implement appropriate measures to prevent or reduce the generation of waste. Contractor shall have implemented a system for identifying, classifying, and handling waste. Hazardous waste is to be handled in accordance with Applicable Laws. Consumer and production wastes are to be segregated.

Contractor shall ensure that the operations of Contractor Group are conducted in a tidy and proper manner, with waste materials stored in a way such that they cannot escape owing to high wind or other adverse weather conditions. All storage of potentially environmentally damaging fluids, including fuels, is to include provisions for spillage containment.

4.14 Environmental properties of chemicals that might be discharged to sea or re-injected

Contractor shall ensure information on toxicity, biodegradability, and bioaccumulation potential is available for all chemicals as specified in the activity's regulation. This includes chemicals added to systems onshore that at some later point might be used, discharged, or re-injected offshore. Contractor shall demonstrate a system which ensures and documents that eco-toxicological data and the contents of safety data sheets are consistent with each other and valid for the chemical actually being used. Contractor must obtain permission to use any such chemicals that may be later discharged to sea, through Company's Chemical Application System prior to purchase and usage.

Contractor shall provide eco-toxicological data for chemicals in the harmonised offshore chemical notification format (HOCNF). This information is to be compiled in accordance with the quality requirements specified in OSPAR's published guidelines for completing the HOCNF and activities regulation.

4.15 Use of potentially environmentally harmful chemicals

Contractor shall have a system in place which ensures and documents the evaluation of measures to reduce discharges/ emissions to soil, water, and air. Contractor shall give emphasis to reducing chemical usage and replacing environmentally harmful chemicals; and include measures based on these evaluations in an environmental action plan or HSE programme.

Contractor must not use or discharge any chemicals without permission from Company.

For Work performed in Norway:

(i) When chemicals that are used in Norway fail to meet the criteria of the Ministry of Climate and Environment Agency (CEA) for degradability and bioaccumulation, or when such chemicals in other ways are classified as potentially harmful to the environment, Contractor shall document the justification for continued use and prepare a plan for replacing the chemical.

(ii) Chemical products and substances which are used in Norway and classified by the CEA and the PSA [see Report no 58 (1996-97) to the Norwegian Storting (parliament), and current regulations] are to contain a minimum level of contaminant and to be of the highest possible purity and quality. Contractor shall have a quality assurance system which ensures that only products with the highest purity are used.

5 PLANNING AND PROCEDURES

5.1 HSE management system

Contractor shall establish an HSE management system, which it shall prepare in consultation with Contractor's employee representatives. Contractor shall ensure that the HSE management system is updated throughout the Work.

Contractor shall ensure the HSE management system addresses all the identified risks associated with the specific Work to be performed; and includes as a minimum occupational health, working environment, safety, security, the environment, and emergency response. Separate objectives are to be defined for each of these main areas.

5.2 HSE programme

Contractor shall establish an HSE programme covering occupational health and the working environment, safety, security, the environment, and emergency response.

Contractor shall submit the HSE programme to Company and Company's employee representatives for review in accordance with agreed milestones. Contractor must notify Company in advance of possible changes to the programme.

In addition, the HSE programme is to:

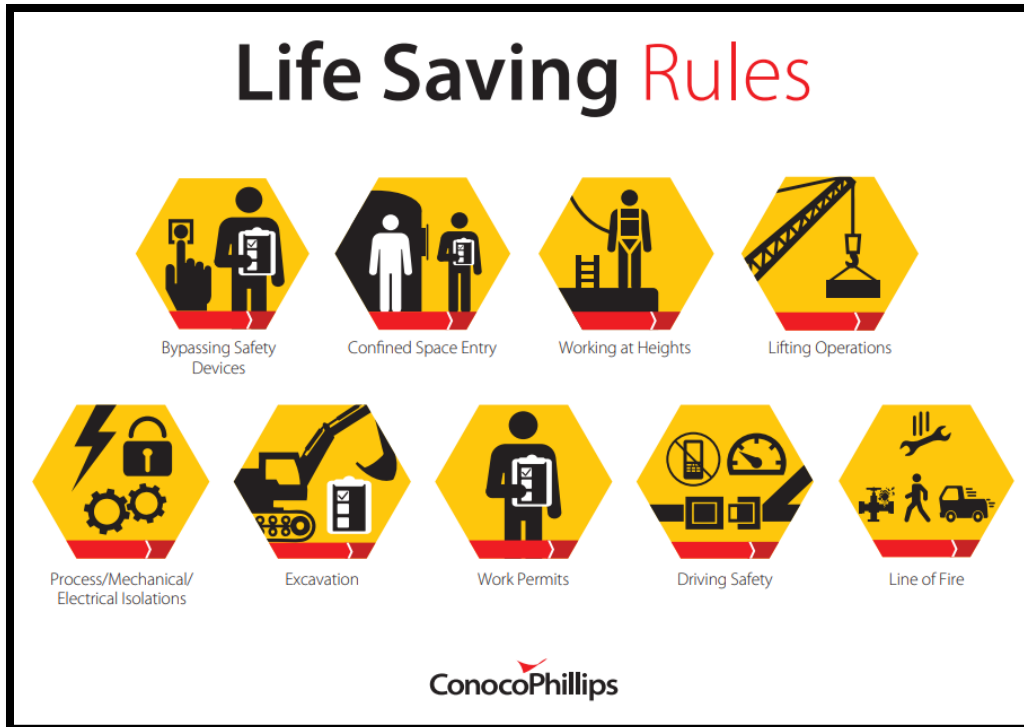
- Identify regulations and other specific requirements relating to HSE which apply to the Work.
- Define activities which are to be initiated to meet prevailing requirements.
- Define the risk management system.
- Define applicable risk acceptance criteria.
- Define the hazards to be addressed, how these are to be controlled, and which methods should be used if necessary to regain control.
- Identify procedures to be developed or Company procedures to be adapted and incorporated.
- Define Company/ Contractor responsibilities and interfaces, and Contractor's strategy for supervising Subcontractors.
- Identify and schedule Contractor's training requirements.

5.3 Life Saving Rules

Contractor shall incorporate Company's Life Saving Rules (set out in Attachment 1 hereto) into Contractor's HSE management system, to ensure compliance.

Contractor shall:

- Apply Life Saving Rules to all applicable Work activities.
- Train all Contractor Group personnel on the Life Saving Rules minimum requirements as they apply to their Work-related activities.
- Proactively monitor adherence to the Life Saving Rules through on-site verification, auditing, or observations
- Not modify the Life Saving Rules icons.



5.4 Emergency preparedness

In an emergency, Contractor must be able to establish and maintain contact with next-of-kin, media, unions, and authorities in co-operation with Company, unless otherwise agreed. Contractor shall have a system in place ensuring that updated and relevant personnel data for Contractor Group personnel are readily available in Contractor's office. The data are to include social serial numbers and relevant personal data for next of kin. Contractor shall have a documented organization for providing immediate and long-term care for personnel and their relatives in the event of a hazardous condition or an accident.

Contractor shall demonstrate an emergency preparedness plan for the different phases of the Work, which requires acceptance by Company. Contractor shall develop, implement, and maintain a plan for medical treatment and case management, which may include an on-site medical facility.

6 IMPLEMENTATION AND MONITORING

6.1 Supervision and monitoring of Work activities

Contractor shall supervise and monitor Work activities to ensure full compliance with all relevant HSE requirements. Contractor shall pass on the results of this supervision and monitoring without undue delay to Contractor's management and personnel. Contractor shall verify that personnel are familiar with work instructions and procedures, and that they are capable of acting according to the instructions provided. Contractor shall perform frequent management inspections to verify compliance with prevailing standards.

Company is to be entitled to meet, together with Contractor, with foremen and supervisors on a regular basis to discuss expectations and challenges of the HSE work.

6.2 Undesirable events/ hazardous conditions

Contractor shall comply with all official requirements for notifying and reporting undesired events/ hazardous conditions relating to safety, occupational health, and the environment. Contractor shall document routines for ensuring such compliance.

Contractor shall report to Company all notifiable undesirable events/ hazardous conditions experienced by Contractor Group without undue delay, whether the event occurred at Contractor's premises or at another location. The report is to include the date of the event, its causes, and any preventive follow-up measures taken.

6.3 Reporting events with a high loss potential

Contractor shall report all events suffered by Contractor Group and having a high loss potential to Company within 24 hours of the Incident. Contractor shall provide information on possible underlying causes.

6.4 Reporting personnel injuries

Contractor shall notify Company of any Personal Injury suffered by Contractor Group personnel, specifying the direct and underlying causes.

6.5 Incident follow-up system

Contractor shall have a system in place to record and follow up corrective and preventive actions resulting from undesired events. Contractor shall ensure the system facilitates systematic transfer of experience.

6.6 Investigation and reporting of major incidents

Contractor shall have a documented process for investigations, including identifying who will lead investigations and clearly defining competence requirements for key positions in the investigation team. Investigation reports are to be made available to relevant personnel and Company. Contractor shall ensure findings and mitigating actions are documented, followed up, and communicated (internally and to Company).

Company has the right to participate in any investigation carried out by Contractor to address incidents, near misses, and injuries related to Work.

Company is entitled to investigate independently incidents, near misses, and injuries, regardless of the actions taken by Contractor to investigate the same incidents, near misses, or injuries.

At any location at which Work is performed, Company shall have for investigation purposes unrestricted access to all Contractor Group personnel and information Company deems relevant.

6.7 Occupational health

Contractor shall have a system in place which documents systematic health monitoring as specified by Applicable Laws and good professional practice. Contractor shall ensure that monitoring leads to appropriate action plans, which are then regularly followed up.

The system is to provide for identification, evaluation, and reporting of Work-related illnesses and corrective measures; follow-up of personnel on sick leave; and prevention and treatment of alcohol and drug abuse.

6.8 HSE performance indicators

Unless Company agrees otherwise, Contractor shall submit a monthly HSE report as part of Contractor's overall monthly report. This HSE report is to cover the status of identified HSE hazards and significant HSE aspects. The status of all activities in the HSE programme is also to be detailed in full. Preventive measures which have been initiated or implemented are to be briefly described.

Contractor shall have a documented system in place to monitor HSE performance against targets for defined key areas and activities, with feedback to personnel.

Unless otherwise agreed, the following HSE data are to be provided for Contractor, for each Subcontractor, and in total:

- Number of accidents/ losses
- Number of near-misses/ hazardous conditions
- Number of undesirable events with high loss potential
- Number of first aid cases
- Number of medical treatment cases
- Number of restricted work day cases
- Number of lost-time injuries
- Hours worked (see below)
- Total Recordable Injury Rate per 200 000 working hours
- Registered overtime
- Sickness absence (as a percentage of normal working hours)
- New cases of Work-related illness.

Contractor shall inform Company of Contractor's definition of a lost-time injury and a Work-related illness, and Contractor's definition of and practice concerning the use of alternative work.

The numbers of medical treatment cases, restricted workday cases, and lost workday cases are to be reported according to U.S. Occupational Safety Health Administration standard (OSHAS).

Hours spent on the Work are to be specified as follows: a) total number of hours worked in the period; b) direct and indirect construction hours, including supervision and fabrication, but excluding engineering hours. Contractor shall report construction and installation Work performed by Subcontractors at Subcontractors' sites which amount to more than 10 000 hours.

6.9 Experience transfer

Contractor shall document formal requirements for HSE experience transfer. Contractor must provide sufficient time and resources to facilitate systematic improvement.

Transfer of HSE experience is to form part of Contractor's close-out report to Company. Contractor shall prepare this report concurrently with performance of the Work, and it is to address the following as a minimum:

- How Contractor's HSE programme has functioned (when the programme has been drawn up).
- Unforeseen problems — how these were overcome and recommended future approaches.
- Underlying causes of Personal Injuries and Work-related illness, and how these have been followed up.

- Positive HSE aspects which should be considered for future activities.
- Any damage to equipment, and recommendations on avoiding similar damage in future operations.
- Suggested improvements to Work routines.

Contractor shall discuss the current status of the above items with the Company Representative at regular experience transfer meetings.

7 COMPANY'S HEALTH, SAFETY & ENVIRONMENTAL POLICY

Attached hereto is Company's Health, Safety & Environmental Policy.

POLICY STATEMENT COMMITMENT

ConocoPhillips Norway Business Unit is committed to protecting the health and safety of everybody who plays a part in our operations or lives in the communities in which we operate. Wherever we operate, we will conduct our business with respect and care for both local and global environment and systematically manage risks to drive sustainable business growth.

We will not be satisfied until we succeed in eliminating all injuries, occupational illnesses, unsafe practices and incidents of environmental harm from our activities.

RESPONSIBILITIES

The President has overall accountability for Health, Safety and Environmental performance in our operations.

All managers and supervisors at ConocoPhillips are responsible and accountable for the Health and Safety of their staff by:

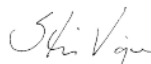
- Ensuring that all applicable Health, Safety & Environmental legislation and codes are adhered to and that appropriate actions are taken to ensure a safe working environment.
- The active participation of all employees in the achievement of Health, Safety & Environmental objectives.
- Conducting all activities in accordance with the requirements of the Health, Safety & Environmental Management system.

Employees are responsible for ensuring they comply with relevant legislation and the Health, Safety and Environmental management system, to ensure prevention of harm to themselves, their colleagues and the environment.

OUR PLAN

To meet our Policy Statement, ConocoPhillips Norway Business Unit will:

- Demonstrate active Health, Safety and Environmental leadership and communication of this policy.
- Ensure that all employees and contractors understand that working safely is a condition of employment, and that everyone is responsible for their own safety and for minimizing environmental impacts of our operations.
- Provide all the employees and contractors with the responsibility and authority to stop work that they believe to be unsafe.
- Manage all projects and processes through their life cycles in a way that protects Health and Safety and prevents pollution and manages wastes.
- Provide employees, contractors and suppliers with the training, knowledge and resources necessary to achieve our Health, Safety & Environmental commitments.
- Measure, audit and publicly report Health, Safety & Environmental performance and maintain open dialogue with stakeholder groups.
- Comply with laws and regulations and applicable codes.
- Work with the regulator and other stakeholders to continuously improve Health, Safety & Environmental performance.
- Evaluate and control exposure risks in the working environment.
- Communicate our commitment to this policy to our contractors and governments.
- Provide medical services to give advice, support and monitoring on health related matters.
- Include environmental, social and governance (ESG) considerations into all our business decisions.
- Investigate and report incidents and accidents with the potential to cause risks to health, safety or environmental damage.
- Require all employees and contractors to attend Health, Safety & Environmental meetings.
- Develop safe systems of work for all potentially hazardous situations, and identify and assess major accident hazards.
- Implement procedures to ensure that operational and technical integrity, which have the potential to cause an HSE impact are properly considered at all stages in the asset life cycle.
- Provide effective emergency response systems allowing onshore and offshore personnel to deal effectively with emergency situations.
- Continuously improve the energy efficiency of our operations.



Steinar Våge
President, Europe, Middle East & Africa

"Nothing is so urgent or important, that we cannot take time to do it safely and in an environmentally prudent manner"

POLICY

ConocoPhillips Norge Forretningsenhet forplikter seg til å ivareta helsen og sikkerheten til alle som arbeider hos oss, eller som kan bli påvirket av vår virksomhet. Uansett hvor vi opererer, skal vi ta hensyn til både det lokale og globale miljøet, og systematisk styre risiko slik at vi fremmer bærekraftig forretningsvekst. Vi er ikke tilfreds før vi har lyktes i å eliminere alle personskader, yrkessykdommer, usikker praksis og miljøskader fra virksomheten vår.

ANSVAR

Administrerende direktør har det overordnede ansvaret for helse-, miljø- og sikkerhetsarbeidet i virksomheten.

Alle avdelings- og gruppeledere i ConocoPhillips er ansvarlige for medarbeidernes helse og sikkerhet ved:

- å sikre at alt gjeldende regelverk innen HMS følges og at hensiktsmessige tiltak iverksettes for å sikre et trygt arbeidsmiljø.
- aktiv deltakelse fra alle medarbeidere for å oppnå helse-, miljø- og sikkerhetsmålsettinger.
- å gjennomføre all virksomhet i samsvar med kravene i helse-, miljø- og sikkerhetsstyringssystemet.

Ansatte er ansvarlige for å følge all relevant lovgivning og helse-, miljø- og sikkerhetsstyringssystemer, for å forhindre skader på seg selv, sine kolleger og miljøet.

VÅR PLAN

For å oppfylle vår policy for helse, miljø og sikkerhet vil ConocoPhillips Norge Forretningsenhet:

- Utvise aktivt helse-, miljø og sikkerhetslederskap og formidle selskapets HMS-policy
- Sikre at alle ansatte og innleid personell forstår at det å jobbe sikkert er en betingelse for ansettelse, og at alle er ansvarlige for sin egen sikkerhet og for å minske den miljømessige belastningen fra våre aktiviteter.
- Gi ansatte, innleid personell og leverandører ansvar til å stanse arbeid som de mener kan være farlig.
- Styre alle prosjekter og prosesser gjennom alle faser på en måte som ivaretar helse og sikkerhet, unngår forurensning og sikrer forsvarlig avfallshåndtering.
- Gi ansatte, innleid personell og leverandører den nødvendige opplæring, kunnskap og ressurser til å innfri våre forpliktelser innen helse, miljø og sikkerhet.
- Måle, kontrollere og offentliggjøre resultater innen helse, miljø og sikkerhet, og føre en åpen dialog med interessegrupper.
- Overholde lover og forskrifter og gjeldende koder.
- Samarbeide med tilsynsmyndigheter og andre interessenter for å kontinuerlig forbedre resultatene innen helse, miljø og sikkerhet.
- Evaluere og kontrollere risiko for eksponering i arbeidsmiljøet.
- Sørge for helsetjeneste som gir råd, støtte og følger opp helserelaterte saker.
- Kommunisere vår forpliktelse til denne policy til våre kontraktører og myndigheter.
- Inkludere miljøhensyn, samfunnsansvar og god virksomhetsstyring (ESG) i hele vår forretningsdrift.
- Granske og rapportere hendelser og ulykker som potensielt kan sette helse, miljø og sikkerhet i fare.
- Kreve at alle ansatte og innleid personell deltar på helse-, miljø- og sikkerhetsmøter.
- Utvikle sikre rutiner for alle potensielt farlige situasjoner, og identifisere og vurdere risiko for storulykker.
- Implementere prosedyrer for å sikre at operasjonell og teknisk integritet som påvirker HMS vurderes nøye i alle faser av anleggets levetid.
- Sørge for effektive beredskapssystemer som gjøre at personell på land og til havs effektivt kan håndtere beredskapssituasjoner.
- Kontinuerlig forbedre energieffektiviteten ved våre operasjoner.

Steinar Våge
Regiondirektør, Europa, Midtøsten & Afrika

"Vårt arbeid er aldri så viktig, eller haster så mye, at vi ikke har tid til å gjøre det sikkert, og på en miljøforsvarlig måte."

ATTACHMENT 1 – LIFE SAVING RULES

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Life Saving Rules

General Requirements

The following general requirements apply to all nine Life Saving Rules
Multiple Life Saving rules may apply to an activity or work task

Critical Controls

Critical Controls are identified for each Life Saving Rule and are highlighted at the beginning of each set of minimum requirements
Critical Controls help in the prevention of events that we can't recover from or allow us to fail safely.

Risk Assessment

Prior to each Life Saving Rule activity a risk assessment must be performed
The scope of the risk assessment must be appropriate for the task.

Hazard Identification and Mitigation

Prior to and during each Life Saving Rule activity a system must be in place to:

1. Identify hazards
2. Provide mitigation for those identified hazards
3. Ensure the ongoing effectiveness of mitigations

For control of work activities, ensure that acceptable work conditions are communicated to affected personnel

Changes in Work Scope and/or Conditions

For any changes in work scope and/or conditions:

1. Stop the work
2. Reassess the hazards
3. Verify effectiveness of existing and/or any new safeguards prior to recommencing work.

Training and Competency

Prior to any Life Saving Rule activity, confirm that all workers are trained and/or competent for the task they are to perform.

Fitness for Duty

Prior to any Life Saving Rule activity, confirm that all workers are fit for duty.

Life Saving Rules Verification

Each Business Unit must have in place a Life Saving Rules Verification process that addresses the Critical Controls and all Minimum Requirements.

For further guidance, see local HSE Management System requirements



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Work Permits

Critical Controls

The Critical Controls for Work Permits are:

- **Verify** all isolations
- **Perform**, evaluate, and document Initial and periodic atmospheric testing as required by the permit.

Scope of work

The scope of work must clearly describe:

- The work to be performed
- The work location.

Competency

All persons working under the work permit must be competent to perform their assigned tasks.

Permit Requirements

Prior to the start of work, permit requirements a dedicated person must:

- **Be communicated** to all affected persons, including those that arrive after work has begun
- **Account** for interactions with other work permits and any non-permitted Simultaneous Operations
- **Define** methods for revalidation if needed.

Hazard Control /Mitigation

Confirm mitigation for all hazards identified on the permit prior to the start of work and as needed throughout the task

Hot Work

Prior to and during any Hot Work activities:

- **Identify** and control all ignition sources
- **Remove** or shield all flammable or combustible materials.

Changing Conditions

When conditions and/or work scope change:

1. **Stop** the work
2. **Reassess** the hazards
3. **Revise** the permit as necessary
4. **Confirm/reconfirm** original and any additional hazard mitigation measures.

For further guidance, see local Work Permit requirements



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Process/Mechanical/Electrical Isolation

Critical Controls

The Critical Controls for Process/Mechanical/Electrical Isolation are:

- **Identify** all potential energy sources
- **Isolate**, Lock, and Tag all energy sources
- **Verify** absence of energy before start of work (Try).

Identifying Energy Sources

Energy sources must be:

- Identified by Authorized Persons
- Documented on applicable permits, LOTO plans, isolation certificates, etc.

Isolating equipment

All isolations must be performed by an Authorized person.

Locking and Tagging equipment

Locks and Tags must:

- Be placed on each isolating point while work is being performed
- Prevent the operation of the isolating device
- Clearly identify isolation points and lock owner
- Be removed only by Authorized Persons

Isolation locks and keys must be strictly controlled.

Verify Zero Energy (Try)

Absence of energy must be confirmed:

- Prior to the start of work
- After work breaks, as necessary
- As required by permits or LOTO plans
- By opening bleeder valves, operating start/stop switches, testing for hazardous materials, testing for absence of voltage, etc.

A walk-through of the isolation and verification of zero energy must be performed, at a minimum, with the responsible person and the lead worker.

For further guidance, see local Isolation/LOTO & Try requirements



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Driving

Critical Controls

The Critical Controls for Driving are:

- **Wear** a seat belt when vehicle is in motion
- **Do not exceed** the speed limit
- **Do not use** mobile devices while driving.

Seat Belts

All occupants must wear and keep their seatbelts properly fastened while in a moving vehicle

Driving Behaviors

Drivers on company business or property must:

- **Observe** speed limits
- **Drive** to accommodate
 - Weather and road conditions
 - Road conditions
- **Never** drive when fatigued
- **Pull** over and take a break when necessary

Vehicle occupants must intervene if an unsafe situation arises
Spotters must be utilized when required.

Mobile Devices

Do not use mobile devices while driving. These include:

- Mobile Phones
- Tablets
- Laptops

Mobile devices may be used as navigational aids. Manual activation or manipulation must only be performed when the vehicle is parked.

Journey Management

Perform a pre-trip inspection prior to operating a vehicle
Complete a Journey Management Risk Assessment when required.

For further guidance, see local Driving Safety requirements



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Excavation

Critical Controls

The Critical Controls for Excavation are:

- **Identify** all underground services
- **Verify** all isolations are in place and effective
- **Enter** excavations only with appropriate protective systems in place.

Underground Services

Prior to and during excavation activities, underground services must be:

- Positively identified
- Marked and markings maintained
- Deenergized when required.

Energy Isolations

Verify absence of energy for any associated energy isolations

Entering Excavations

Never enter an excavation before:

- Determining if a confined space entry permit is required
- A competent person has inspected the excavation
- An appropriate protective system is in place and inspected, as required
- Verifying a safe means of access and egress.

Excavation Equipment

When excavation equipment is in use:

- Utilize competent spotters to:
 - Aid in identification of underground hazards
 - Warn personnel of heavy equipment movement
 - Identify and communicate overhead hazards
- Establish, maintain, and honor barriers and exclusion zones.

For further guidance, see local Ground Disturbance and Excavation requirements



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Lifting Operations

Critical Controls

The Critical Controls for Lifting Operations are:

- **Establish**, maintain, and honor barriers and exclusion zones
- **Do not walk** under a suspended load
- **Confirm** all lifting equipment is rated for the load.

Competency Requirements

Ensure all employees meet competency requirements for their tasks, including:

- Lift plan preparers and approvers
- Lifting equipment operators
- Riggers
- Signalpersons
- Lift supervisors.

Equipment Inspections

Conduct the required inspections of the following equipment:

- Lifting equipment
- Rigging components
- The load to be lifted and any rigging attachment points

Ensure load limits and inspection dates, as required, are clearly marked, understood, and appropriate for the load. Ensure that third party certifications of all lifting equipment and components have been completed.

Suspended Loads

When loads are suspended:

- Establish clear escape routes
- Establish an agreed upon set of standard hand signals
- Establish a communication plan for blind lifts
- Do not walk under a suspended load
- Utilize tag lines or other assist devices to guide and set load.

Critical Lifts

Complete a Critical Lift plan when required.

Barriers and Exclusion Zones

Establish, maintain, and honor barriers and exclusion zones.

For further guidance, see local Lifting Operations requirements



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Working at Heights

Critical Controls

The Critical Control for Working at Heights is:

- **Maintain** 100% fall protection where required
- **Plan** for fall prevention and/or protection when working from ladders.

Equipment Selection and Inspection

Before working at heights, a qualified person must:

- **Determine** if work can be completed at grade or in a manner not requiring personal fall arrest equipment
- **Identify** rated anchor points, above the worker's head, where possible
- Inspect all fall arrest equipment, including:
 - Full body harness with a D-ring attachment point
 - Lanyards with shock absorbers or fall limiting devices
 - Dual action, self-locking snap hooks at each connection
- **Remove** any damaged equipment from service.

Dropped Object Prevention

Protect against dropped objects by:

- Securing tools and equipment from falling to a lower level
- Establish and maintain exclusion zones below overhead work.

Working at Heights

All personnel working at heights must:

- Maintain 100% fall protection where required
- Only work on scaffolding built, modified, and inspected by a competent person
- Plan for fall prevention and/or protection when working from ladders
- Have an established rescue plan, including equipment to minimize suspension trauma in the event of an arrested fall
- Protect all wall and deck openings.

For further guidance, see local Working at Heights requirements



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Confined Space Entry

Critical Controls

The Critical Controls for Confined Space Entry are:

- **Verify** all isolations are in place and effective
- **Perform** all required initial, periodic, and continuous atmospheric monitoring
- **Prevent** unauthorized entry.

Energy Isolation

Verify that all energy isolations are in place and effective

Acceptable isolation methods for confined space entries are:

- Blinding/Positive Isolation
- Disconnecting process piping
- Isolating all electrically driven/powering equipment.

Atmospheric Testing

Ensure Atmospheric testing equipment is calibrated, inspected, and maintained

Perform, Evaluate, and Document the following atmospheric testing

- Initial
- Periodic
- Continuous, as required

Establish and maintain ventilation as required by permit.

Confined Space Attendant

The confined space attendant's duties are:

- Maintain communication with entrants
- Evacuate the space in the event of an emergency
- Do not enter the confined space
- Prevent unauthorized entry.

Emergency Response

Emergency response procedures and resources are in place

Entry Authorization

The confined space entry permit requirements must be communicated to all entrants and the attendant(s)

The permit must be posted at the point of entry

A log of personnel in and out of the space must be maintained when required.

For further guidance, see local Confined Space Entry requirements



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Bypassing Safety Devices

Critical Controls

The Critical Controls for Bypassing Safety Devices are:

- **Perform** a thorough risk assessment prior to bypassing, disabling, or inhibiting a safety protection device or system
- **Communicate** all bypasses between shifts/crews.

Risk Assessment and Authorization

Prior to bypassing a safety protection device an authorized person must perform a risk assessment that includes the following:

- **Identifying** the affected safety protection devices
- **Understanding** the impact of interaction with other safety protection devices and on the system as a whole
- **Mitigating** the associated risks
- **Completing** any required Management of Change processes

Authorization level must be based on risk assessment results.

Common Safety Protection Devices

Common safety protection devices include:

- Emergency shutdown systems
- Fire and gas systems
- Process controls and alarm systems
- Relief valves
- Crane operator aids (LMIs, Anti two-block).

Bypass logs and Management Reviews

Bypassing safety protection devices requires:

- A current log for bypassed safety protection devices.
- A routine management review for all bypasses or inhibits.

Communication and Shift Handovers

The communication plan must cover all shift and crew handovers.

For further guidance, see local Bypassing Safety Protection Devices requirements



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Line of Fire

Critical Controls

The Critical Controls for Line of Fire are:

- **Establish**, maintain, and honor barriers and exclusion zones
- **Position** yourself and others to avoid line of fire hazards
- **Protect** against dropped objects.

Barriers and Exclusion Zones

When establishing barriers and exclusion zones consider the following:

- Overhead lifts, pressure testing, moving equipment, overhead work, etc.
- Completeness, maintenance, and communication of barricades
- Adherence to barriers and exclusion zones.

Positions of People

When determining proper position of people during work, consider:

Pressure Releases	breaking flanges and hose connections, removing plugs, blowing down equipment, pressure testing
Vehicles and heavy equipment	barricades, spotters, evaluation and planning of traffic patterns.
Suspended and swinging loads	tethering of tools/equipment, management of loads with tag lines and guide poles, evaluation of centers of gravity and environmental conditions.
Moving objects	unexpected movement of tools or equipment, securing of materials such as piping.
Equipment in stress	(compression, tension, or bent) – expected direction of energy release in a failure scenario.
Pinch Points	activities that subject people to crushing injuries

Prevent Dropped Objects

Protect against dropped objects:

- Secure tools and equipment from falling to a lower level
- Establish and maintain exclusion zones below overhead work

For further guidance, see local Line of Fire requirements.



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Livreddende Regler

Generell Krav

Følgende generelle krav gjelder alle de ni livreddende reglene

Flere livreddende regler kan gjelde for en aktivitet eller arbeidsoppgave

Kritiske Krav

Kritiske krav identifiseres for hver livreddende regel og fremheves ved begynnelsen av hvert sett av minimumskrav

Kritiske krav skal hjelpe til å forhindre hendelser som vi ikke kan tillate eller lar oss feile uten konsekvenser.

Risikovurdering

Før hver livreddende regel-aktivitet skal en risikovurdering utføres

Omfanget av risikovurderingen skal være passende for oppgaven.

Fare Identifisering og Begrensning

Før og under hver livreddende regel-aktivitet, skal et system være på plass for å:

1. Identifisere farer
2. Sørge for at de identifiserte farene har tiltak
3. Sikre at de risiko-reduserende tiltakene fungerer kontinuerlig

For kontroll av arbeidsaktiviteter, sørg for at akseptable arbeidsforhold er kommunisert til berørt personell

Endringer i Arbeidet Omfang og/eller Forhold

For eventuelle endringer i arbeidsomfang og / eller betingelser:

1. Stopp arbeidet
2. Vurder farene på nytt
3. Verifiser effektiviteten av eksisterende og/eller nye tiltak før en gjenopptar arbeidet.

Trening og Kompetanse

Før en starter på en livreddende regel-aktivitet, bekreft at all personell er opplært og / eller er kompetente for oppgaven de skal utføre.

Arbeidsdyktig

Før en starter på en livreddende regel-aktivitet, bekreft at alle er arbeidsdyktige.

Livreddende Regler Verifikasjon

Hver forretningsenhet skal ha på plass en Livreddende Regler-verifikasjonsprosess som adresserer de kritiske krav og alle minimumskrav.

For ytterligere veiledning, se lokale HMS prosedyrer



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Arbeidstillatelser

Arbeid med en gyldig arbeidstillatelse når det er påkrevd.

Kritiske Krav

De kritiske kravene for arbeidstillatelser er:

- **Verifiser** alle isoleringer
- **Utføre**, evaluere og dokumentere innledende og periodisk atmosfærisk testing som kreves av arbeidstillatelsen.

Omfanget av Arbeidet

Arbeidsomfanget skal tydelig beskrive:

- Arbeidet som skal utføres
- Arbeidsstedet

Kompetanse

Alt personell som arbeider under en arbeidstillatelse, skal ha riktig kompetanse til å utføre sine tildelte oppgaver.

Krav om Tillatelse

Før arbeidsstart skal:

- Utførende fagperson **gjennomgå** arbeidstillatelsen sammen med arbeidslaget og sikre at nytt personell som kommer til, får samme gjennomgang.
- Områdetekniker **vurdere** om arbeidet kan startes i forhold til andre aktiviteter i området.
- Utførende fagpersonell skal **kjenne kravene** til opphevelse eller tilbakeholdelse av en arbeidstillatelse

Fare Kontroll / Skadebegrensning

Faremomenter er identifisert og vurdert, risikoene er avgrenset og de nødvendige kontrolltiltak er på plass.

Arbeidstillatelse

I forkant og under varmt arbeid kl. A og B:

- **Gjør vurdering** av potensielle lekkasjekilder i nærliggende områder
- **Fjern** eller skjerm alt brennbart og/eller eksplosjonsfarlig materiale

Endrede Forhold

Når forhold og / eller arbeidsomfang endres:

1. **Stopp** arbeidet
2. **Identifiser** risiko på nytt
3. **Reviderer** tillatelsen om nødvendig
4. **Bekreft / verifiser** opprinnelig AT og eventuelt gjennomføre ytterligere tiltak for å redusere risiko

For ytterligere veiledning, se lokale prosedyrer som gjelder arbeidstillatelser.



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Kritiske Krav

Identifisere
Energikilder

Isolering av Utstyr
Låsing og Merking
av Utstyr

Verifiser Null Energi
(prøv/test)

Prosess-/mekanisk-/elektrisk isolering

Bekreft at systemet eller utstyret du skal jobbe på er frakoblet eller isolert før arbeidet begynner.

Kritiske krav for prosess / mekanisk / elektrisk isolasjon er:

- **Identifiser** alle potensielle energikilder
- **Isoler**, lås og merk alle energikilder
- **Verifiser** fravær av energi før du starter arbeidet (prøv/test)

Energikilder skal være:

- Identifisert av autorisert personell
- Dokumentert på gjeldende arbeidstillatelser; lock out tags, isoleringsplaner og isolasjonssertifikater, etc.

All isolering skal utføres av autorisert personell.

Låser og merkelapper skal:

- Settes på hvert isolasjonspunkt så lenge arbeid pågår
- Hindre operering av isolasjonspunktet
- Identifisere isolasjonspunkt- og låseier
- Kun fjernes av autorisert personell

Isolasjonslåser og nøkler skal holdes under streng kontroll

Fravær av energi skal verifiseres:

- Før arbeidet starter
- Etter arbeidspauser, om nødvendig
- Etter krav satt i arbeidstillatelser eller isoleringsplaner
- Ved å åpne avluftsventiler, foreta prøvestart, foreta måling av farlige stoffer, spenningsprøve av elektrisk utstyret, etc.

En gjennomgang av isolering og verifisering av null energi skal utføres som ett minimum, med den ansvarlige personen og utførende fagperson.

For videre veiledning, se lokale prosedyrer for prosess-/mekaniske og elektriske isoleringer.



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Trafikk sikkerhet

Bruk bilbelte, respekter fartsgrenser og bruk ikke mobiltelefon e.l. når du kjører.

Kritiske krav

De kritiske kravene for kjøring er:

- **Bruk** bilbelte når kjøretøyet er i bevegelse
- **Ikke** overskrid fartsgrensen
- **Ikke bruk** mobile enheter (telefon, nettbrett), mens du kjører.

Setebelter

Alle passasjerer skal ha på sikkerhetsbeltene og holde ordentlig festet når de er i bevegelig kjøretøy

Kjøreatferd

Ved kjøring til virksomhet eller eiendom skal:

- **Følge** fartsgrensene
- **Ta hensyn** til alle trafikanter
 - Værforhold
 - Veiforhold
- **Aldri** kjør når du er trøtt
- **Stans** og ta en pause når det er nødvendig

Kjøretøyets passasjerer skal gripe inn hvis en utrygg situasjon oppstår.

Observatør skal brukes når det er nødvendig.

Mobile enheter

Ikke bruk mobile enheter mens du kjører. Disse inkluderer:

- Mobiltelefoner
- Nettbrett
- Bærbare datamaskiner

Mobile enheter kan brukes som navigasjonshjelpemidler. Manuell aktivering eller manipulering skal bare utføres når bilen står parkert.

Reiseledelse

Utfør en inspeksjon før du bruker et kjøretøy

Fullfør en risikovurdering av reisen, når det er nødvendig.

For ytterligere veiledning, se lokale retningslinjer for sikker kjøring.



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Kritiske krav

Forstyrrelser av grunnen eller utgravingsarbeid

Innhent godkjenning før du starter graving eller annet arbeid som kan forårsake forstyrrelser av grunnen.

De kritiske kravene for utgraving er:

- **Identifisere** alle oppgaver og aktiviteter som foregår under jorden
- **Kontroller** at alt utstyr som trenger frakopling, har en fungerende isolering på plass
- **Entre** utgravninger bare når en har riktig beskyttelsessystemer på plass

Underjordiske tjenester Før og under utgravningsaktiviteter, skal oppgaver og aktiviteter som skal utføres under jorden, være:

- Positivt identifisert
- Merket og merkinger skal opprettholdes
- Fjerne strømførende utstyr ved behov

Energiisolasjoner Bekreft fravær av energi for tilknyttet utstyr

Oppgi utgravninger Aldri gå inn i en utgraving før:

- Fastslå om det er nødvendig med en tillatelse til området
- En kompetent person har inspisert utgravningen
- Et passende beskyttelsessystem er på plass og inspiseres etter behov
- Verifisere en trygg måte for tilgang og utgang

Graveutstyr Når graveapparat er i bruk:

- Bruk kompetente observatører til å:
 - Hjelp til å identifisere farer
 - Advare personell om bevegelse av tungt utstyr
 - Identifiser og kommuniser farer over arbeidsstedet
- Etablere, opprettholde og respektere barrierer og adgang forbudt-soner

For ytterligere veiledning, se lokale retningslinjer.



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Løfteoperasjoner

Følg reglene for «Sikre løfteoperasjoner» og gå ikke under hengende last.

Kritiske krav

De kritiske kravene for løfteoperasjoner er:

- **Etabler**, oppretthold og respekter barrierer og sperringer og andre fareområder (eks: rød sone etc.)
- **Gå ikke** under hengende last eller opphold deg i skuddlinjen
- **Påse** at løfteutstyret har tilstrekkelig løftekapasitet

Kompetansekrav

Sikre at alt personell oppfyller kompetansekravene til oppgavene sine, inkludert:

- Planlegge og godkjenne løfteplan
- Operatører av løfteinnretning
- Riggere
- Dekksoperatører
- Operasjonelt løfteansvarlig

Utstys- inspeksjon / førbruks- sjekk

Gjennomføre nødvendige inspeksjoner av følgende utstyr:

- Løfteutstyr
- Løst løfteutstyr
- Last som skal løftes og innfestningspunkter for løfteredskap

Forsikre deg om at kapasitetsbegrensningene og inspeksjonsdatoene er tydelig merket, forstått og passende for lasten.

Forsikre deg om at tredjepartssertifiseringer av alt løfteutstyr og komponenter er utført

Hengende last

Ved løfteoperasjoner:

- Identifiser fri rømningsvei
- Avklar kommunikasjonsform, inkludert standard hånd signaler
- Avklar kommunikasjonsplan ved blindløft. (Se instruks for blindløft)
- Gå ikke under hengende last eller opphold deg i skuddlinjen
- Bruk hjelpemidler (båtshake, styretau etc.) for å lede/føre last

Kritiske løft

Utarbeid en plan for kritisk løft, dersom det er påkrevd

Barrierer og soner

Etablere, opprettholde og respekter barrierer og sperringer og andre fareområder (eks: rød sone etc.)

For ytterligere veiledning, se lokale prosedyrer for rigging og løfteoperasjoner.



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Kritiske krav

Valg av utstyr og inspeksjon

Forebygging av fallende gjenstander

Arbeid i høyden

Arbeid i høyden

Beskytt deg mot fall når du arbeider i høyden.

De kritiske kravene for arbeid i høyden er:

- **Fallsikring** skal benyttes der det er påkrevd/nødvendig
- **Ved arbeid i stiger**, skal stigen sikre og fall sikring benyttes (over 2 m).

Før arbeid i høyden påbegynnes, skal en kompetent person:

- **Avklare** om arbeidet krever fallsikringsutstyr
- **Identifisere** festepunkt over hodehøyde, hvis mulig
- **Inspisere** fallsikringsutstyr, inkludert:
 - Fallsikringssele med D-ring festepunkt
 - Liner med falldemper og fallbegrensende enheter
 - Togreps selvlåsende kroker ved hver tilkobling
- **Kassere** alt defekt utstyr

Beskytt mot fallende gjenstander ved å:

- Sikre verktøy og utstyr fra å falle til et lavere nivå
- Sperre av områder under pågående arbeid i høyden

Alt personell som jobber i høyden skal:

- Benytte fallsikring der det er påkrevd/nødvendig.
- Bare jobbe på godkjent stillas bygget, modifisert og inspisert av kompetent personell
- Ved arbeid i stiger, skal stigen sikre og fall sikring benyttes (over 2 m)
- Ha en etablert redningsplan, inkludert utstyr for å begrense hengetraume i tilfelle et fall
- Sikre alle åpninger i dekk og vegger

For ytterligere veiledning, se lokale prosedyrer for arbeid i høyden og stillaser.



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Entrering i avlukkede områder

Innhent godkjenning før du entrer avlukkede områder.

Kritiske krav

De kritiske kravene for entring i avlukkede områder er:

- **Verifiser** at isoleringene er korrekt satt og er aktive
- **Utføre** all nødvendig atmosfærisk testing (LEL, O2, H2S, Kvikk sølv og Benzen); i forkant, periodisk og kontinuerlig
- **Hindre** at uautoriserte personell entrer avlukkede områder

Energiisolering

Verifiser at isoleringene er korrekt satt og er aktive

Akseptable isoleringsmetoder for entring er:

- Blinding/ Positiv isolasjon
- Frakobling av rør
- Isolering av elektrisk utstyr

Atmosfærisk Testing

Sikre at måleutstyret for atmosfærisk testing er kalibrert, inspisert og vedlikeholdt

Utføre, evaluere og dokumentere følgende atmosfærisk testing:

- Innledende
- Periodisk
- Kontinuerlig, etter behov

Etablere og vedlikehold ventilasjon iht. krav i arbeidstillatelsen

Entringsvakt

Entringsvaktens plikter er:

- Ha radioforbindelse og/eller visuell kontakt med personell som entrer
- Mønstre i henhold til alarminstruks
- Oppholde seg ved inngangen til tank/beholder/rom
- Sikre at uautoriserte personell ikke entrer avlukkede områder

Beredskap

Redningsplan skal være utfylt og gjennomgått av beredskapsorganisasjonen

Adgangs autorisasjon

Tillatelsesvilkår og risikovurdering er formidlet til involvert personell

Arbeidstillatelse inkludert SJA, redningsplan, målerapport fra atmosfærisk testing og entringsvaktens plikter, er hengt opp ved inngangen til det avlukkede rommet

En logg over personell som går inn/ ut av arbeidsplassen og skal oppdateres ved behov

For videre veiledning, se den lokale prosedyren for entring i avlukket rom.



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Kritiske krav

Forbikobling/deaktivering/frakobling av sikkerhets-utstyr eller systemer

Innhent godkjenning før forbikobling, deaktivering eller frakobling av sikkerhets-utstyr eller -systemer.

De kritiske kravene for forbikobling/deaktivering/frakobling av sikkerhets-utstyr eller systemer:

- **Utfør** en grundig risikovurdering før forbikobling, deaktivering eller frakobling av en sikkerhetsfunksjon eller et sikkerhetssystem
- **Kommuniser** alle aktive forbikobling, deaktivering og frakobling mellom skift/mannskap

Risikovurdering og tillatelse

I forkant av en forbikobling, deaktivering og frakobling av et sikkerhetssystem skal autorisert personell utføre en risikovurdering som inkluderer følgende:

- **Identifiser** systemer og/ eller funksjoner som vil bli påvirket
- **Forstå** hvordan dette kan påvirke andre sikkerhetssystem og aktiviteter
- **Reduser** risiko ved å iverksette tiltak
- **Ferdigstill** eventuelle påkrevde endringsstyrings prosesser (MOC).

En godkjenning skal gis basert på resultatene i risikovurderingen

Sikkerhetssystemer

Sikkerhetssystemer inkluderer:

- Nødvstengingssystem
- Brann og gass system
- Prosess kontroll system (PCS) og tilhørende alarmsystem
- Trykkavlastningsventiler (PSV, BDV)
- Kranens sikkerhetssystemer og grensebrytere

Bypass logger og rutinemessig oppfølging fra ledelsen

Forbikobling, deaktivering og frakobling av et sikkerhetsutstyr eller system krever:

- En oppdatert logg for forbikobling, deaktivering og frakobling av sikkerhetssystemer
- En rutinemessig ledelsesgjennomgang av alle forbikoblinger, deaktiveringer og frakoblinger av sikkerhetssystemer

Kommunikasjon / Handover

En prosedyre skal spesifisere hvorledes forbikobling, deaktivering og frakobling skal erfaringsoverføres mellom skift og alt involvert personell..

For ytterligere veiledning, se relevante lokale prosedyrer.



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I skuddlinjen

Hold deg selv og andre ute av skuddlinjen

Kritiske krav

De kritiske kravene for i skuddlinjen er:

- Etabler, oppretthold og respekter avsperrede områder
- Plasser deg selv og andre slik at en unngår faren ved opphold i skuddlinjen
- Beskyttelse mot fallende gjenstander.

Avsperring av områder

Når du etablerer barrierer og avsperrede områder, vurder følgende:

- Løfteoperasjoner, trykktesting, utstyr i bevegelse, arbeid i høyden, etc.
- Ferdigstilling, vedlikehold, skilting og merking av sperringer
- Overholdelse av barrierer og avsperrede områder

Plassering av personell Når en definerer egnet område for personell under arbeidet, vurder følgende:

Frigjøring av trykk	Splitting av flenser og slanger tilkoblinger, fjerne plugg, avblødning og trykktesting
Kjøretøy og tungt utstyr	Avsperringer, observatører, evaluering og planlegging av kjøreruter
Hengende - og bevegelig last	Sikre verktøy og utstyr, styring av last med styreliner og styrepinner, evaluering av tyngdepunkt, vær og vind forhold
Bevegelige gjenstander	Uventede bevegelser av verktøy eller utstyr, og sikring av materiell som f.eks. rør
Utstyr utsatt for spenn	(komprimert, i spenn eller bøyd) – forventet retning for utstyr når energien frigjøres
Klemfare	aktiviteter som utsetter personell for klemskader

Forhindre fallende gjenstander

Beskyttelse mot fallende gjenstander:

- Sikre verktøy og utstyr fra å falle til underliggende områder
- Etabler, oppretthold og respekter avsperrede områder

For videre veiledning, se lokale retningslinjer.



EXHIBIT C – ONSHORE/ OFFSHORE REQUIREMENTS

1. REQUIREMENTS WHEN TRAVELLING OFFSHORE

Contractor shall comply, and shall ensure that all the members of Contractor Group and their respective personnel comply, with the following procedures and guidelines:

- Company procedure 4291 'Going offshore and shuttle' available at web site:
<http://www.docstream.no/copno/lsr-en.html>
- Information about our procedures will also be given onboard the facility as part of the Safety onboard briefing (SOB), ref. procedure 3552. Procedure available at web site:
<http://www.docstream.no/copno/lsr-en.html>
- 002 Norsk Olje & Gass Recommended guidelines for safety and emergency preparedness training
- 003 Norsk Olje & Gass recommended guidelines for Check-in and Security Checks at Helicopter Terminals
- 006 Norsk Olje & Gass Anbefalte retningslinjer for veiledende medikamentliste for installasjoner på norsk kontinentsokkel
- 066 Norsk Olje & Gass recommended guidelines for Flights to Petroleum Installations
- Regulations relating to Medical Requirements for personnel in the Petroleum Activities, stipulated by the Norwegian Directorate of Health 12 November 1990
- Petroleum Safety Authorities (PSA) Regulations

2. WORKING CONDITIONS AND SAFETY TRAINING

Contractor shall comply, and shall ensure that all the member of Contractor Group and their respective personnel comply, with all Applicable Laws relating to work permits, working conditions, and safety training.

Special attention should be given to Regulations relating to health, safety, and the environment in the petroleum activities and at certain onshore facilities of 12 February 2010 No.158 ('Rammeforskriften') chapters VI and VII. The Regulations are available at web site: www.ptil.no.

EXHIBIT D – ADDITIONAL INFORMATION SYSTEM ACCESS REQUIREMENTS

1. GENERAL CONDITIONS

Contractor shall submit for approval all Network connectivity requests in writing at least two weeks prior to the connection being required. All Contractor's computers shall be connected to a network segregated from the business Network with a firewall.

Contractor shall not be able to connect any information technology equipment to Company's Network or install any software on Company's Systems without prior approval.

Contractor shall cover all costs associated with mobile devices, including laptops, mobile phones, and PDAs (Personal Digital Assistants), to be used by Contractor, also at Company's offices.

Contractor shall provide a list of terminated users on a monthly basis.

1.1. ACCESS FROM COMPANY'S SITES

If access to Contractor's systems from Company's office is required, Contractor shall establish a web-based or terminal server-based solution accessible through SOIL (Secure Oil Information Link) or Internet.

1.2. ACCESS FROM CONTRACTOR'S SITES

If access to Company's Systems is required from Contractor's offices/ sites/ locations, Contractor shall access Company's Network through SOIL (Secure Oil Information Link) or the Internet, using Company's standard solution for remote access.

EXHIBIT E – EXAMPLE CALL-OFF ORDER

CALL-OFF ORDER NO. _____

This Call-Off Order is entered into by and between, and is effective from the date of the last signature hereof (**Effective Date**) by:

ConocoPhillips Skandinavia AS (Reg. No. 918 110 127), whose registered office is Ekofiskvegen 35, N-4056 Tananger, Norway (**Company**); and

_____(Reg. No. _____) whose registered office is _____
_____(**Contractor**);

Company and Contractor also referred to herein individually as a **Party** and collectively as **Parties**.

Recitals

- A. Company has a need for performance of the Work specifically described in this Call-Off Order and Contractor wants to perform such Work for Company.
- B. Company and _____ have entered into that certain Master Agreement – Well Services and Associated Goods dated _____, Contract Number _____ (**Agreement**), whereby Company or its Affiliates may order and obtain goods or services from _____ or its Affiliates.
- C. Company and Contractor wish to use the terms from the Agreement to form the basis for this Call-Off Order.

Company and Contractor therefore agree as follows:

- 1. This Call-Off Order comprises this document; the terms from the Agreement, which are incorporated herein by reference; and the following Attachments hereto:

Attachment 1 – Scope of Work

Attachment 2 – Pricing, Invoicing, and Payment

Attachment 3 – Performance Security {Parent Company Guarantee/ Bank Guarantee, if applicable}

Only the documents listed above are part of this Call-Off Order and binding on Contractor and Company. Any document not listed above is not part of this Call-Off Order and is superseded by the express terms hereof.

- 2. The terms from the Agreement apply to the Work to be performed under this Call-Off Order in accordance with the order of precedence set forth in Articles 2.2.3 and 2.2.4 from the Agreement. Any capitalized terms not defined in this Call-Off Order have the meaning assigned to such terms in the Agreement.
- 3. Area of operations for this Call-Off Order is the Norwegian Continental Shelf and other areas where Company has operations.

4. SCOPE OF WORK

Contractor shall perform the Work described in Attachment 1 – Scope of Work in accordance with and subject to the terms from the Agreement to the exclusion of all other terms and conditions not set out in the Agreement or this Call-Off Order.

Company will issue purchase orders generated from Company's enterprise resource planning (ERP) system to address performance of particular Work. Each purchase order will have a unique reference and refer to this Call-Off Order.

5. COMPENSATION

Company will pay Contractor in accordance with the rates, prices, and commercial terms specified in Attachment 2 – Pricing, Invoicing, and Payment for Work performed in conformance with this Call-Off Order.

6. REPRESENTATIVES OF THE PARTIES AND NOTICES

Company Representative: _____

Contractor Representative: _____

Company Notice Address:

ConocoPhillips Skandinavia AS
Ekofiskvegen 35
N-4056 Tananger
Norway

ConocoPhillips Skandinavia AS
Postboks 3
N-4068 Stavanger
Norway

{Physical Address, email address, telephone number, cell phone number}

Contractor Notice Address:

{Physical address, email address, telephone number, cell phone number}

7. APPROVED SUBCONTRACTORS FOR THE WORK

{Add Company-approved Subcontractors (if any) per Agreement Article 7}

8. TERM OF THE CALL-OFF ORDER

This Call-Off Order will expire, unless terminated earlier in accordance with the provisions from the Agreement, on xxxxx .

Company has the right to extend the term of this Call-Off Order up to xxxx times, each time by up to xxxx months, by giving Contractor written notice of extension at least thirty (30) days before the date on which it would otherwise expire.

9. RELATIONSHIP OF THE PARTIES

As provided in Article 3.9 from the Agreement, this Call-Off Order is a non-exclusive agreement.

Company may consider having work performed by a third party as a replacement, in full or in part, for Contractor's equipment, Goods, or services covered by this Call-Off Order. Grounds for Company considering such action may include:

- An unresolved decrease in overall reliability of Contractor's equipment, Goods, and/or services, Contractor having been given reasonable time to resolve any problems.
- Contractor's inability to provide Contractor's equipment, Goods, and/or services as requested to perform the Work.
- Contractor's inability to perform satisfactory pre-planning and engineering for this Call-Off Order.
- Capacity reasons.
- Safety-related issues.
- Contractor's poor performance
- Alternative technology available elsewhere

Contractor and Company have caused this Call-Off Order to be executed on their behalf by their respective authorized representatives:

Signed for and on behalf of Company:

Signed for and on behalf of Contractor:

Signature: _____

Signature: _____

Name (print): _____

Name (print): _____

Position (print): _____

Position (print): _____

Date: _____

Date: _____

Electronic Signature Authorization. If this Call-Off Order is signed electronically, the Parties expressly agree that (A) the electronic signature of this Call-Off Order by a Party is valid as an original signature of such Party and is effective to bind such Party to this Call-Off Order; and (B) this Call-Off Order, when signed electronically or manually, is to be deemed (i) to be 'written' or 'in writing'; (ii) to have been signed; and (iii) to constitute a record established and maintained in the ordinary course of business and an original written record when printed from electronic files. To the extent authorized or permitted by Applicable Laws, such paper copies or 'printouts', if introduced as evidence in any judicial, arbitral, mediation, or administrative proceeding, will be admissible as between the Parties to the same extent and under the same conditions as other original business records created and maintained in documentary form. Neither Party shall contest the admissibility of true and accurate copies of this electronically signed document on the basis of the best evidence rule; or of it not satisfying the business records exception to hearsay rules; or of any other legal theory. Each Party further warrants that the representative who executes this Call-Off Order on its behalf by electronic signature has the authority to do so.

ATTACHMENT 1 – SCOPE OF WORK

NOTE: ONLY THE TABLE OF CONTENTS IS INCLUDED IN THIS EXAMPLE

1 Introduction

2 Scope of Work

2.1 Detailed Scope of Work

2.2 Schedule

2.3 Onshore Support

3 General Requirements

3.1 Contract and Performance Management

3.2 Reporting

4 SPECIFIC REQUIREMENTS

4.1 General

4.2 Contractor's Equipment

4.3 Contractor's Personnel

4.4 Goods

4.5 Quality Control/ Quality Assurance/ Technical Documentation

4.6 Technical Specification

4.7 Logistics

4.8 Company Items

4.9 Principal Enterprise

5 Appendix 1 – Technical Specifications, NORSOK standards, Company's Technical Control Documents and Drawings

5.1 Technical Specifications

5.2 NORSOK standards

5.3 Company's Technical Control Documents

5.4 Drawings

ATTACHMENT 2 – PRICING, INVOICING, AND PAYMENT

NOTE: ONLY THE TABLE OF CONTENTS IS INCLUDED IN THIS EXAMPLE

1. GENERAL

- 1.1. Currency
- 1.2. Value Added Tax (VAT)
- 1.3. Pricing Scheme
- 1.4. Delivery Term for equipment, Goods, and materials

2. INVOICES AND PAYMENT

- 2.1. Invoicing Details
- 2.2. Electronic payment requests via ePayables

3. PERSONNEL RATES

- 3.1. Offshore Personnel
- 3.2. Onshore Personnel
- 3.3. Key Personnel

4. EQUIPMENT, GOODS, AND MATERIALS RATES

- 4.1. Equipment Rental Rates
- 4.2. Back-up equipment and materials.
- 4.3. Mobilization
- 4.4. Prices for rush orders
- 4.5. Stop in payment
- 4.6. Buy-back
- 4.7. New Technology
- 4.8. Goods
- 4.9. Additional third party equipment, Goods, materials, or services
- 4.10. Loss of downhole equipment

5. DELAY LIQUIDATED DAMAGES

6. RATE ADJUSTMENTS

- 6.1. General
- 6.2. Personnel
- 6.3. Goods
- 6.4. Equipment
- 6.5. Other contracted services and material

7. PRICE LIST

Appendix 1 – Schedule of Rates and Prices

EXHIBIT F – FORMS OF PERFORMANCE SECURITIES

EXHIBIT F – PART 1: FORM OF PARENT COMPANY GUARANTEE

THIS PERFORMANCE GUARANTEE AGREEMENT (hereinafter referred to as the '**Guarantee**') is entered into as of [date] by and between:

[Company Name] (Registered Number: _____) ('**Company**') of the one part;

and

[Name of Contractor's ultimate parent company] ('**Guarantor**') of the second part.

Recitals

- A. [] ('**Contractor**') has entered into a certain agreement entitled Call-Off Order No. [insert number] dated [insert date] ('**Call-Off Order**') with Company for the performance by Contractor of certain work ('**Work**') as described in such Call-Off Order.
- B. Guarantor is the **ultimate** parent company of Contractor.
- C. Company wishes Guarantor to guarantee the due and proper performance of Contractor's obligations under the Call-Off Order and otherwise, and Guarantor is willing to grant the performance guarantee provided herein.

Company and Guarantor therefore agree as follows:

- 1. In consideration of Company entering into the Call-Off Order with Contractor, Guarantor hereby covenants and agrees unconditionally with Company and with Company's successors and assigns that:
 - a. Contractor shall properly, diligently, and in good time observe the provisions of and perform and discharge any and all its obligations contained in or arising from the Call-Off Order, as supplemented and amended from time to time.
 - b. If Contractor defaults in any manner whatsoever in the due and proper performance of the Call-Off Order, or commits any breach of the provisions thereof or of any of the obligations and duties thereunder, Guarantor shall forthwith assume and properly and diligently perform and discharge any and all of said obligations or duties remaining unfulfilled, upon written request from Company to do so.
 - c. Guarantor shall pay to Company on demand all monies due and owing by Contractor to Company under the Call-Off Order or pursuant to any claim made by Company relating to or arising out of the Call-Off Order.
 - d. This Guarantee constitutes a primary obligation of Guarantor and accordingly Company will not be obliged before enforcing this Guarantee to take any action in court against Contractor; to make any claim against or any demand of Contractor; to enforce any other security held by Company in respect of the obligations of Contractor under the Call-Off Order; or to exercise any diligence against Contractor.
 - e. **GUARANTOR SHALL, ON DEMAND, INDEMNIFY AND HOLD HARMLESS COMPANY FROM AND AGAINST ANY AND ALL LOSSES AND EXPENSES, OF WHATSOEVER NATURE (INCLUDING, WITHOUT LIMITATION, ALL LEGAL FEES AND EXPENSES), IN ANY WAY CONNECTED WITH BREACH BY CONTRACTOR OF ITS OBLIGATIONS CONTAINED IN OR ARISING FROM THE CALL-OFF ORDER, AND ANY SUPPLEMENT OR AMENDMENTS THERETO, OR BREACH BY GUARANTOR OF THE DUTIES DESCRIBED HEREIN, WHETHER OR**

NOT ANY SUCH BREACH IS CAUSED, WHOLLY OR IN PART, BY NEGLIGENCE OR OTHER LEGAL FAULT OF CONTRACTOR OR GUARANTOR.

2. Any provisions of the Call-Off Order providing limitation of liability or indemnities in favour of Contractor also apply to Guarantor. The total accumulated liabilities and indemnities of Contractor and Guarantor are not to exceed the liabilities and indemnities of Contractor as provided in the Call-Off Order, except that Guarantor shall indemnify Company in addition for any costs of enforcing this Guarantee.
3. This Guarantee is in addition to, and not in substitution for, any rights or remedies that Company may have against Contractor arising under the Call-Off Order or otherwise, and Guarantor will not be released from the obligations hereunder by reason of any time or forbearance granted by Company to Contractor or Guarantor.
4. The governing law of the Call-Off Order applies also to this Guarantee. In the event of any claim or dispute arising out of or relating to this Guarantee, the provisions of the Call-Off Order with regard to dispute resolution are to apply as if fully repeated herein. An award obtained by Company against Contractor pursuant to the Call-Off Order will also be binding on Guarantor.

Executed for Guarantor and Company by their duly authorized representatives:

_____ (Guarantor)	_____ (Company)
Signature	Signature:
Name:	Name:
Date:	Date:

EXHIBIT F – PART 2: FORM OF BANK GUARANTEE

This guarantee ('**Guarantee**') is provided as of *[date]* by *[name of bank]* ('**Guarantor**'), whose registered office is at *[address of bank]*

TO

[Company Name] ('**Company**').

- A. Company and *[]* ('**Contractor**'), whose registered office is at *[]*, have entered into a contract dated Effective "as of the date of last signature", Call-Off Order No. *[Call-Off Order reference]*, for the performance by Contractor of certain work for Company ('**Contract**').
- B. Contractor has covenanted to deliver a bank guarantee in favour of Company as security for Contractor's fulfilment of its obligations under the Contract and Guarantor has agreed to provide this Guarantee to Company to meet this requirement.

Guarantor hereby irrevocably agrees and undertakes as follows:

1. Guarantor shall pay Company from time to time any or all monies due and owing to Company from Contractor under the Contract and arising out of the default or non-performance by Contractor of its obligations thereunder, of which Company shall be the sole judge; provided that in no event is the liability of Guarantor under this Guarantee to exceed *[amount in words, with applicable currency clearly stated] ([amount in figures])*.
2. Company may make multiple demands under this Guarantee up to the maximum amount stated in Clause 1 above.
3. Guarantor shall make such payments immediately upon written demand by Company (each such demand a '**Call Notice**') and shall accept each such Call Notice, notwithstanding any objection that may be made by Contractor or any other person, as conclusive and sufficient evidence of the existence of a default or of non-performance on the part of Contractor.
4. Any Call Notice submitted by Company to Guarantor is to be accompanied by a copy of an official notice from Company to Contractor which advises Contractor of any default or non-performance under the Contract and which is dated at least ten (10) calendar days prior to the date of submission of the Call Notice by Company to Guarantor. Each Call Notice is to be accompanied by Company's bankers' authentication of the signature of Company's signatory of the Call Notice.
5. Guarantor's obligations hereunder constitute direct, primary, irrevocable, and unconditional obligations and will not in any way be discharged, prejudiced, diminished, or affected by:
 - a. The granting by Company of any time, indulgence, or waiver to Contractor or any other person;
 - b. The effecting by Company of any compromise whatsoever with Contractor;
 - c. Suspension or termination by Company of the Contract or performance thereof by Contractor;
 - d. Any change in the constitution or business organization of Contractor;
 - e. The amendment of any terms or conditions of the Contract as provided therein.

6. This Guarantee is in full force and effect from the date hereof or the date of commencement of work under the Contract, whichever first occurs, and is to remain in operation until all Contractor's warranty obligations under the Contract have been duly fulfilled. Provided, however, that in the event of Company terminating the Contract for cause, this Guarantee is to remain in full force and effect until all Contractor's obligations under the Contract with regard to such termination have been duly discharged. This Guarantee may be extended to such later date as officially requested by Company and agreed with Contractor and may be enforced without Company first having recourse to any rights under the Contract or without Company taking any steps or proceedings against Contractor.
7. This Guarantee is irrevocable and not assignable by Guarantor without Company's prior written agreement; and shall be binding on Guarantor and its successors and assigns.
8. In the event of any claim or dispute arising out of or relating to this Guarantee, the provisions of the Contract with regard to applicable law and conflict resolution are to apply as if fully repeated herein. An award obtained by Company against Contractor pursuant to the Contract will also be binding on Guarantor to the extent of Guarantor's obligations under this Guarantee.

This Guarantee is executed for Guarantor by its duly authorized representative:

(Guarantor) *[INSERT NAME OF BANK]*

Signature: _____

Name: _____

Position/ Title: _____

Date: _____